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碩士論文

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**泰國與臺灣工業廢棄物清理法制
之比較研究**

**A Comparative Study of Legal Regulations for
Industrial Waste Management in Taiwan and
Thailand.**

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摘要

本研究探討泰國和台灣在工業廢棄物處理法規上的異同，並提出對泰國法律改進的建議。當前，工廠企業主為減少生產成本，經常非法傾倒工業廢棄物。這種行為對環境和社會造成嚴重影響，導致環境問題日益嚴重。1992 年《工廠法》和 1992 年《危險物質法》是泰國控制工業廢棄物處理的主要法律，規定了特定的處罰措施，包括刑事處罰和行政處罰。根據這些法律，執法人員有權對違法者進行處罰，甚至暫時或永久關閉企業。

然而，泰國的法律在實際執行中面臨挑戰。非法傾倒工業廢棄物問題持續存在，且檢測到的違法行為趨勢增多。這反映出現行法律措施不足以有效解決問題。根據對非法傾倒工業廢棄物法律處罰執行與存在問題的分析，本文認為，法定處罰與違法行為帶來的影響不成比例是重要原因之一。泰國法律賦予執法人員相當大的自由裁量權，使其能對處罰進行裁量或以和解方式處理案件，這可能導致違法者願意支付罰金以避免刑事訴訟，從而案件無法進入刑事司法程序，顯示現行法律措施不足以有效防止和解決問題。

本文從法律經濟學角度分析隱匿丟棄工業廢料的犯罪行為，發現犯罪決策主要通過衡量預期收益、被抓獲機率及處罰力度來計算預期成本。當預期收益大於預期成本時，犯罪行為更易發生。因此，抑制犯罪行為需要增加其成本，以減少犯罪者預期獲得的利益。提高刑罰嚴重程度，如增加罰金或監禁，可能是有效措施。

此外，台灣對非法丟棄工業廢棄物的法規明確區分刑事罰金和行政罰款。對於棄置工業廢棄物導致對公眾生命、身體和健康造成嚴重危害的行為，台灣採取刑事罰金。此外，對不遵守法定程序的行為，也需承擔相應責任。台灣的行政罰款依據廢棄物管理法規中明確規定的標準進行計算，根據污染程度、污染特性和危害程度，計算最終罰款額。

綜合比較泰國和台灣在非法丟棄工業廢棄物案件上的法律，台灣法律在懲罰措施方面更加完善。台灣明確區分行政罰款和刑事罰金，並根據違法行為的嚴重

性採取不同制裁方式，對於嚴重違法行為，實施刑事罰金；對不遵守法律或政府指令的行為，實施行政罰款。這種罰款制度根據違法行為的性質、嚴重程度和行為人身份制定，能有效懲罰違法行為。

因此，泰國應修訂法律提高執法效率與效力，增加適當罰則，以符合違法行為的嚴重性，尤其對於導致廣泛損害的行為，如非法丟棄工業廢棄物。此外，應檢討罰金計算方式，確保每種違法行為都能適當制定罰金。這樣才能更有效地防止和解決非法棄置工業廢棄物問題。

關鍵字：工業廢棄物、事業廢棄物、工業廢棄物處理、非法傾倒、刑事處罰、行政處罰、法律經濟學、泰國、臺灣

Abstract

This study explores the differences in industrial waste disposal regulations between Thailand and Taiwan and proposes recommendations for improving Thai laws. Currently, factory owners frequently engage in the illegal disposal of industrial waste to reduce production costs. Such behavior has severe impacts on the environment and society, leading to increasingly serious environmental problems. The Factory Act of 1992 and the Hazardous Substances Act of 1992 are the main laws in Thailand that control the disposal of industrial waste, specifying particular punitive measures, including criminal and administrative penalties. Under these laws, enforcement officers have the authority to penalize offenders and even temporarily or permanently close down businesses.

However, the execution of these laws in Thailand faces challenges. The problem of illegal industrial waste disposal persists, and the trend of detected violations is increasing. This indicates that current legal measures are insufficient to effectively address the issue. Based on an analysis of enforcement and issues of penalties for illegal industrial waste dumping, this paper argues that a significant reason is the disproportion between statutory penalties and the impact of the violations. Thai law grants enforcement officers considerable discretion, allowing them to determine penalties or resolve cases through settlements. This may lead offenders to prefer paying fines to avoid criminal prosecution, resulting in cases not entering the criminal justice process, thus demonstrating that current legal measures are inadequate to prevent and resolve the problem effectively.

From the perspective of legal economics, this study analyzes the criminal behavior of concealing industrial waste. It finds that criminal decisions are primarily based on calculating expected costs by considering expected benefits, the probability of being caught, and the severity of penalties. When the expected benefits exceed the expected costs, criminal behavior is more likely to occur. Therefore, to deter criminal behavior, it is necessary to increase its costs, reducing the expected benefits for the offenders. Enhancing the severity of penalties, such as increasing fines or imprisonment, may be an effective measure.

Moreover, Taiwan's regulation on illegal industrial waste disposal clearly distinguishes between criminal fines and administrative penalties. For actions that cause serious harm to public life, body, and health, Taiwan imposes criminal fines. Additionally, offenders are held accountable for not following statutory procedures. Taiwan's administrative fines are calculated based on explicitly defined standards in waste management regulations, considering pollution levels, pollution characteristics, and the degree of harm to determine the final fine amount.

Comparing the laws on illegal industrial waste disposal between Thailand and Taiwan, Taiwan's legal system is more advanced in terms of punitive measures. Taiwan clearly distinguishes between administrative fines and criminal fines and adopts different punitive measures based on the severity of violations. For serious violations, criminal fines are imposed; for non-compliance with laws or government orders, administrative fines are enforced. This fine system is established according to the nature, severity, and identity of the offenders, effectively punishing violations.

Therefore, Thailand should amend its laws to enhance enforcement efficiency and effectiveness, increasing appropriate penalties to match the severity of the violations, especially for actions causing extensive harm, such as illegal industrial waste disposal. Additionally, the method of calculating fines should be reviewed to ensure that each type of violation is appropriately penalized. This approach can more effectively prevent and resolve the issue of illegal industrial waste disposal.

Keywords : Industrial waste, Industrial waste regulation, Illegal dumping, Criminal penalties, Administrative penalties, Legal economics, Thailand, Taiwan

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第一章 緒論

第一節 研究背景

目前，泰國和臺灣非法傾倒工業廢棄物的情況越來越嚴重。並且持續發現這種違法行為，這是一個重要的大問題，需要緊急解決。因為工業廢棄物的污染影響對公眾健康造成廣泛而嚴重的影響。

泰國仍然存在環境污染的情形，特別是在經濟樞紐和工業區的東部地區，仍然存在非法棄置工業廢棄物的問題。根據 2022 年泰國污染控制局的報告，相較於 2021 年的 2 起，非法棄置工業廢棄物的案例激增到 8 起。受影響的地區，包括巴真武里、查占人、烏隆他尼、大城和素攀武里等各省¹。這些地區以廢棄礦區、空地或無人管理的廢棄水塘為特徵，進而導致土壤、地表水和地下水源受到污染。

與此同時，在臺灣桃園市垃圾焚化廠，我們可以看到，目前焚化的垃圾量遠不足以應對民眾垃圾產生的速度。在龍潭區的店子湖垃圾掩埋場，已經堆積了上百萬噸的垃圾，這樣的堆置量可能存在坍塌的危險，並且可能在下雨時造成地下水質的污染²。

隨意棄置工業廢棄物對生態系統和農業產生了有害影響，對民生經濟發展和公共衛生也形成衝擊。同時政府機構在工業廢棄物的監測、執法和環境復原工作各方面也承受重大損失³。在一些案例中，社區居民無法飲用乾淨的水源⁴，工業

¹ Pollution control department. (2022). **Thailand state of pollution report 2022**. p. 150.

² 再生能源資訊網，經濟部能源署。https://www.re.org.tw/news/more.aspx?cid=198&id=6669，索引日期 2024 年 1 月 11 日。

³ Ibid. p. 152.

⁴ Office of the National Health Commission, (2014). **Nong Haen, lessons learned and the future that must be continued 2014**, retrieved March 30, 2022, from: <http://kbphpp.nationalhealth.or.th/handle/123456789/7601>

廢棄物的棄置明顯侵害了泰國國民在2017年泰國憲法第43條(2)和第57條(2)⁵中，所享有之利用自然資源和健康環境的基本權利。該憲法要求政府保護、復原、管理並負責任地利用自然資源和生物多樣性以獲得永續利益。

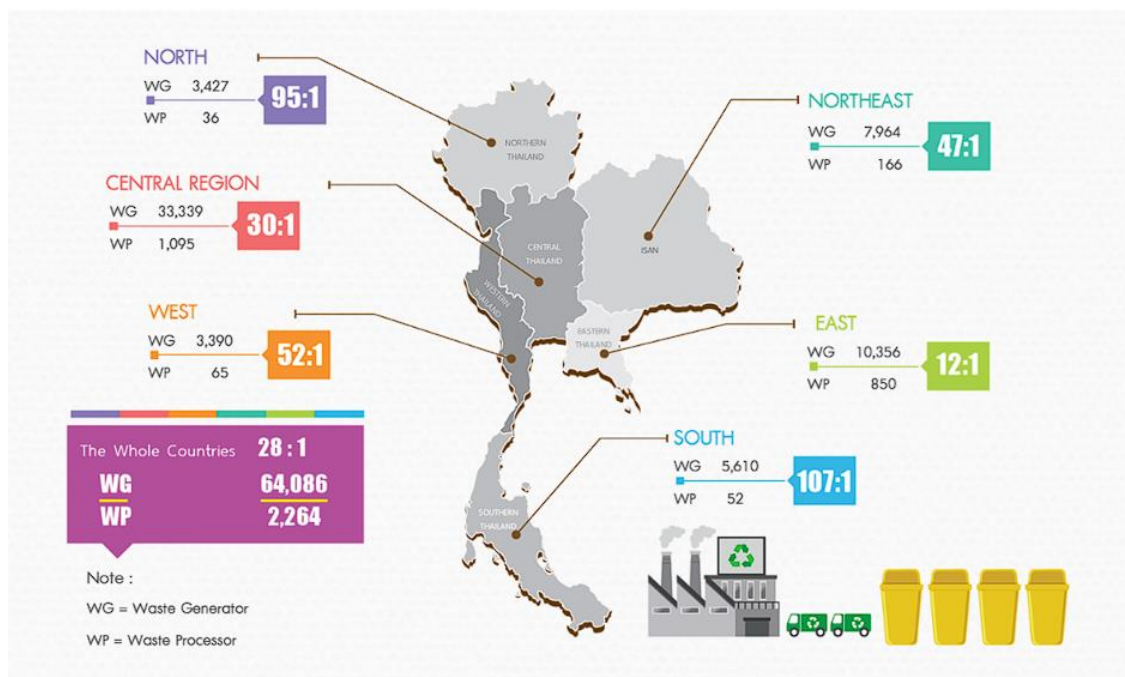
當考慮到目前兩國非法傾倒工業廢棄物的情況時，此一問題的主要原因來自泰國與臺灣境內工業的快速成長。由於政府實施多方面的刺激經濟政策和措施，吸引國內外投資者，導致工業設施的大量增加。隨著相關工業設施及工廠的急速成長，導致工業廢棄物和副產品逐年大幅增加。

在2021年，泰國的非危險和危險廢棄物，於工業署廢棄物管理系統的運輸量達到了36.55百萬噸，工業廢棄物的總量，比2020年的18.57百萬噸增加了96.82%，這是一個相當驚人的成長。其中，包括33.84百萬噸的非危險工業廢棄物和2.71百萬噸的危險工業廢棄物⁶。報告指出，工業廢棄物佔全部廢棄物總量的40%，其中更有60%的廢棄物為未申報或處理不當。同樣地臺灣，根據環境部資源循環署的統計數據顯示，截至2022年，全台一般垃圾和事業廢棄物的總量已達到2217萬公噸，近6年增長超過19%。目前的焚化爐處理能力只有每年650萬公噸，無法滿足需求，且事業廢棄物的最終處置場費用上升了3至10倍，對工業區的污水處理廠和產業運營造成了負擔，進一步加劇了非法棄置問題的嚴重性⁷。

⁵ Constitution of The Kingdom of Thailand.

⁶ Pollution control department. (2022). **Op.cit.** p. 28.

⁷ 再生能源資訊網，經濟部能源署. **Op.cit.**



圖一：2022 年泰國各區域工業廢棄物處理廠的分布比例以及在支援和分發方面的容量

資料來源：Pollution control department (2022).

根據前述報告，我們可以觀察到，由於全國範圍的廢棄物處理設施容量不足和分布不均⁸，未經授權的工業廢棄物傾倒問題加劇⁹。因為找尋適當的廢棄物處理設施及合法處理方式，不檢增加運輸開支¹⁰，也導致工業廢棄物處理需要付出更高費用與成本。

在泰國，各地區皆存在工業廢棄物處理設施的分散情況：以東部地區的處理能力和分布最高，其次為中部、東北、西部、北部和南部地區¹¹。在考慮全國範

⁸ 再生能源資訊網，經濟部能源署. **Op.cit.** p.149.

⁹ Ibid. p. 26.

¹⁰ Ibid. p. 149.

¹¹ Ibid. p. 28.

圍內處理設施的分佈比例時，可以明顯看出廢棄物生成與處理設施的比例僅為 28:1¹²。

此外，工業廢棄物的處理和清理所產生的費用顯著高昂，再加上迫切需要通過符合法律要求化正確處理工業廢棄物來降低生產成本，這些情況更加劇了違法的工業廢棄物非法棄置。

根據初步數據，可以明顯看出，泰國與臺灣非法工業廢棄物的棄置趨勢正在上升。這種成長不僅歸因於工業部門增長比例與高效廢棄物處理和處理能力之間的不平衡，更有其中一個原因來自於是執法效率的不足，這進一步擴大了上述非法活動的活躍。

第二節 研究動機與目的

泰國目前採用兩個主要法律法規來應對非法的工業廢棄物棄置問題，分別是《工廠法 1992》（Factory Act 1992）和《危害物質法 1992 泰國 1992 年制定的有害物質法¹³》（Hazard Substances Act 1992）¹⁴。在仔細審查這些法令的規定後，可以明顯看出，泰國已通過刑事、民事和行政途徑對違法者採取了法律措施。儘管執法非常嚴格，但非法工業廢棄物棄置的統計數據仍然呈現成長趨勢，這對於執政當局來說，是一項需要持續面臨的挑戰。本文認為此一問題，可分為兩個主要層面：

¹² 再生能源資訊網，經濟部能源署. **Op.cit.** p. 150.

¹³ 羅允佳，三碗豬腳，垃圾不准丟我家。東南亞國家的廢棄物交易報告（下），取自看守台灣協會，網址 <https://www.taiwanwatch.org.tw/node/1441>（最後瀏覽日期 2024/5/8）

¹⁴ 沙挖低咖：南向泰國危害物質法最新規範攏底家！取自國際化學品政策宣導網 原文網址 <https://www.chemexp.org.tw/content/topic/TopicDetail.aspx?tid=17&id=3442>

一、刑責的嚴重性與從不當行為中獲益的比例不成比例

在發現非法工業廢棄物排放的情況下，泰國主要通過刑事訴訟進行執法。

《工廠法 1992》(Factory Act 1992) 和《危險物質法 1992》(Hazard Substances Act 1992)，將非法棄置工業廢棄物的行為歸類為刑事犯罪行為，其懲罰包括最高 2 年刑期或罰金 20 萬(含)以下泰銖，或刑期與罰金兩者兼施。

從經濟角度來看，與非法工業廢棄物傾倒相關的法律措施相比較，顯示出泰國目前的懲罰規定在遏止此類犯罪上並不足夠有效。泰國法律的懲罰主要以金額較低的罰金為主，並且缺乏最低刑罰，未能起到強而有力的預防目的。此外，泰國法律體系允許在庭外解決，提供有權管轄行政機關官員有終結刑事訴訟權限。這種裁量權限，是根據 1993 年制定的工業部相關案件處理法規之規定而來。當違法者在指定期限內完全支付罰款時，其刑事案件依據泰國刑事訴訟法第 37 條應予以終止；並根據第 39 條規定該訴訟消滅。此種程序，可算是訴訟外爭議解決機制。

泰國刑事訴訟法第 37 條

刑事案件應當終止如下：

對於僅受罰款的案件，當犯人在司法審判之前自願支付該罪行所規定的最高罰款給有權管轄的官員時，案件即告終止。

對於輕微違法行為的案件，或者違法行為的罰款數額不超過輕微違法行為的案件，或者僅受罰款，罰款最高不超過十萬泰銖，或者違反可處最高罰鍰法律的案件，罰款最高不超過十萬泰銖，當被告支付由調查人員所設定的金額時，案件即告終止。

對於輕微違法行為的案件，或者違法行為的罰款數額不超過輕微違法行為的案件，或者僅受罰款，且該案件發生在曼谷時，當被告支付由該地區排名為督察或被委任負責此項職能的警察官員所設定的金額時，案件即告終止。

對於可以根據其他法律解決的案件，當被告支付由有權官員所設定的罰款金額時，案件即告終止。

第 39 條（相當於臺灣刑事訴訟法第 302、303 條免訴或不受理）起訴權應當消滅於：

- （一）犯罪人死亡時。
- （二）對於可和解的罪行，投訴或指控被撤回或合法達成和解時。
- （三）依據第 37 條終止案件時。

- (四) 對於被指控的罪行，經最終判決後。
- (五) 被指控的罪行因其發生後生效的法律廢止時。
- (六) 時效期限屆滿時。
- (七) 法律授予大赦時。

從上述規定可以觀察到，在違法者具有能力支付罰款的情況下，他們可能選擇同意支付罰金，而不是正確處理工業廢棄物。儘管這種非法的廢棄物處置方法比法定罰金更昂貴，但這可以被視為一種減少合法廢棄物管理相關費用的策略。接受支付罰金可能為違法行為者提供逃避刑事訴訟的途徑，這也顯示當局刑事司法體系在有效遏制此類犯罪並無實質作用。

此外，考慮從犯罪行為中預期獲得的利益與所面臨刑罰之間的比例，允許罰款、和解為違法者提供了避免對抗刑事司法程序的機會。如果預期的利潤（由於減少的廢棄物處置成本而增加的利潤）超過了犯罪行為的成本（違法者同意支付的罰款或罰款的多寡，減少了面臨法律制裁的可能性），則這有損刑罰的比例原則。將導致這類犯罪的懲罰不符合威懾目標，進而無法產生遏止作用，並在防止非法拋棄廢棄物方面缺乏實質效力。

對於這個問題，通過提高罰金數額來增加犯罪行為的成本，可以減少違法者因不當處置廢棄物而獲得預期獲益；對罰責的調整，也可以減少違法者選擇以不當方法處置廢棄物的動機；此外，確保罰責符合比例懲罰的原則至關重要，其能夠有效地遏制不當處置工業廢棄物相關的非法行為。

二、金錢罰金（款）的有效性

在泰國，有關非法處置工業廢棄物的相關法律中，罰金數額通常為固定且缺乏最低門檻。這導致對那些產生高獲益的違法行為，例如企業為了非法降低生產成本而非法處置工業廢棄物的需求，形成了一種無效的威懾。此外，以這種方式執行罰金可能會產生由於個人社會地位和經濟狀況的不同而導致失衡。

在泰國，對於非法處理工業廢棄物的刑事措施的執行有一個有趣的現象。執行機制主要對違法行為處以罰金（款），而大多數違法者皆為法人所屬的工業設施，並無法對其使用監禁作為刑罰。

在這樣的情況下，儘管停業命令聽起來像是業者最擔心的最大處罰，但為確定被棄置的工業廢棄物的來源，調查過程相當耗時，使執行行政措施充滿挑戰，於多數情形下也難以識別違法者。容許這樣的違法行為發生會導致周邊地區的環境損害，也需要投入預算和時間緩慢進行修復工作，而其中還包含由於工業廢棄物不當處置而對潛在人口造成的健康影響。

除此之外，從研究臺灣的行政法律，特別是在違反廢棄物清理法罰鍰額度裁罰準則附表二中，對於涉及工業廢棄物的違法行為者，其罰款計算方式與泰國的明確不同。這引起了研究者對比泰國與臺灣法律的興趣，尤其針對非法傾倒工業廢棄物的情況，以探究對於犯罪所獲得利益的適當罰款計算方式。

因此，本文認為通過修改法律措施，更有效地對此類違法行為產生威懾，並提升預先防範犯罪的效果，將是未來解決泰國非法處置工業廢棄物問題的另一條途徑。

如果在前述的違法行為之外實施替代性措施，有效地提高罰金規模，使從事此類違法行為的成本增加，更能達到威懾這些行動的效果。在研究通過根據臺灣非法傾倒工業廢棄物所獲得的利益來計算罰款的方式，是另一項可以引導此類違法行為的處罰朝著合適方向發展的措施，更能確保法執行的有效性並對非法傾倒工業廢棄物產生威懾的效果。

第三節 研究方法與範圍及限制

壹、研究方法

一、文獻分析法（Document Analysis）

根據本文的研究目的或課題，透過蒐集有關文獻、調查報告、法規等文獻資料，從而全面而精準地掌握所要研究問題的一種方法。本文除了蒐集泰國和臺灣有關的相關研究文獻外，接著展開對泰國和臺灣的廢棄物清理法規及法加以蒐集整理，深入了解兩國法令對於廢棄物的定義、處理與裁罰規範、法律規定模式及執法效力、以及規範的發展趨勢。蒐集的資料包括新聞、期刊、論文、法規、網頁等資料，以進行規範的分析、比較，以期對本論文所欲研究之範圍進行初步了解及分析。

二、法律的經濟分析（Economic Analysis of Law）

經濟分析的思維模式，主要藉由目的解釋或結果取向解釋的論證架構，成為法律解釋與法律續造的方法之一。由於文義解釋與歷史解釋，有時也必須訴諸經濟考量；體系解釋所訴諸之內在原則，亦可藉由效率原則來說明其合理性。因此，本文也採經濟分析方法，整合運用至既有的解釋方法，並填補解釋方法作為論證形式所需之實質內容。經濟分析的效率考量與成本效益分析，有助於解決解釋方法間的衝突與優先性問題。對於泰國有關廢棄物清理法制的建議，參照臺灣法規已採酌成本、效率及刑事制裁目的達成間含有法律經濟學意涵在內，以法律經濟分析說明泰國法制建構應採取之方向，至為重要。

三、法律的經濟分析（Economic Analysis of Law）

本文將進行有關泰國非法工業廢棄物傾倒案例中與法律措施相關的研究，比較其制定刑罰的法律體系與臺灣之間的差異。

貳、研究範圍與限制

本論文主要以泰國《工廠法 1992》(Factory Act 1992) 及《危害物質法 1992》(Hazard Substances Act 1992)，以及非法處置工業廢棄物行為的相關法律規定與措施為研究基礎。透過與臺灣相關法令的比較研究，探討並找出法制上可行之道，作為遏制非法處置工業廢棄物行為方面的合適方法。

由於我的中文語言能力尚有限，這可能導致我在研究中所使用的文獻產生限制。同時，由於我剛開始學習法律，因此在進行研究時可能出現一些錯誤。這些限制影響了我對法律體系的理解和解釋。然而，雖然面臨這些限制，我有意願與指導教授合作，盡我所能改進並修正我可能犯下的錯誤，以確保研究工作的準確性和可靠性。

第四節 名詞定義

泰國和的法律用語、體系與規範有明顯的不同。為便利本論文的寫作、閱讀者的理解方便，先就本論文寫作相關名詞定義與應用，說明如下：

(一) 事業廢棄物與工業廢棄物

依現行廢棄物清理法規定，廢棄物依產源不同分為一般廢棄物及事業廢棄物。在的廢棄物清理法中，雖然沒有有關工業廢棄物的任何規定。但依照工業廢棄物共同清除處理機構管理辦法第 2 條第 1 款規定，所謂工業廢棄物，係指：由製造業、發電廠及工業區公共設施所產出之事業廢棄物；其成分性質符合行政院環境保護署 (以下簡稱環保署) 公告之「有害事業廢棄物認定標準」者，屬有害性之工業廢棄物，其餘屬一般性之工業廢棄物。

從前述條文觀察，可知工業廢棄物的範圍較為具體，舉凡製造業、發電廠及工業區公共設施所產出之事業廢棄物，都屬於工業廢棄物。

相較於，根據泰國《工廠法 1992》及《危害物質法 1992》及工業部說明，工業廢棄物是指因工業操作產生的被丟棄的資料、污染物或物質。亦可區分為危險性工業廢棄物（Industrial Hazardous Waste）及非危險性工業廢棄物（Industrial Nonhazardous Waste）兩類。

儘管的廢棄物清理法中，只規定一般廢棄物及事業廢棄物。但工業廢棄物之用語，較貼近本文所要討論的範圍，也較符合泰國是由工業局及科技環境部主管的業務範圍。因此，本文主題及相關討論內容以「工業廢棄物」作為主要用語，有時為寫作或內容需要，也以事業廢棄物交替使用說明。

另外，要特別說明的是政府基於 2050 淨零戰略之一的「資源循環零廢棄」，環境部資源循環署計畫將廢棄物清理法及資源回收再利用法融合成「資源循環促進法」，把廢棄物改名為廢棄資源，優先再使用、再利用，無循環利用價值者妥善處理（包括焚化、掩埋）等，並整合散落各部會的再利用管理，改由環境部統一管理再利用，並將向包括燃煤底灰、爐碴、無機性污泥等產源課徵「資源環促進費」，預計明年 2 月後預告草案。泰國環境政策是否跟進，值得後續觀察。

（二）罰金與罰款

泰國和的法律，針對棄置工業廢棄物的不同，處罰罰款的規定也有所不同。泰國將棄置工業廢棄物規定為刑事「罰金」，在起訴前如向行政機關繳納罰金（相當於的罰鍰），則案件不再起訴；任意棄置工業廢棄物除了有自由刑處罰外，也規定刑事罰的「罰金」與行政罰的「罰鍰」。但刑事罰金的部分主要是科或併科罰金，通常是針對那些導致對他人生命、身體和健康造成嚴重危害的工業廢物非法丟棄案件所設之規定，而不是針對所有情況。

由於本研究涉及與刑法相關的理論和概念，為了方便理解，筆者在本研究中使用「**罰金**」一詞來指稱罰金的情況，並僅在提及的行政罰款時使用「罰鍰」或「**罰款**」。

(三) 案件的行政和解 (Settlement of the Case by the Official)

案件的行政和解 (Settlement of the Case by the Official) 這指的是法律規定，使得執法人員有權在法律框架下行使裁量權，以確定罰金數額，這是行政機關對刑事處罰的一種形式，是泰國一種行政執法程序的一部分¹⁵。

在被告人願意支付罰金的情況下，根據泰國刑法第 37 跟第 39 條，以法律的形式結束該案。行政機關沒有權將刑事案件提交給法院審理以暫緩審判。

如果被告不願意支付罰金，則案件將進入常規刑事訴訟程序，原告將向調查人員提出投訴，以將案件提交給檢察官提起訴訟。根據法律規定，法院有權在公正原則下行使裁量權，以確定罰金數額。

第五節 章節架構

本論文共分為五章，論文架構主要如下：

第一章 緒論

具體指出本論文之研究動機與目的、研究範圍與限制、研究方法與論文結構，並掌握論文方向及主題。

第二章 工業廢棄物相關管制與法理

本節將對偷偷丟棄工業廢棄物案例的刑罰理論進行研究，探討懲罰觀念、比例原則和法律經濟學原則。透過探討相關的懲罰觀念和理論，我們能更深入地了解與偷偷丟棄工業廢棄物相關的刑罰執行問題，進而提高對於這一問題的理解。

第三章 臺灣與泰國工業廢棄物清理法制分析

¹⁵ Bunchana Charoenphon. (2021). **The rule of law and comparison of offenses According to the Land Traffic Act B.E. 2522**. Law for Democracy Course, Class 9, College of the Constitutional Court Office of the Constitutional Court. p. 2.

在本章中，我們將對泰國和臺灣法律所規定的偷偷丟棄工業廢棄物行為的懲罰進行研究，以深入了解這些行為的特徵和懲罰模式。以便進行對泰國和臺灣法律措施的比較分析，並在下一章中進行研究。

第四章 臺灣與泰國工業廢棄物法制之比較分析

透過比較分析泰國與臺灣對於偷偷丟棄工業廢棄物的法律措施，以揭示兩國之間的異同、優缺點，特別是針對此類違法行為的刑罰措施。這將有助於提供解決泰國工業廢棄物偷排危機的方向。

第五章 結論與建議

在結論中，對於針對偷偷丟棄工業廢棄物的違法行為的刑罰進行總結，並提出建議，以引導未來泰國對於該類違法行為的刑罰方針修訂

第二章 工業廢棄物相關管制與法理

第一節 懲罰目標理論

懲罰觀念在不同時代和社會中不斷演變，受每個社群信仰的影響，不同時期有不同的懲罰觀念，隨著法律進步觀念也有不同。以下本文將探討與非法處置工業廢棄物有關的懲罰目標的三個理論。

壹、報復性懲罰理論 (Retribution)

報復性懲罰理論可追溯至古代，根源於治理體系和宗教教義。報復旨在將懲罰作為一種報復行為，確保違法者面對與其犯下罪行相稱的後果¹⁶。此理論遵循『以眼還眼』¹⁷的原則，相信個人擁有自由意志¹⁸，因此必須對其行為負責¹⁹。

報復著重評估行為本身，強調個人在道德上有責任承擔其選擇所帶來的後果。該理論並不廣泛考慮懲罰所產生的結果²⁰，無論是對違法者的負面影響，還是執行處罰所帶來的正面效應。報復性方法具有三個關鍵原則：

首先，懲罰作為一種補償手段 (Vindication) 旨在滿足因不法行為而受到傷害的受害者。除了追究違法者的責任外，此方法旨在為受害者帶來因所遭受的傷害所需的滿足感²¹。

¹⁶ Bunnam Namchat. (2016). **Death penalty: a study of the proportionality in assigning and enforcing punishment** Thesis, Master of Laws Thammasat University. p. 8.

¹⁷ Pokpong Srisanit. (2020). **High level criminal law**. p. 203.

¹⁸ Pramote Sermsilatham. (2021). **Criteria for imposing criminal penalties Under the project to support information for the work of parliamentarians**. King Prajadhipok's Institute. p. 14.

¹⁹ Sahathon Rattanapaichit. (1984). **The purpose of criminal punishment: a study of only Thailand The period of using criminal law and the Criminal Code**. Thesis, Master of Laws Thammasat University. p. 33.

²⁰ Ibid. p. 34.

²¹ Pramote Sermsilatham. (2021). **op.cit**. p. 15.

其次，出於正義（Fairness）的目的進行懲罰，源於對『人人平等於法律』²²的基本信念。當存在違法行為時，為了恢復被侵犯的正義，會實施懲罰以維護公平。此觀念與德國哲學家康德（Immanuel Kant）的哲學理念相一致²³。

最後，懲罰必須與罪行相稱（Proportionality of punishment）²⁴。這涉及通過考慮不法行為造成的傷害嚴重程度來確定處罰，確保違法者受到與對社會造成損害相稱的懲罰²⁵。實質上，懲罰必須與不法行為造成的傷害相等，基於平等原則（Principle of equality）。這一原則受到康德（Immanuel Kant）的影響²⁶，基於平等原則，強調懲罰應該是相稱的。切澤雷·貝卡里亞（Cesare Beccaria）進一步解釋道，懲罰應當與罪行相符²⁷，允許對不同罪行採取不同類型的處罰²⁸。

貳、威懾懲罰理論 (Deterrence)

作為一種懲罰形式的威懾懲罰理論，旨在基於功利主義(utilitarianism)²⁹原則來防止社會傷害。此方法根據一種信念而建立，即不法行為所造成的損害可能是不可彌補的，進而形成了一種強調懲罰旨在預防此類不當行為發生的理論，而非僅僅專注於對違法者的懲罰。此理論強調通過不僅懲罰違法者，而且防範此類行為的發生來預防未來不當行為。其主要目的包括兩方面：首先，特殊預防 (Special prevention)，旨在通過灌輸對錯誤行為的懲罰的恐懼，來阻止違法者再次從事不當行為；其次，一般預防 (General prevention)，旨在作為範例阻止他人從事類似

²² Pramote Sermsilatham. (2021). **op.cit.** p. 15.

²³ Sahathon Rattanapaichit. (1984). **op.cit.** p. 34-35.

²⁴ Sompong Techasomboon. (2018). **Supplementary measures in lieu of fines in petty crimes**. National Defense Course, Class 60, National Defense College, 2017-2018. p. 16.

²⁵ Narong Jaihan. (2020). **criminal law regarding punishment and methods for safety**. p. 23.

²⁶ Sahathon Rattanapaichit. (1984). **op.cit.** p. 41-42.

²⁷ Ibid. p. 42.

²⁸ Sompong Techasomboon. (2018). **op.cit.** p. 7.

²⁹ Pokpong Srisanit. (2020). **op.cit.** p. 204.

行爲。透過懲罰來說明類似不當行爲發生時將會施加的後果，灌輸對面臨此類處罰的恐懼感，並因恐懼而遏制個人從事該不當行爲的意圖³⁰。

根據威懾理論，懲罰顯然在阻止違法者重複犯罪行爲，和灌輸人民恐懼方面都有所裨益，因而能阻止個人從事類似不當行爲。這種方法體現在目前對某些類型犯罪行爲所施加的更高處罰，旨在預防此類行爲並加強法律的可執行性。根據此理論，懲罰的程度具有重要意義。然而，如果僅將重點放在處罰的嚴厲程度上，而未充分考慮其在阻止未來不當行爲中的必要性，則可能導致處罰過度。洪德里奇（Honderich）的觀點認為『懲罰的嚴重程度不應超出所犯罪行帶來的快樂與痛苦的平衡』³¹。實質上，懲罰應該超出不當行爲帶來的利益，但不應超出達到阻止此類行爲目的所需的程度。在這一方面，懲罰的快速執行無疑是至關重要的³²。

參、制裁失能理論 (Incapacitation)

在刑事判決哲學中，無行爲能力是懲罰的功能之一。它涉及死刑，將罪犯送入監獄，或可能限制其在社區的自由，以保護社會並防止該人進一步犯罪。拘禁作為喪失能力的主要機制，也被用來阻止未來的犯罪行爲。制裁失能理論側重於使罪犯無法再次犯罪³³。其主要目標是消除罪犯從事不法行爲的機會，從而在特定時期內保護社會。這一方法旨在通過防止個體罪犯再次犯罪來解決公共安全問題。總之，制裁失能理論的核心是使罪犯在一段時間之內無法再次犯罪，藉此為社會提供一個安全期。

³⁰ Sahathon Rattanapaichit (1984). **op.cit.** p. 44.

³¹ Ibid. p. 50.

³² Ibid. p. 51.

³³ Bunnam Namchat. (2016). **Op.cit.** p. 9.

第二節 比例原則

比例原則(Principle of Proportionality)是法治的基本原則，作為維護人民基本人權的重要框架。這些原則指導國家權力的行使，包括立法機關 (Legislative) 頒佈法律的使用、司法機關 (Judicial) 在判決中的角色以及行政機關 (Administrative) 的功能³⁴。也就是說，比例原則成為人民自由的保證，通過限制國家行使權力以維護和平與秩序。這在國家使用權力與個體自由之間建立了平衡，限制了國家權威不得超出合理的界限³⁵。

壹、比例原則的核心組成部分

比例原則是嵌入憲法的基本原則，反映了公平和自然正義的概念 (Fair justice)。它強調了國家行使權力與受到該權力約束的人民之間關係的重要性³⁶。司法院大法官會議釋字第 554 號解釋理由書中明白指出，如何判斷是否符合比例原則，首先立法目的必須具有正當性，其次，手段須有助於立法目的之達成（適合原則），亦無其他侵害較小亦能達成相同目的之手段可資運用（必要原則），最後，手段對基本權利之限制與立法者所欲維護法益之重要性必須處於合乎比例之關係（狹義比例原則）。

該原則包括三個基本組成部分：

一、適當性原則

適當性原則規定，在行使其權力時，國家必須選擇與法律意圖相一致、適合實現目標的措施³⁷。

³⁴ Bunnam Namchat. (2016). *Op.cit.* p. 13.

³⁵ Woranu Wijaranan (2005). *The Principle of Proportionality in the Thai Legal System*. Thesis, Master of Laws, Chulalongkorn University. p. 69.

³⁶ *Ibid.* p. 72.

³⁷ *Ibid.* p. 73.

二、必要性原則

除了在選擇措施以達成目標時的適當性外，還必須考慮必要性原則。法律措施必須符合必要性原則，根植於國家應選擇實現目標所必需的措施的基本思想，與實施此類措施所獲得的好處相比，造成最小損害³⁸。

三、狹義上的比例原則

狹義上的比例原則強調在國家法律強制實施中，在個體遭受的傷害和整個社會從中獲得的利益之間創造平衡的重要性。它超越了僅僅考慮適當性和必要性，專注於在國家採取法律措施時實現更精準和平衡的方法³⁹。

貳、懲罰中的比例原則

「懲罰中的比例原則」源自傳統懲罰理念，旨在以報復為目的 (Retribution)⁴⁰，奉行「以眼還眼，以牙還牙」 (An eye for an eye, a tooth for a tooth) 的原則。這種懲罰理論被稱為同態報復法 (Lex talionis) 或能量守衡定律 (The law of taion)⁴¹。這就產生了犯罪者應該受到與其對受害者造成的損害相當的懲罰原則的由來⁴²。也就是說這是為了使懲罰與犯罪行為相稱，其考量懲罰的比例性有三個要素，如下所述：

罪行的嚴重性：司法機關有權評估罪行的嚴重性，根據造成的傷害程度確定適當的刑罰。

³⁸ Woranu Wijaranan (2005). **Op.cit.** p. 79.

³⁹ Ibid. p. 79.

⁴⁰ Pokpong Srisanit. (2020). **op.cit.** p. 203.

⁴¹ Supit Praneetphonkrang. (2017). **Principles and theories of civil law.** p.154.

⁴² Surasak Liksitwattanakul and Pokpong Srisanit. (2017). Research Project on Education to Develop Punishment Guidelines: Principles of Proportionate Punishment In the case of drug cases. **Journal of Law.** 4: 907.

比較分析：除了評估罪行的嚴重性外，與類似案例的比較分析至關重要。這涉及審查對於類似罪行是如何確定刑罰的，以確保一致性和公平性

與其他法院的比較：該原則還要求比較不同法院處理類似案件的決定。這確保刑罰標準化，並遵循一致的標準⁴³。

此外，懲罰中的比例原則要求個人化，考慮到每個罪犯的獨特情況（**Individualization**）。這涉及確定刑罰的輕重，並利用司法裁量權來調整刑罰，以適應個體的具體情況⁴⁴。

懲罰應該符合比例原則，與切薩雷·貝卡裏亞（**Cesare Beccaria**）觀點一致⁴⁵。憶及，如果犯罪行為造成了重大損害，懲罰將隨著損害程度而增加。這種觀念後來被進一步發展超越傳統的比例原則。透過引用法律經濟學的理念來考量犯罪行為的機會。當犯罪行為的機會增加時，相應地社會遭受的損害也會隨之增加，因而提高懲罰的程度，以遏制該行為。這種觀點可視為將切薩雷·貝卡裏亞（**Cesare Beccaria**）的理念延伸至比例原則的一種發展⁴⁶。

的大法官在釋字第 775 號【累犯加重本刑及更定其刑案】指出：有關刑罰法律，基於無責任無處罰之憲法原則，人民僅因自己之刑事違法且有責行為而受刑事處罰（釋字第 687 號解釋參照）。刑罰須以罪責為基礎，並受罪責原則之拘束，無罪責即無刑罰，刑罰須與罪責相對應（釋字第 551 號及第 669 號解釋參照）。亦即國家所施加之刑罰須與行為人之罪責相當，刑罰不得超過罪責。基於憲法罪刑相當原則（釋字第 602 號、第 630 號、第 662 號、第 669 號及第 679 號解釋參照），立法機關衡量其所欲維護法益之重要性、防止侵害之可能性及事後矯正行為人之必要性，綜合斟酌各項情狀，以法律規定法官所得科處之刑罰種類及其上下限，

⁴³ Surasak Liksitwattanukul and Pokpong Srisanit. (2017). **Op.cit.**

⁴⁴ Ibid. p. 912-913.

⁴⁵ Pokpong Srisanit. (2020). **op.cit.** p. 211.

⁴⁶ Ibid. p. 212-213.

應與該犯罪行為所生之危害、行為人責任之輕重相符，始與憲法罪刑相當原則及憲法第 23 條比例原則無違。

綜上，對於因犯罪行為而施以剝奪人身自由之刑罰制裁，除限制人民身體之自由外，更將同時影響人民其他基本權利之實現，是其法定自由刑之刑度高低，應與行為所生之危害、行為人責任之輕重相稱，始符合憲法罪刑相當原則。而國家所施加之刑罰須與行為人之罪責相當，刑罰不得超過罪責。如行為人所受之刑罰超過其所負擔之罪責，致其人身自由或財產遭受過苛之侵害，也不符罪刑相當原則，並違反比例原則。

第三節 法律經濟分析

法律的經濟學分析 (Economic analysis of law) 是一種法律方法，它綜合了經濟原理來分析法律規則⁴⁷，將根據法律原則創建正義與實現效率的目標結合起來 (Efficiency)⁴⁸。其目標是在有限資源 (Scarcity) 下實現成本最小化⁴⁹、效益最大化的平衡，被稱為「高效正義」⁵⁰。

這項法律經濟學原則可用於分析法律的制定和執执行程序⁵¹，並分析犯罪者做出犯罪行為選擇的決策過程⁵²。這是從犯罪者的角度來看待，考慮到犯罪行為所涉及的成本和收益。這個概念與犯罪學的「理性選擇犯罪理論」 (Rational choice

⁴⁷ Pokpong Srisanit. (2020). **op.cit.** p. 28.

⁴⁸ Pokpong Chanwit. (2011). **Legal Analysis Using Economic Principles: Concepts and Review Literature**. Research Fund Office Thailand Development Research Institute. p. 5.

⁴⁹ Ibid. p. 6.

⁵⁰ Pokpong Srisanit. (2020). **op.cit.** p. 87-88.

⁵¹ Suntareeya Mueanphawong. (2006). Judges and legal analysis using economic methods. **Journal of Intellectual Property and International Trade Law**, 9th anniversary: 317. Retrieved May 20, 2022, from <https://ipitc.coj.go.th/th/file/get/file/20200514ab6ed68a3bcc88855b3422f77ccec0f3140641.pdf>

⁵² 張英磊. (2013). 由法經濟學及比較法觀點論環境罰鍰核科中不法利得因素之定位，中研院法學期刊. 13: 183-233.

of crime)⁵³ 相吻合。可以解釋為，當預期獲益 (Expected benefits) 高於預期成本 (Expected costs) 時，會促使犯罪者做出犯罪行為的決定⁵⁴。

從上述觀念可以看出法律的經濟學分析強調了在效率和正義之間取得平衡的重要性。它旨在創造高品質、符合社會期望的正義標準的法律和法律流程。這一方法通過兩個主要途徑來研究和分析法律：

運用法律經濟學原則分析法律的實證情況 (Positive economic analysis of law)：這種方法利用經濟原理來分析現有的法律現象，根據現實世界的事實 (Facts) 解釋法律事件。這是為了尋找理由以分析法律對個人和整個社會的影響⁵⁵。

規範的法律經濟學分析 (Normative economic analysis of law)：這種方法應用經濟原理來分析法律應該如何理想地建構 換句話說，這是利用法律經濟學原理來分析法律發展和司法程式的更有效方法⁵⁶。

總體來說，法律的經濟學分析既強調效率也重視正義，利用經濟原理來理解現有的法律體系，並提出改進建議，以實現更為有效的法律體系。

壹、法律經濟分析的起源

法律經濟學的概念起源於 18 世紀，通過切薩雷·貝卡裏亞 (Cesare Beccaria) 的著作，尤其是在他關於懲罰中的威懾為目的的懲罰觀念 (Deterrence)⁵⁷發展起來。貝卡裏亞的研究在 20 世紀由蓋瑞·貝克 (Gary Becker) 提出的「犯罪經濟模型」

⁵³ Somkiat Tangkitwanit and colleagues. (2013). **Project to analyze laws and criminal justice procedures with economics**. (Research Fund 2011) 18. 2

⁵⁴ 張英磊. (2013). **op.cit.** 183-233.

⁵⁵ Pokpong Chanwit. (2011). **op.cit.** p. 15.

⁵⁶ Ibid. p. 15.

⁵⁷ Pokpong Srisanit. (2010). Analysis of criminal punishment using the principles of judicial economics. **Journal of Law Thammasat University**. 3: 513.

(The economic model of crime)⁵⁸ 中得到進一步發展和解釋。自此，許多法律學者和經濟學家都為該完善其概念做出了許多貢獻⁵⁹。

貳、法律經濟學與犯罪預防

從法律經濟學的角度來看，法律被視為國家用來修改和威懾不良社會行為的工具 (Deterrence)。法律規定法律制裁 (Sanction)，用以制止不受歡迎的行為。此外，根據法律經濟學的原則，犯罪預防與最適刑罰 (Optimal criminal sanction)⁶⁰ 有關。針對每一種犯罪行為，研究其所應負的責任，並給予制裁規則 (Sanctioning rule)。這包括對制裁形式 (Form of sanction)、制裁幅度 (Magnitude of sanction) 以及發現違法行為並施加制裁的可能性的詳細審查 (Probability of detecting offenders and imposing sanctions)⁶¹。

參、犯罪經濟學模式

蓋瑞·貝克 (Gary Becker) 認為個人的犯罪決策，經常也是一種經濟學原則，透過理性計算的過程判斷 (Rational calculator)，是否可以從犯罪行為獲得利益，並且這個利益總是高於犯罪成本。在犯罪經濟學框架內，即犯罪經濟學模式 (The economic model of crime)，是基於對犯罪行為的預期懲罰 (Expected punishment) 或預期成本 (expect costs) 以及預期獲利 (expected benefits) 進行計算的⁶²。

⁵⁸ Pokpong Srisanit. (2010). **op.cit.** p. 513.

⁵⁹ Suntareeya Mueanpawong. (2008). The process of creating environmental justice. **Enviromental Jornal.** 12: 320.

⁶⁰ Pokpong Chanwit. (2011). **op.cit.** p. 15.

⁶¹ Ibid. p. 16.

⁶² 張英磊. (2013). **op.cit.** 183-233.

經濟犯罪模型中，引入了兩個額外的因素，即預期獲益(Expected benefit)和制裁幅度(Magnitude of the punishment)，作為關鍵的變數。因此，當個體認為犯罪行為的利益超過被逮捕和受罰的風險時，從事犯罪活動的機率就相對提高。

相反地，若與犯罪行為相關的成本增加，即能增加破案率、提升法律強制執行效率時，犯罪的風險隨之增加，將導致對犯罪或不法行為更有效的威懾，此種論點符合法律經濟學的觀點。從中，我們可以觀察到，預期的利益與預期的成本經常是一直成反比的。

當此一原則以數學公式呈現時，其中 B 代表預期獲益 (Expected benefits)，C 代表預期成本 (Expect costs)，而 O 代表最佳威懾 (Optimal deterrence)。犯罪經濟學模式，可以下列數學公式呈現。

$$O = C > B$$

肆、預期獲益 (Expected benefits)

預期獲益是指一個人預期在成功實施犯罪行為後，可預見到的收益。這可以被視為參與非法活動的動力或誘因(incentive)。預期獲益不僅包括可量化的獲益，還包括非金錢的優勢：例如從犯罪行為中獲得的滿足感。包括出於復仇而造成傷害、參與報復性的身體暴力，或通過性行為追求滿足感等行為。事實上，預期獲益不僅限於可量化的財務回報，更包含由犯罪行為帶來的滿足感和和不可量化的感受等方面⁶³。

伍、預期成本 (Expected costs)

犯罪行為的預期成本，或稱為「預期成本」，主要包括兩個與刑罰嚴重程度相關的成本和與被捕機率預期獲利相關的成本。

⁶³ Pokpong Srisanit. (2020). *op.cit.* p. 101.

一、刑罰輕重程度的成本

刑罰嚴厲或輕微程度所產生的成本，也被稱為(Magnitude of the punishment)指的是個體在被捕時所預期可能面臨的刑罰嚴厲程度。譬如，當犯罪行為產生的代價相當高昂時，犯罪者在考量並衡量後較可能決定不進行該行為。當他們考慮到冒著犯罪的風險，與從犯罪行為中預期的金錢獲益或其他利益相較，不值得冒險時，更可能會選擇不從事犯罪行為。因此，刑法或行政法規中規定高額罰金(款)作為處罰措施，將使得犯罪行為的成本明顯增加，應該能夠有效遏止發生不法行為。

然而，如果違法者同意支付罰金，因其預期自身可能從該違法行為中獲得的利益超過該罰金或違法行為成本，則該違法者可能同意支付該罰金⁶⁴。例如，工業廢棄物的製造者秘密丟棄工業廢棄物，通過合法、適當的方法處理工業廢棄物，需要的成本很高。如果隨意棄置工業廢棄物，縱然被發現或逮捕，只要支付相當低的罰金，比依規定處理廢棄物，所需成本顯然更低。因此，業者或行為人反而寧可接受違規所需面對的法律責任，而不願意遵守法規。從這個例子可以看出，為了有效阻止和預防不正當行為，責罰的程度規模需要考慮是否能達到處罰所要達成的目的。

二、被捕機率的成本

被捕機率所產生的成本，也稱為 (Probability of apprehension)，指的是參與犯罪行為的個體被捕、起訴或處罰的可能性或機會。例如，在棄置工業廢棄物等沒有受害人的情況下的犯罪行為或不法行為中，被發現的機會可能相對較低。這種低被捕機率，通常是犯罪行為人可以輕易做出選擇從事不法行為的重要因素。

⁶⁴ Pokpong Srisanit. (2020). *op.cit.* p. 102.

三、刑罰嚴重程度與被捕機率之間的關係

預期不當行為的成本 (Expected cost) ，是刑罰嚴重程度所產生的成本 (Magnitude of the punishment) 與被捕機率所產生的成本 (Probability of apprehension) 的總和，以數學方程中的變數 C 代表預期成本 (Expected costs) ，以變數 M 代表刑罰嚴重程度所產生的成本 (Magnitude of the punishment) ，以變數 P 代表被捕機率所產生的成本 (Probability of apprehension) 。這種關係在數學公式中表達如下：

$$C = M \times P$$

陸、根據法律經濟學原則的阻嚇犯罪行為策略

當透過法律經濟學的角度檢視預防犯罪的概念時，顯然可以看到參與犯罪行為的動機與掌控犯罪者預期獲益和成本的數學公式密切相關。事實上，決定是否犯罪涉及到一個預測、計算和權衡非法行為的風險和利益的過程。當犯罪行為的預期獲益超過預期成本時，個人更有可能參與此類行為。因此，一個有效封鎖犯罪行為的法律措施，必須著重於增加參與此類行為的預期成本。

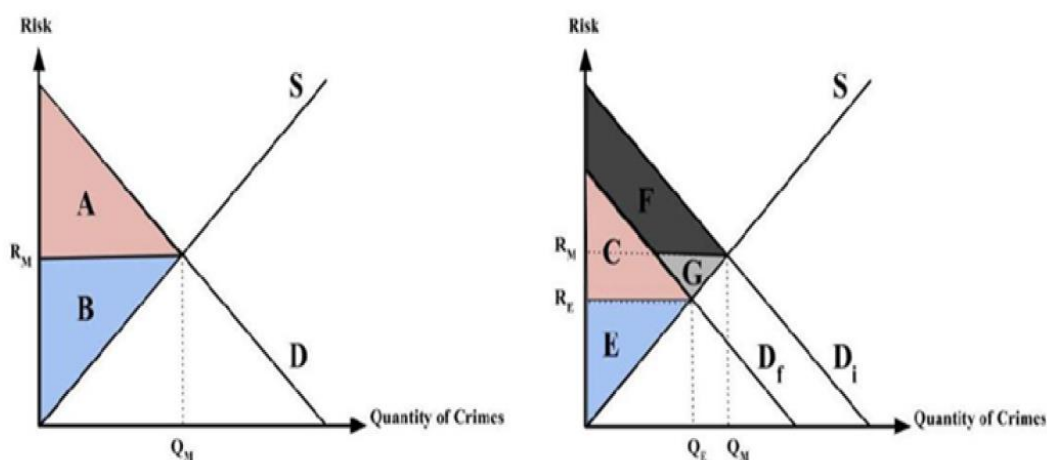
要實現最佳的威懾效果，關鍵在於考慮大幅增加與犯罪行為相關的成本。這可以通過加強刑罰的嚴重程度，灌輸對懲罰的恐懼來實現。然而，在被發現的機會微小的情況下，僅僅新增刑罰的嚴重程度可能不足夠。例如，在偏遠地區非法傾倒工業廢棄物等秘密活動中，被抓到的機會可能較低。在這種情況下，必須謹慎平衡提高預期成本，以充分降低預期獲益⁶⁵。

在討論符合方程式 $O=C>B$ 的思路下，該策略涉及將預期成本提高到一個程度，使潛在犯罪者因為減少預期獲益而放棄犯罪。新增預期成本涉及同時考慮刑罰的

⁶⁵ 張英磊. (2013). 由法經濟學及比較法觀點論環境罰鍰核科中不法利得因素之定位, 中研院法學期刊 13: 183-233.

嚴重程度和被捕機率。因此，調整法律框架以對犯罪行為施加適當的成本至關重要。包括提高刑罰的嚴重程度和增加被發現的機率。犯罪行為相關的利益和成本的結構因罪行類型而異，導致潛在犯罪者之間的決策過程存在差異⁶⁶。例如，一個人參與非法棄置工業廢棄物行為活動的決定，可能受到被逮捕的機會較低等因素的影響。

從法律經濟學的角度來看，法律可以看做是創造動機、控制行為和封鎖制止犯罪行為的工具。利用經濟工具解釋利益和成本的結構，依賴於法律機制和人類行為之間的相互作用。通過對罪行制定合適的懲罰，平衡刑罰嚴重程度和被捕機率，法律體系可以創建一個有效的機制來防止犯罪行為。這個過程涉及對風險和利益進行的平衡，並可以形成一個潛在犯罪者在參與非法活動之前考慮後果和風險的環境。



圖二：根據法律經濟學原則，阻嚇犯罪行為策略的圖表

資料來源：Schubert, Alexander. (2020).

⁶⁶ Schubert, Alexabder. (2020). What is the Optimal Level of Crime?. **Forensic Research & Criminology International Journal**. 8: 156-158.

第四節 徒刑的使用

徒刑是刑法中的一種懲罰手段，通常被視為僅次於死刑的第二嚴厲的懲罰⁶⁷。它可以是無期徒刑，或者是有期徒刑⁶⁸。無論是哪種形式，徒刑都直接影響罪犯的人身自由，將其排除在社會之外，以防止犯罪行為的再發生。徒刑旨在與所犯罪行相符，確保個體體驗到禁閉的痛苦和自由的限制。從歷史的角度來看，將個體禁閉的想法源於基督教修道院內的紀律不端案例，並通常被用於反省和贖罪⁶⁹。

隨著時間的推移，監禁罪犯的概念已經發展到包括矯正，旨在將個體轉變並協助重新融入社會。然而，監禁刑於國家在管理方面需要投入大量資源，無論是財政或是人力成本都需挹注相當的資源。為使此刑罰有效且符合國際標準，可以認為這是需要最高成本的刑罰之一⁷⁰。因此，針對任何犯罪行為設定徒刑的選擇，應該考慮其合適性和必要性。特別是在非法丟棄工業廢棄物的案例中，徒刑已被規定為刑罰之一，以提高對此類行為的遏制和預防效果。

總之，對於特定罪行而言，是否選擇實施徒刑應基於對其適當性和必要性深入檢討。特別是在像傾倒廢棄物這樣的非法活動的情況下，徒刑應該被立法作為綜合策略的一部分，以提高刑罰的嚴重程度。這種多方面的舉措對於實現有效的威懾和預防犯罪行為至關重要，同時要考慮監禁所需的大量資源。

⁶⁷ Jitti Tingsapat. (1993). **Criminal Law Part 1**. p. 854.

⁶⁸ Kiattikhajorn Wachanasawat. (2008). **Criminal Law Part 1 General Provisions**. p. 850.

⁶⁹ Solthon Kongwan. (2019). The concept of modern imprisonment enforcement and guidelines for developing legal measures regarding the enforcement of imprisonment in the Kingdom of Thailand. **Pathum Thani University Academic Journal**. 1: 93.

⁷⁰ Pokpong Srisanit. (2020). **op.cit**. p. 221.

第五節 罰金刑的使用

罰金是一種刑事制裁，屬於金錢形式的懲罰，即從犯罪者的財產中強制徵收的一種處罰⁷¹，以彌補犯罪行為造成的損害⁷²。與徒刑相比，罰金不僅用於懲罰，並可能直接影響罪犯的經濟資源。與徒刑相比，儘管徒刑和罰金在執行懲罰方面可能產生相似的效果，皆能使犯罪者對刑罰感到恐懼，進而抑制他們從事同樣性質的犯罪行為⁷³。此外，興建、維護監獄設施以及囚犯福利和矯正相關的費用相比，罰金被認為對國家更具效益。

在比較罰金和徒刑時，除了它們在法律後果的相似之處外，罰金的優勢在於對國家來說成本更低。因為政府無需承擔興建和維護矯正設施或提供囚犯福利相伴而來的支出。罰金不僅適用於直接在刑法下的刑事犯罪，還在其他法律條文中規定，包括隨意傾倒工業廢棄物等罪行相關的條文。

在處理非法丟棄垃圾的情境中，罰金成為一種更為合適的主要刑罰手段。它提供了一種經濟效益的替代方案，既能封鎖犯罪行為，又能避免徒刑所帶來的財政負擔。然而，罰金不應被單獨看待；它們可以作為輔助刑罰，與徒刑相輔，提高整體威懾和預防的效果。因此，在任意傾倒工業廢棄物這樣的罪行中，如將罰金作為主要刑罰手段，並輔以徒刑，便能最大程度地增強威懾效果，有效地防止相關罪行再次發生。

然而，在檢視現今泰國對非法處置工業廢棄物案件，實施罰金(款)的執行情況時，可以發現泰國現在明顯規定採用固定比率的罰金(fixed rate fine)⁷⁴，即事先設定一定金額的罰金。這種固定金額的罰金是根據法律規定的，並不符合與該國

⁷¹ Pokpong Chanwit. (2011). *op.cit.* p. 21

⁷² Pramote Sermsilatham. (2021). *op.cit.* p. 70

⁷³ Pokpong Srisanit. (2020). *op.cit.* p. 237

⁷⁴ *Ibid.* p. 237.

經濟狀況相對應的通膨情形。因此，隨著通膨率通膨波動，固定罰金發生變化，導致最初判定的罰金貶值，最終削弱對犯罪活動的影響。

此外，在相同的情況下，通過固定罰金施加處罰意味著等額的金額，遵從法律之前人人平等的原則 (equality before the law)⁷⁵。然而，考慮到由於個人經濟和社會地位的不同而導致的財務能力落差，每個人支付罰金的能力基本上並不相同。因此，固定的罰金規定 (fixed rate fine)，未必平等。此外，從法律經濟學的角度來看，在非法工業廢棄物處置案件中，犯罪的決定性因素往往源自於行為者預期犯罪行為帶來的利益超過支付固定罰金(fixed rate fine)⁷⁶。這可能導致傾向支付罰金，將成為從事此類犯罪行為的代價。

基於以上這些原因，現今泰國實施固定罰金的做法並不足以有效威懾非法行為，特別是非法行為反而帶來巨大利益的情況下。為解決這一問題，以下提出了在金錢罰金框架內確定罰金的替代方法，旨在提高對涉及非法工業廢棄物處置的罪行總體威懾措施的有效性。

壹、單位制罰金 (Penalty units)

單位制罰金的概念源於澳洲維多利亞州，於 1981 年通過制定《罰金和刑罰法》(Penalties and Sentences Act 1981)⁷⁷而產生。這一立法措施旨在應對由經濟通膨引起的問題，該通膨導致金融罰金實際價值的下降。隨後，《刑事法修正法》(Crimes Legislation Amendment Act 1992) 進一步修正並擴張這些規定，促使此一規定融入到澳洲管轄範圍內的其他州的法律體系中⁷⁸。

⁷⁵ Pokpong Srisanit. (2020). *op.cit.* p. 239.

⁷⁶ Pramote Sermsilatham. (2021). *op.cit.* p. 72.

⁷⁷ Israkun Unhaket. (2013). *Criminal Fines System*. P. 26.

⁷⁸ Pokpong Srisanit. (2020). *op.cit.* p.243.

「單位制罰金」的概念是透過立法部門⁷⁹規定每個犯罪基準的單位，並根據該罪行的嚴重程度進行調整，以取代了固定率罰金的應用的方式⁸⁰。並授予管理方有權力根據當時的經濟情況考慮通貨通膨率，來確定罰金單位的價值。並且頒布法令授權每年制定罰金單位的價值，並公布更改的罰金率給社會大眾，而無需再向國會提出法律修正案的相關程序。

在該制度中，負責確定刑罰的起訴方，根據立法機關規定的單位值計算罰金。單位價值的換算反映了行政當局每年發布的經濟變化，而導致淨罰金。這些淨罰金代表了違法者因其各自的罪行而遭受的實際罰金率⁸¹。

這一機制可以通過數學公式簡潔地表達，其中變數 F 代表淨罰金(Fine)， U 代表法律當局確定的罰金單位數量(Unit)， V 代表行政當局設定的罰金單位價值(value)。這種關係在數學上被公式化如下：

$$F = U \times V$$

因此，這個方程式概括了單位制罰金制度，提供了對罰金單位、其分配值和產生的淨罰金之間相互作用的表示。

貳、基於經濟狀況的懲罰 (Day-fine)

基於經濟狀況的懲罰，又稱為「每日罰金」(Day-fine) 或「基於收入的罰金」，構成了一個可變的罰金制度 (Variable fine system)⁸²。換言之，根據違法者的經濟狀況進行調整⁸³。這一制度在歐洲國家被廣泛採用，尤其在第二次世界大戰前受到斯堪地那維亞國家的深刻影響。旨在應對執法方面的挑戰，導入了一種根據罪

⁷⁹ Pokpong Srisanit. (2020). **op.cit.** p. 243.

⁸⁰ Israkun Unhaket. (2013). **op.cit.** p. 27.

⁸¹ Pongpong Srisanit. (2020). **op.cit.** p. 243

⁸² Israkul Unhaket. (2013). **op.cit.** p. 30.

⁸³ Ibid. p. 31.

犯的經濟狀況計算罰金的方法。這種方法目的在建立與個人 (Individualization)⁸⁴ 經濟狀況相關的符合比例和公正的罰金⁸⁵。此外，每日罰金制度也解決了由於經濟通膨導致罰金價值下降的問題⁸⁶。

每日罰金機制通過考慮違法者的每日收入來計算，從而在罰金和違法者的經濟基礎之間建立關聯。這種方法將違法者的罰金天數和其每日收入作為計算罰金的基礎。在確定罰金天數時，將考慮違法行為的嚴重性。如果違法行為造成了嚴重危害或者造成大量損失，將採用更多的日數用於計算。這表明日數與違法行為的嚴重程度和危害性相關聯。而對於違法行為者每日收入的考量，則是通過考慮個人收入(Individualization)、支出和財產等因素進行個案化處理。這可以通過公司更好地說明。通過設定 DF 作為日罰的變數 (day-fine)，設定 D 作為罰金天數的變數(day)，設定 I 作為違法行為者每日收入的變數(income per day)⁸⁷，這種關係可以通過以下公式表達：

$$DF = D \times I$$

這個方程式展示了每日罰金如何運作，清楚地呈現了罰金期限、每日收入和產生的罰金之間的相互作用。通過考慮罪行的嚴重程度和對罪犯的經濟影響，每日罰金制度期待實現一種更加公平和正義的懲罰形式，增強懲罰的個別化。

基於經濟狀況的懲罰（每日罰金）和罰金單位制度比較

經過檢視，每日罰金制度和單元罰金制度之間存在密切的相似之處，但在其應用中存在差異。雖然兩種制度都應對了因為通膨而產生罰金貶值的挑戰，但每日罰金制度更提供了額外的優勢。

⁸⁴ Pokpong Srisanit. (2020). **op.cit.** p. 247.

⁸⁵ Israkul Unhaket. (2013). **op.cit.** p. 31.

⁸⁶ Ibid. p. 35.

⁸⁷ Pokpong Srisanit. (2020). **op.cit.** p. 244.

每日罰金制度不僅解決了罰金貶值的問題，更縮小罪犯支付罰金能力的差距。因為違法者的每日收入將列為考量，這個制度在實施中引入了程度上的個別化，更好的確保了實施時的公平和正義。此外，它更有助於減少罪犯履行能力的差異。

總而言之，每日罰金制度不僅有助於解決由於經濟因素導致罰金貶值的問題，更能夠緩解罪犯支付罰金能力的不平等。這樣的多方效益使得每日罰金制度相對於罰金單位制度而言，成為一種更加有效和公正的懲罰執行方法。

參、根據從違法犯罪所獲得的利益計算的罰金

根據從違法犯罪所獲得的利益計算的罰金的概念源於一種觀念，即當一項罪行造成重大損失時，刑罰應與該損失成比例。這符合歷史上以報復和補償為目的的懲罰理念。然而，隨著懲罰目標轉向威懾，根據從違法犯罪所獲得的利益計算的罰金的概念變得更為重要。

這種根據從違法犯罪所獲得的利益計算罰金的方式符合法律經濟學原則，它增加了對犯罪者的預期成本，以期從罪行中獲得的利益。這種機制目的在減少預期利益，藉此阻止犯罪的發生。與固定罰金或刑罰單位不同，這種方法考慮了犯罪者的經濟狀況，並確立了與預期獲益相稱的刑罰。

泰國目前的固定罰金制度，甚至是刑罰單位制度，在威懾具有高預期獲益的罪行方面並不夠有效。因此，根據預期獲益比例提高罰金是一種增強威懾效果、也更符合罪行背後經濟合理性的策略。這一原則已納入泰國的各種法律框架，包括 1992 年的《環境品質促進及保育法》（Enhancement and Conservation of National Environmental Quality Act）⁸⁸。

然而，值得注意的是，這種方法並未得到一致的應用，特別是在類似非法排放工業廢棄物的案例中，其中將對環境產生顯著的影響。我們需要更進一步考慮

⁸⁸ Pokpong Srisanit. (2020). *op.cit.* p. 248-249.

和完善這個方法，以確保它在各種罪行中的有效性，並能夠應對特定挑戰，如環境損害。

第三章 臺灣與泰國工業廢棄物清理法制分析

第一節 臺灣工業廢棄物之法律規範

壹、臺灣工業廢棄物的定義和類型

一、現行「廢棄物清理法」規定

廢棄物清理法第 2 條

本法所稱廢棄物，指下列能以搬動方式移動之固態或液態物質或物品：

- 一、被拋棄者。
- 二、減失原效用、被放棄原效用、不具效用或效用不明者。
- 三、於營建、製造、加工、修理、販賣、使用過程所產生目的以外之產物。
- 四、製程產出物不具可行之利用技術或不具市場經濟價值者。
- 五、其他經中央主管機關公告者。

前項廢棄物，分下列二種：

一、一般廢棄物：指事業廢棄物以外之廢棄物。

二、事業廢棄物：指事業活動產生非屬其員工生活產生之廢棄物，包括有害事業廢棄物及一般事業廢棄物。

（一）有害事業廢棄物：由事業所產生具有毒性、危險性，其濃度或數量足以影響人體健康或污染環境之廢棄物。

（二）一般事業廢棄物：由事業所產生有害事業廢棄物以外之廢棄物。

前項有害事業廢棄物認定標準，由中央主管機關會同中央目的事業主管機關定之。

游離輻射之放射性廢棄物之清理，依原子能相關法令之規定。

第二項之事業，係指農工礦廠（場）、營造業、醫療機構、公民營廢棄物清除處理機構、事業廢棄物共同清除處理機構、學校或機關團體之實驗室及其他經中央主管機關指定之事業。

第 2 條之 1

事業產出物，有下列情形之一，不論原有性質為何，為廢棄物：

一、經中央主管機關認定已失市場經濟價值，且有棄置或污染環境、危害人體健康之虞者。

二、違法貯存或利用，有棄置或污染環境之虞者。

三、再利用產品未依本法規定使用，有棄置或污染環境之虞者。

，「事業廢棄物」是指事業活動產生非屬其員工生活產生之廢棄物，包括有害事業廢棄物及一般事業廢棄物。

一、有害事業廢棄物：由事業所產生具有毒性、危險性，其濃度或數量足以影響人體健康或污染環境之廢棄物。

二、一般事業廢棄物：由事業所產生有害事業廢棄物以外之廢棄物。

前項有害事業廢棄物認定標準，由中央主管機關會同中央目的事業主管機關定之。

游離輻射之放射性廢棄物之清理，依原子能相關法令之規定。

第二項之事業，係指農工礦廠（場）、營造業、醫療機構、公民營廢棄物清除處理機構、事業廢棄物共同清除處理機構、學校或機關團體之實驗室及其他經中央主管機關指定之事業。

二、現行廢棄物類型

的廢棄物清理法在第 2 條第 1 項規定廢棄物定義的基礎上，同條第 2 項進一步規定區分廢棄物兩大類型，即一般廢棄物與事業廢棄物。後者再細分為一般的事業廢棄物與有害的事業廢棄物。舉例來說，所謂的有害事業廢棄物可以是：

一、事業體所拋棄之事業產出物，並且具有毒性且濃度足以影響人體健康

二、事業之製程產出物不具市場經濟價值，而此種物品具有污染環境之危險性。

無論如何，廢棄物概念必須以廢清法第 2 條第 1 項各款作為解釋基礎。在確定特物係屬廢棄之後，緊接著依同條第 2 項所規定之附帶的組成要素，最終評價為一般廢棄物或事業物。

除了廢棄物清理法第 2 條規定之外，同法第 2 條之 1 另規定所謂的「擬制廢棄物」，並且同樣採取變項式的規範。依此，廢棄物之定性無需考量廢棄物清理法第 2 條第 1 項所規定的定義，只要滿足於該條列舉三組成要素之一即為已。⁸⁹

綜上，「廢棄物清理法」旨在明確規範及界定所謂的「事業廢棄物」，並將其分為兩類：「有害事業廢棄物」和「一般事業廢棄物」。有害事業廢棄物所指涉的是那些具有毒性或危險性、濃度或數量足以對人體健康或環境造成不良影響的廢棄物；而一般事業廢棄物則包含其他不屬於有害事業廢棄物範疇的廢棄物。

此法律框架明確列舉了特定類型的事業所產生的廢棄物，如農工礦廠（場）、營造業、醫療機構、公民營廢棄物清除處理機構、事業廢棄物共同清除處理機構、學校或機關團體的實驗室，以及中央主管機關所特別指定的事業。

此外，根據第 2 條之 1 的規定，特定情況下的物品被視為廢棄物，即便其原有性質為何。這些情況可能包括中央主管機關認定物品已失去市場價值、可能導致棄置、環境污染或危害人體健康；物品遭違法貯存或使用，可能導致棄置或環境污染；或是再利用產品未依法規定使用，可能導致棄置或環境污染。

總體而言，該法案旨在為不同種類的事業廢棄物製定明確的定義，並提供相關標準以保護環境和公眾健康。

貳、臺灣工業廢棄物處置的標準

在廢棄物管理法規中，明確規定了企業處理廢棄物的管道及相關責任。根據法規規定，企業處理廢棄物有多種方式：

第一種管道是自行清除、處理廢棄物，這意味著企業可以獨立進行廢棄物處理。

第二種管道是共同清除、處理，即通過申請向主管機關設立共同清除處理機構來處理特定類型的廢棄物。

⁸⁹ 古承宗. (2023). 淺論「廢棄物清理刑法」的廢棄物概念。《台灣法律人》，19 期，60-70 頁。5.

第三種方式是委託清除、處理，包括委託公民營廢棄物清除處理機構、經執行機關同意後委託其處理、委託目的事業主管機關自行或輔助設立的廢棄物清除處理設施、委託主管機關指定的公營事業或依據相關法規設立的民間機構處理廢棄物等多種方式。

對於不同管道的廢棄物處理設施，法規明確規定了專業科技人員的配置、設施操作記錄以及其他必須遵守的事項。此外，在指定公告的事業單位中，進行自行清除處理的企業必須具備一定條件，並需遵守中央主管機關和中央目的事業主管機關所制定的管理辦法。

共同清除處理機構、輔助設立的廢棄物清除處理設施、委託主管機關指定的公營事業等機構也需符合相應的條件，並遵循相關管理規定。在某些情況下，對於一般廢棄物的清除處理設施，經執行機關受託處理特定廢棄物後，仍需具備餘裕處理能力，同時需按照設定的收費標準收費，並配合相關申報程序。

值得注意的是，一般廢棄物或一般事業廢棄物的清除處理設施不得合併處理有害廢棄物。同時，中央主管機關在不影響執行機關處理一般廢棄物情況下，有權統一調度利用現有廢棄物清除處理設施，受調度方不得拒絕。

此外，根據第 29 條規定，若廢棄物處理設施有餘裕處理能力，經地方主管機關許可，可以向其他事業提供處理能力，不受其他法規限制。

最後，根據第 30 條規定，企業委託清理廢棄物時需與受託人共同承擔廢棄物清理責任。如果受託方未能妥善處理廢棄物，且委託方未盡責任，則委託方也需與受託者一同承擔廢棄物清理及環境改善責任，中央主管機關會定期稽核並確定合理的注意義務和管理措施。

參、工業廢棄物處理過程中的利害關係人

根據廢棄物清理法規定，企業委託他人清理廢棄物時，委託方和受託方對廢棄物負有共同的清理責任。如果受託方未能妥善處理廢棄物，且委託方未盡責任，

則雙方都需要承擔清理和環境改善的責任⁹⁰。此外，中央主管機關制定了一系列準則和標準，用於確定企業的注意義務和管理措施。

針對特定規模的事業單位，中央主管機關要求其提交廢棄物清理計畫書，並按規定向相關主管機關申報廢棄物的產出、處理等情況。有關廢棄物清理計畫書的格式和審批程序由中央主管機關和中央目的事業主管機關共同制定。對於需要進行環境影響評估的事業單位，其廢棄物清理計畫書需在環境影響評估通過後由主管機關核准⁹¹。

在一些特殊情況下，如果事業單位無法自行處理廢棄物或找到合適的廢棄物處理機構，目的事業主管機關有權要求其暫時儲存廢棄物或自行設定處理設施。對於有害廢棄物，中央主管機關可以會同目的事業主管機關設立特殊設施進行儲存、清除或處理。

此外，針對廢棄物的輸送和處理，相關機構需要向主管機關申請核發許可檔案。特別是有害廢棄物的處理更需要經過中央主管機關的同意，並且有明確的限制，需在國內處理或者僅限於輸出至特定國家或地區。

肆、處理非法工業廢棄物之法律措施

一、刑事處罰

根據《廢棄物清理法》定，對於廢棄物處理過程中的違法行為，法律規定了嚴格的處罰標準。這些法規旨在保護環境、促進廢棄物管理，並確保公眾和環境的安全。

⁹⁰ 非法棄置廢棄物涉及之法律責任。取自臺灣高等檢察署。<https://www.tph.moj.gov.tw/4421/4475/632364/906449/post>.

⁹¹ 蔡金保. (2009). 廢棄物清理法制運作之研究 (碩士論文). 國立中正大學. 107 頁。

依據廢棄物清理法第 45 條規定，造成嚴重後果的違法行為將面臨極其嚴厲的刑事處罰。如導致人員死亡，可能被判處無期徒刑或七年以上有期徒刑，並可能面臨高達新臺幣三千萬元的罰金。而對於導致重傷或危害人體健康者，刑期及罰金額度也相應減少。

若致重傷者，將處以三年以上十年以下有期徒刑，並可處以新臺幣二千五百萬元以下的罰金；

若導致危害人體健康或疾病，則處以一年以上七年以下有期徒刑，並可處以新臺幣二千萬元以下的罰金。

在第 46 條中，列舉了多種違法行為及其相應處罰。無論是任意拋棄有害廢棄物、未按規定處理或提供廢棄物填埋、未取得處理許可檔案等情況，都可能面臨一年以上至十年不等的有期徒刑，得併科新臺幣一千五百萬元以下罰金。甚至，涉及公民營廢棄物處理機構的負責人或相關人員提供虛假證明的行為也會受到法律制裁⁹²。

此外，根據第 47 條規定，除了對個人行為的處罰外，法人或自然人也將面臨相應的罰金。而根據第 48 條，故意提供虛假申報或在業務檔案中不實陳述也將受到三年以下有期徒刑、拘役或高達新臺幣一千萬元的罰金處罰。

這些法規的實施旨在強調對環境保護和合法廢棄物處理的重視，以確保公眾安全和環境健康。法律的嚴厲處罰旨在有效打擊違法行為，維護社會秩序，鼓勵合規行為，以實現環境可持續發展的目標。

二、行政處罰

根據廢棄物清理法規定，嚴禁以下行為：首先，未按規定期限內清除廢棄物或未攜帶廢棄物處理所需檔案的個人或實體將面臨相應罰鍰。金額根據違規程度

⁹² 廢棄物清理法第 46 條第 3、4 款規定之最高法院裁判見解彙整及註釋 2022。取自中華民國檢察官協會。邱志平著。<http://www.prosecutors.org.tw/NewsContent.aspx?id=14709&type=4>

從新臺幣六萬元至三十萬元不等，並有可能追加沒收清除設備、處理設施或設備。對於情節嚴重者，可能會受到一個月以上至一年以下的停業處罰或被要求部分或完全停工。

此外，對於違反一般事業廢棄物處理規定的行為也將面臨罰鍰，涉及違反的法規包括但不限於第二十八條、第三十一條、第三十四條等規定。違規機構或個人將面臨新臺幣六千元至三百萬元不等的罰鍰，且經限期改善仍未達標者將受到進一步處罰。

對於有害廢棄物處理規範的違反行為同樣嚴厲制裁，其中包括未能遵守有害廢棄物的處理規定或涉及違反第三十六條等規定。違法行為將受到新臺幣六萬元至一千萬元不等的罰鍰，並可能受到停工或停業等更嚴厲的制裁。

對於其他違法行為，如公民營廢棄物清除處理機構未能遵守第十二條規定、申報檔案虛假等，罰鍰數額亦在新臺幣六千元至三百萬元之間，且如屆期仍未改善，將面臨按次處罰。

此外，根據第 60 條所述的情節嚴重的定義，指的是在一年內發生兩次以上的同一違法行為，非法廢棄物棄置行為，或造成嚴重環境污染等情形。這些行為將面臨更嚴厲的處罰，以確保環境和公眾健康的安全。

對於依第 63 條之 1 規定，處罰的金額將依據廢棄物的污染程度和危害程度進行裁定，旨在確保違法行為的嚴重性得到有效制止。對於違法者獲取的利益超過法定罰鍰最高限額的情況，將對其實施更高額度的罰鍰。

最後，當該條例於 1974 年 11 月 20 日制定時，尚未有「一行為不二罰」的概念存在。第 64 條規定「依本法處罰鍰案件，涉及刑事責任者，應分別處罰。」此一規定旨在區分行政罰與刑事罰的不同目的及法律效果，因此規定對牽涉刑事責任的案件應進行分別處罰，具有其當時的立法意義。

然而，隨著 2011 年 11 月 23 日公布《行政罰法》第 26 條：

一行爲同時觸犯刑事法律及違反行政法上義務規定者，依刑事法律處罰之。但其行爲應處以其他種類行政罰或得沒入之物而未經法院宣告沒收者，亦得裁處之。

前項行爲如經不起訴處分、緩起訴處分確定或爲無罪、免訴、不受理、不付審理、不付保護處分、免刑、緩刑之裁判確定者，得依違反行政法上義務規定裁處之。

第一項行爲經緩起訴處分或緩刑宣告確定且經命向公庫或指定之公益團體、地方自治團體、政府機關、政府機構、行政法人、社區或其他符合公益目的之機構或團體，支付一定之金額或提供義務勞務者，其所支付之金額或提供之勞務，應於依前項規定裁處之罰鍰內扣抵之。

前項勞務扣抵罰鍰之金額，按最初裁處時之每小時基本工資乘以義務勞務時數核算。

依第二項規定所爲之裁處，有下列情形之一者，由主管機關依受處罰者之申請或依職權撤銷之，已收繳之罰鍰，無息退還：

一、因緩起訴處分確定而爲之裁處，其緩起訴處分經撤銷，並經判決有罪確定，且未受免刑或緩刑之宣告。

二、因緩刑裁判確定而爲之裁處，其緩刑宣告經撤銷確定。

第 26 條修正條文，確立了「一行爲不二罰」和「刑事程序優先」的原則。這表示一旦違法行爲涉及行政罰與刑事罰，優先適用刑事程序，並且不允許對同一行爲進行重複處罰。因此，根據新的法律原則，《廢棄物清理法》第 64 條所規定的「應分別處罰」原則，已經不再符合現行法律的要求。因此，根據最新的法律要求，相關機構應按照《行政罰法》第 26 條所規定的「一行爲不二罰」和「刑事程序優先」原則來辦理相關案件。

表一：民事、刑事與行政處罰制度之比較

項目/責任	民事	行政	刑事
發動機制	受害人	行政機關主動	檢察官（原則）
決策機制	法院	行政	法院
效果種類	損害賠償 （金錢賠償為主、 作為或不作為之請求）	罰鍰、停工、吊銷許可或執照等不利益之處分。	死刑、無期徒刑、 有期徒刑、罰金等。
道德非難性	低	中	高
事前或事後	原則上為損害發生後	包括事前預防 （如未經許可、或未 申報記錄）或是事後 處罰	損害發生後

資料來源：由法經濟學及比較法觀點論環境罰鍰核科中不法利得因素之定位，作者自行整理。

第二節 泰國工業廢棄物之法律規範

壹、泰國工業廢棄物的定義和類型

一、工業廢棄物的定義

根據工業局的定義，工業廢棄物是指因工業操作產生的被丟棄的資料、污染物或物質。其中包括從原材料接收、生產、品質控制、污染控制、機器或設備的維護和修理，到工業設施內建築物的拆卸或建造等一系列活動。同時也包括這些活動產生的爐渣、廢水或殘留物。

此外，這還包括根據法律規定的危險廢棄物，這些危險廢棄物可能來自位於工業設施內的辦公室或工人住所。這些涵蓋了整個工業設施範圍內的辦公室或工人住所產生的危險廢棄物⁹³。

二、工業廢棄物的類型

根據工業局提供的工業廢棄物定義，工業廢棄物可以分為兩類。

第一種方法將根據工業廢棄物的危險性進行分類：

危險性工業廢棄物（Industrial Hazardous Waste）：這一類別包括已棄置的材料或物質，不再使用並受到有害物質污染。此類危險物質的例子包括但不限於易燃材料、腐蝕性物質和有毒物質。

非危險性工業廢棄物（Industrial Nonhazardous Waste）：這一類別包括不再使用且不包含有害物質的材料或物質。這些材料對環境不構成威脅。

此外，還有一種基於污染控制部門為應對與非法棄置工業廢棄物相關的法律違規問題而承認的工業廢棄物類型的方法進行分類，該分類如下：

（一）、工業廢棄物的類型：已棄置或未使用材料

根據工業部關於廢棄物或未使用物質處理的公告 2005 以及工廠離境法法條 1992：

工業部已發佈公告明確規定了「廢棄物或未使用物質」定義如下：「廢棄物或未使用物質」係指所有不再使用的材料或因工廠運營而產生的廢棄物。這包括從原材料廢棄物，生產過程中產生的廢棄物，產生廢棄物的不合格產品，以及具有危險成分的廢水。

⁹³ Department of Industrial Works. (2011). **Manual of Good Practices for Treatment Services Eliminate industrial waste Factory classification structure for industrial management types 101, 105 and 106**. Retrieved May 18, 2022, from <http://webintra.diw.go.th/iwmb/form/factory1.pdf>

然而，這個定義不包括來自辦公室、工廠內的居住區和食堂所產生的無害廢棄物或未使用物質，也不包括符合公共衛生法的放射性廢棄物，以及通過指定管線送往工廠外部進行處理的廢水⁹⁴。

(二)、化學廢棄物來自工業過程

「工業過程中的化學廢棄物」指的是根據《工業部有害物質清單公告》（2013）中列明的有害物質清單，根據《危害物質法》（1992）的要求，包括不再使用且含有成分或受到有害物質污染的廢棄的資料或物質⁹⁵。

(三)、工業廢棄物之塵埃和顆粒物

根據《公共衛生法》（1992）定義，「工業廢棄物之灰塵和顆粒物」一詞包含來自道路、市場、動物屠宰區域或其他來源的紙張、布料、食物殘渣、產品殘留物、材料殘餘物、塑料袋、食物容器、灰燼、動物糞便、動物屍體或任何其他碎片。此定義還包括來自社區的受污染的灰塵和顆粒物，以及有毒或危險的灰塵和顆粒物⁹⁶。

換句話說，這一定義將來自各種來源的多種材料視為工業廢棄物之一，其中可能包括來自市場、道路、動物屠宰區域等地的各種碎片和殘餘物。同時，這也包括了受污染、有毒或危險的灰塵和顆粒物，這些可能對公共衛生和環境產生損害。根據法規，應該對這類工業廢棄物進行適當的處理和管理，以確保其不對周圍環境和人類健康造成不良影響。

⁹⁴ Waste and Hazardous Substance Management Bureau Pollution Control Department Ministry of Natural Resources and Environment. (2015). **Manual on Actions against Offenders Case of illegal dumping of industrial waste**. p. 46.

⁹⁵ Ibid. p. 23.

⁹⁶ Ibid. p. 46.

貳、泰國工業廢棄物處置的標準

企業經營者現場處理工業廢棄物的標準，包括：

一、填埋

在泰國，透過填埋現場處理工業廢棄物應設有系統以防止滲漏，實施定期滲漏檢測程序，配置排氣系統，以及針對特定類型或類別的廢棄物適用的廢水處理系統。此類作業需獲得泰國工業部的批准。

二、廢棄物焚燒

非危險工業廢棄物的焚燒應採用受控排放的方式，以符合科技環境部制定的標準，該標準詳細規定於 1997 年 6 月 17 日有關焚燒爐空氣排放管制的公告中。嚴格禁止焚燒危險工業廢棄物，除非事先獲得泰國工業部的批准。替代性管理方法：諸如堆肥、填埋覆蓋和重複使用等替代性廢棄物管理方法必須獲得泰國工業部的批准。

三、工廠業者進行工業廢棄物處理

將其送至接受處理的工廠時，須向有關機構申請將廢棄物排放至工廠範圍外的許可。

外包設施進行現場工業廢棄物處理：將工業廢棄物處理外包給外部設施的企業經營者，必須申請許可以運送廢棄物離開工廠區域。經營者應提供有關廢棄物、管理程序以及負責處理廢棄物的授權實體的詳細信息。這些信息應使用工業部指定的表格申請，以便對處理方法進行分類。在進行任何運送之前，必須獲得工業部的批准，以確保合法的處理方法。

在將廢棄物運送至廢棄物管理設施的過程中，如果廢棄物屬於危險類型，指定的運輸業者必須獲得相關當局的授權，並由原廠或工業廢棄物管理服務提供者指定為正當的代表運輸業者。此外，每一批次危險廢棄物的運輸必須使用運輸清單。

參、工業廢棄物處理過程中的利害關係人

一、廢棄物生成者的責任

根據工業部關於廢棄物或未使用物質處置的公告 2015，第 2 條定義了廢棄物生產者的責任和義務。具體來說，廢棄物生產者不得在工廠區域內保留廢棄物或未使用的物質超過 90 天。廢棄物生產者並有義務指定一名環境專家監督環保系統、制定應急應變計劃、配置緊急應對設施，並禁止未經授權變將廢棄物或未使用的物質運出廠區。

此外，危險廢棄物必須交由經授權的處理廠商、運輸業者或處置設施處理。每當危險廢棄物運出廠區時，都必須附上運輸清冊。廢棄物生產者有義務透過透過電子通報的方式主動提供每一次的運輸情形，並需要進行定期的廢棄物檢查，並在發生遺失、事故、不當處置或秘密傾倒等情況下承擔法律責任。

此外，直到廢棄物處置設施接收廢棄物之前，廢棄物生產者須主動向工業部提交年度報告。該報告應包括廢棄物運輸、檢查和責任承擔的詳細信息，確保遵守廢棄物生產者與廢棄物處置設施之間的合約內容。

二、運輸業者的責任

廢棄物廢棄物收集者和運輸者這一詞指的是持有廢棄物或未使用物質進行運輸的個人，以及在收集或儲存地點持有廢棄物或未使用物質，或參與廢棄物或未使用物質的運輸。根據泰國工業部有關有害廢棄物運輸文件系統的公告 2014 的定義：

如果廢棄物生成者或廢棄物處理設施指定代表來進行害廢棄物的收集和運輸，其選擇必須遵守工業部制定的標準和程序。指定的代表與運輸中介共同承擔的法律責任 (Liability)，負責以下事項：

- (一)、遵守有害廢棄物運輸文件系統的公告 2003。
- (二)、遵從有關危險物質陸地運輸的委員會解析 2002。

(三)、在每年的 3 月 1 日之前，按照提供的模板向工業部提交年度報告。
廢棄物收集者和運輸者必須確保在廢棄物運輸過程中遵守這些法規，履行工業部制定的報告義務。

三、 廢棄物處理運營商的職責

「廢棄物處理和處置操作者」 指的是擁有廢棄物或未使用物質的工業經營者。根據泰國工業部關於有害廢棄物運輸文件系統的公告 2004，以及從事廢棄物分離、填埋或其他歸類為第 105 類工廠的廢棄物管理活動的工廠：

負責處理或處置廢棄物或未使用物質的經營者必須遵守由工業部制定的有關廢棄物管理的法規標準和程序。具體的責任包括：

(一). 根據工業部發放的工廠營業許可的條件，合法處置和處理廢棄物或未使用物質。

(二). 向服務使用者通報授權的廢棄物管理操作類型，並提交工廠營業許可的副本。

(三). 使用運輸清單，並遵守有關危險物質陸上運輸的委員會解析 2002。

通過電子通訊向工業部提供接收廢棄物或未使用物質的信息，並對廢棄物或未使用物質承擔法律責任。在處理和處置操作之後，經營者必須提供來自註冊實驗室的化學和物理分析結果，並保留這些記錄至少 3 年以供查存。

(四). 確保擁有知識豐富的環境管理團隊，遵守有關工廠類型和大小的工業部公告，並實施控制污染物排放或任何環境影響的措施。

(五). 定期為從事廢棄物管理的員工進行培訓，以確保正確和安全的程序。

制定應急應對計劃，應對例如洩漏、化學物泄漏、爆炸或突發事件等事故，如附件 3 所述。

(六). 在設施內提供足夠的安全設備和緊急應對工具，並明示通往安全區域的逃生路線。

肆、非法處理工業廢棄物之法律措施

在檢視泰國有關非法處理工業廢棄物的法律責任模式時，受到 1992 年《工廠法》（Factory Act）和 1992 年《危險物質法》（Hazardous Substances Act）等相關法律的規範，明顯可見泰國主要採取刑事處罰的法律措施。同時，也實施監管措施，形成了一種綜合的方法。執法措施可以分為以下四種情況：

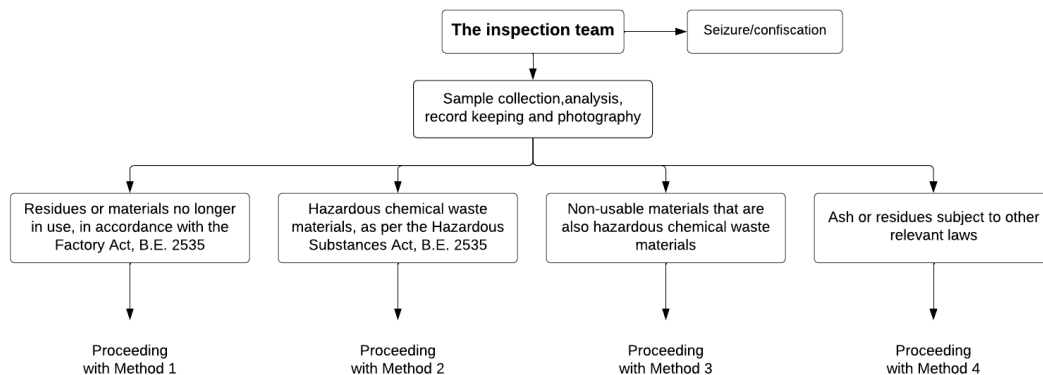
Type 1: Non-usable materials or residues under the Factory Act of 1992. 根據 1992 年《工廠法》，不可使用的材料或殘留物。

Type 2: Hazardous chemical waste materials under the Hazardous Substances Act of 1992. 1992 年《危險物質法》規定的危險化學廢棄物。

Type 3: Non-usable materials or residues that are also hazardous chemical waste materials. 無法使用的材料或殘留物也是危險化學廢棄物。

Type 4: Sawdust or other materials considered as refuse under other applicable laws. 鋸末或根據其他適用法律被視為垃圾的其他材料。

每種類型的廢料都有其不同的處理程序。



圖三：廢棄物分類

資料來源：Waste and Hazardous Substance Management Bureau Pollution Control Department Ministry of Natural Resources and Environment. (2015).

一、非法處置工業廢棄物或廢棄物質罪

(一)、違反法律規定的行為

1、未經授權自工廠場區移除污染物或被棄置材料的違法行為

在涉及廢棄物、污染物和被棄置材料的處理案例中，根據第二部長令（1992）和《工廠法》（Factory Act）1992，以及有關處理污染物或廢棄材料處理的部長公告第 2005 號中，明文禁止生產者在未經工業工作部總司長或其合法代表的事先許可前，將污染物或被廢棄材料運輸至工廠場區之外。此類的運輸僅可使用於不須經過事先批准的污染物或廢棄材料⁹⁷。非經許可，將廢棄物或物料帶出工廠範圍屬於違法行為，可處以不超過 20 萬泰銖的罰金⁹⁸

⁹⁷ Clause 3 of the Ministry of Industry Announcement: Exemption from requesting permission to take waste or unused materials that are not hazardous waste out of the factory area, 2018.

⁹⁸ Section 45 of the Factory Act 1992.

即使經批准可將污染物或廢棄資料運輸至廠外進行處理的情況下，若在運輸過程中未經授權便將污染物、廢置材料移置未批准地點、擅自處理未經許可污染物或者將其運出廠區者，也將受到刑事責任的追究⁹⁹。

2、未提供運輸資訊的情況下將污染物或被棄置材料運輸至工廠場區之外的違法行為

針對廢棄物處理、污染物和被棄置材料，根據《工廠法》（Factory Act）所附的第二部部級法規（1992）以及配合工業部有關污染物或被棄置材料處理的公告 2005，法律要求生產者提供詳細信息，包括污染物或廢棄材料的類型、數量、特性和儲存位置。此外，還必須按照法律規定的標準和程序提供有關銷毀、處置、遺棄、掩埋、移動和運輸方法的相關資訊，¹⁰⁰。生產者必須擁有運輸單據並通過電子方式報告運輸資訊¹⁰¹。未遵守這些法規，導致在未提供運輸資訊的情況下擅自將污染物或廢棄材料運輸至工廠場區之外的行為，將被處以不超過 20 萬泰銖的罰金¹⁰²。

（二）、在不遵守人員或官員指令的情況下的法律責任

在人員發現負責生成工業廢棄物的當事人非法棄置的情況下，且違反相關法律或可能對個人或財產構成潛在危險、傷害或不便，除了上述《工廠法》（Factory Act）1992 中提到的刑事處罰外，進一步的法律處罰如下：

⁹⁹ Waste and Hazardous Substance Management Bureau Pollution Control Department Ministry of Natural Resources and Environment. (2015). **Op.cit.** p. 12.

¹⁰⁰ Clause 13 (3) (b) of the Ministerial Regulation No. 2 (1992) issued in accordance with the Factory Act, 1992.

¹⁰¹ Clause 11 of the Announcement of the Ministry of Industry regarding the disposal of waste or unused materials, 2005.

¹⁰² Section 45 of the Factory Act 1992.

行政命令：

工廠法賦予授權的官員權力發布行政命令，強制要求責任方停止違法行為，並進行限期糾正和適當的調整¹⁰³。不遵守這些命令可能會面臨最高一年期限的有期徒刑、以及不超過 10 萬元泰銖的罰金，或兩者併罰。此外，在違規期間每日可能還將面臨最高 5 千泰銖的額外罰金。

政府開支賠償：

責任方還應負擔政府處理廢棄物或材料處置不當而產生的額外費用，並在規定金額之上每年加收百分之 30 的罰金¹⁰⁴。

二、非法處理化學工業廢棄物

(一)、土地占有人或所有人的法律責任

如果在租戶、佔用人或產權持有人租賃、擁有或擁有權利的場所或建築物內，有證據可證明在指定的土地或場所內秘密處置化學工業廢物，則租戶、佔用人或產權持有人未經適當授權，將被視為擁有化學工業廢棄物。此類行為可處以最高 2 年監禁、不超過 20 萬泰銖的罰金，或兩者併罰。除非能夠證明該租戶、佔用人或產權持有人不知情或不同意在該處非法處置化學工業廢物。

(二)、所有人在運輸方面的法律責任

持有化學廢棄物，無論是自用或運輸，並處理屬於第三類的有害化學工業廢棄物，皆被視為未經適當授權就持有危險物質並進行運輸的違法行為¹⁰⁵。此將導致最長被判處 2 年的監禁、不超過 20 萬泰銖的罰金，或兩者併罰¹⁰⁶。然而，若僅持有化學工業廢棄物，並未有傾倒證據，那麼運輸者將需要對未獲廢棄物產生者

¹⁰³ Section 37 of the Factory Act 1992.

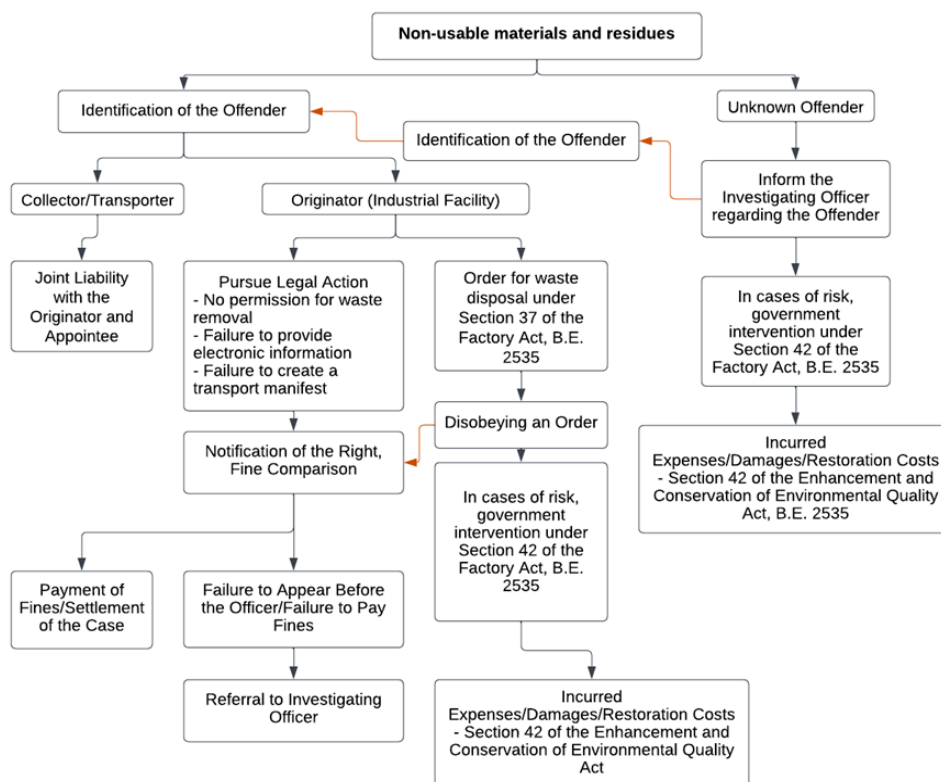
¹⁰⁴ Section 57 of the Factory Act 1992.

¹⁰⁵ Section 23 of the Hazardous Substances Act 1992.

¹⁰⁶ Section 73 of the Hazardous Substances Act 1992.

核發的運輸許可證進行有關運輸危險物質的違法行為負責¹⁰⁷。此違法行為可能被判處最長 1 年的有期徒刑、不超過 10 萬泰銖的罰金，或兩者併罰¹⁰⁸。

值得注意的是，上述兩種情況中所規定的處罰與 1992 危險物質法第 89 條規定的處罰不能相提並論，除發的運輸許可證。



圖四：不可用材料或殘留物的法律程序

資料來源：Waste and Hazardous Substance Management Bureau Pollution Control Department
Ministry of Natural Resources and Environment. (2015).

¹⁰⁷ Section 20 (1) of the Hazardous Substances Act 1992.

¹⁰⁸ Section 72 of the Hazardous Substances Act 1992.

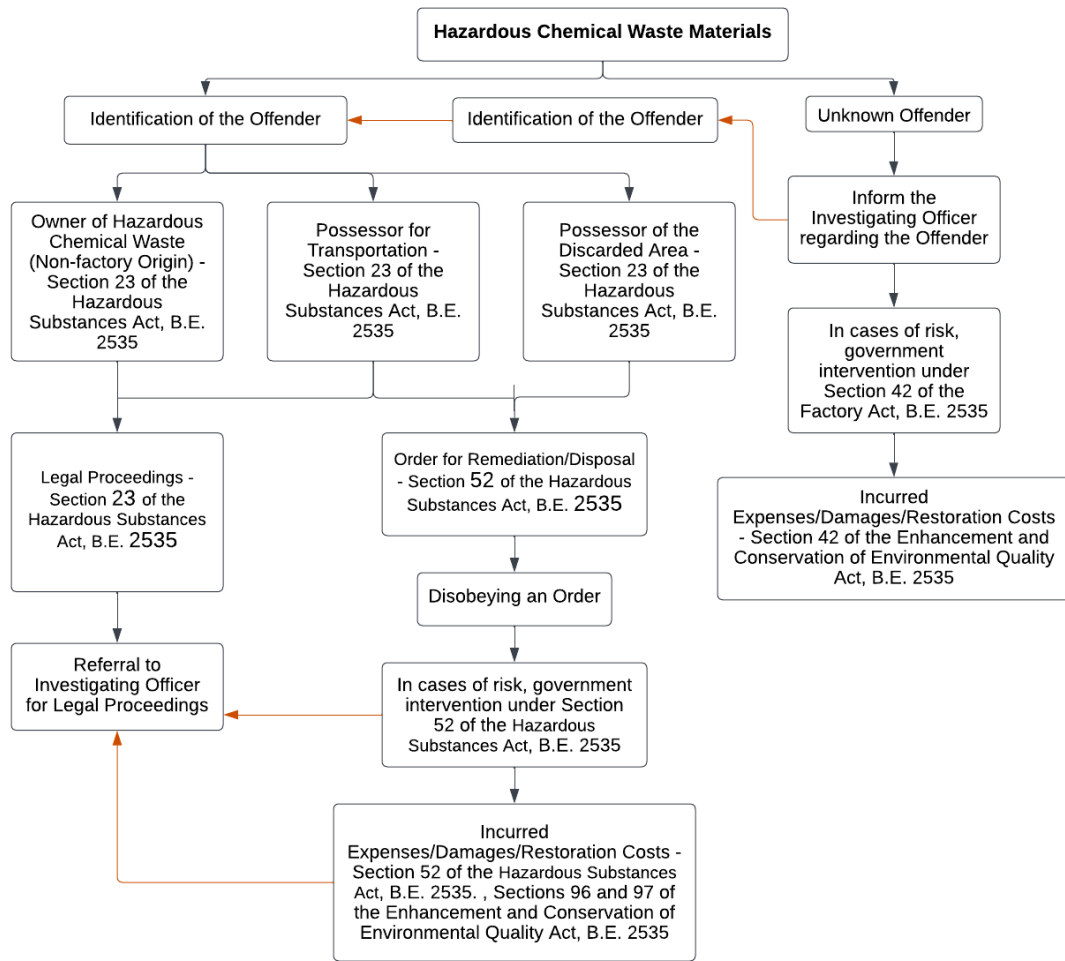


圖 五：有害化學廢棄物的法律程序

資料來源：Waste and Hazardous Substance Management Bureau Pollution Control Department
Ministry of Natural Resources and Environment. (2015).

三、化學工業廢棄物和廢棄資料的非法處置

(一)、土地占有人或所有人的法律責任

若在租戶、擁有或由產權持有人租賃、擁有或擁有權利的場所或建築物內，存在化工廢棄物的被秘密處置的證據，且租戶、佔用人或產權所有人皆會被視為未經合法授權持有化工廢棄物¹⁰⁹。此行為可處以最高兩年的有期徒刑、不超過 20 萬元泰銖的罰金，或同時併罰。除非能證明租戶、佔用人或產權所有人對於在所租賃的場地上非法處置化工廢棄物毫不知情或未經其同意¹¹⁰。

(二)、所有者在運輸方面的責任

持有化工廢棄物，無論是自用還是運輸，若有處理這些含有第三類有害物質的化學工業廢棄物，皆將被視為未經適當授權而持有並運輸有害物質的違法行為。此違法行為可能導致最高兩年的有期徒刑、不超過 20 萬元泰銖的罰金，或同時併罰¹¹¹。然而，如果持有的僅為化工廢棄物，且沒有處理的證據，則運輸人員將需要對未獲廢棄物產生者頒發的運輸許可證的危險物質運輸相關違法行為負責¹¹²。此違法行為可能導致最高一年有期徒刑、罰金不超過十萬元泰銖，或同時受罰¹¹³。

(三)、污染源製造工廠

1、無論承包運輸商是否違反條件或合約導致廢棄物無法被妥善處置，該化工廢棄物的所有者仍然須負有責任。根據第 23 條，由此情況導致的任何處置都被視為廢棄物所有者的責任，並被視為在未取得許可的情況下持有危險物質（化工

¹⁰⁹ Section 23 of the Hazardous Substances Act 1992.

¹¹⁰ Section 23 of the Hazardous Substances Act 1992.

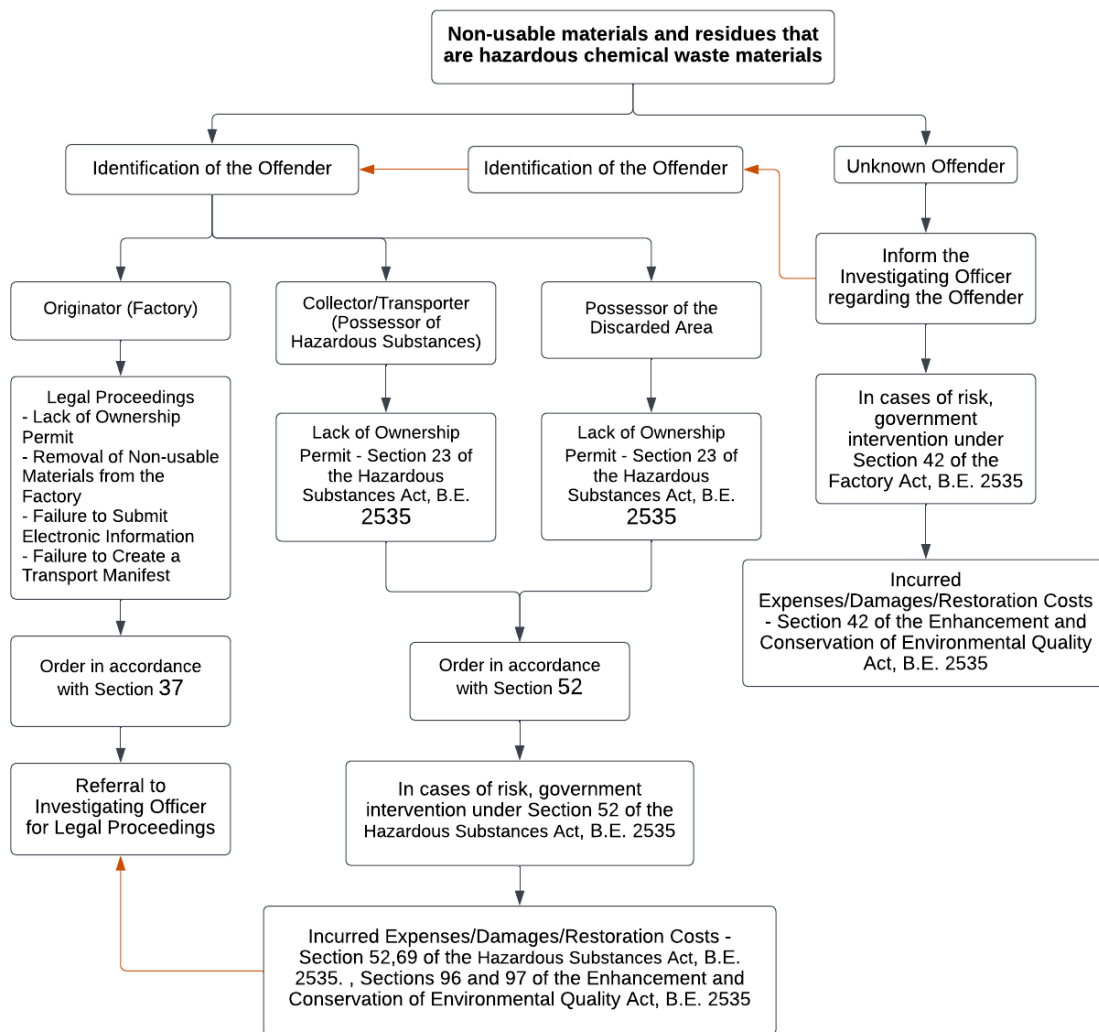
¹¹¹ Ibid.

¹¹² Section 20 (1) of the Hazardous Substances Act 1992.

¹¹³ Section 72 of the Hazardous Substances Act 1992.

廢棄物)，，並可以根據第 73 條懲罰。此違法行為的處罰包括最高兩年有期徒刑、不超過 20 萬元泰銖的罰金，或同時併罰。

2、未經工業工程司司長許可或根據工業部 2005 年第 9 節關於污染物或廢棄材料處置的公告，未經許可從工廠場所清除污染物或廢棄材料的違法行為，違反了工業部 1992 第 2 號條例的規定，根據 1992 年《工廠法》（Factory Act）第 8（5）條和第 45 條，第 4 條第 13（3）款。對這一罪行的處罰包括不超過 20 萬泰銖的罰金。



圖六：不可用材料或殘留物，同時也是有害化學廢棄物的法律程序

資料來源：Waste and Hazardous Substance Management Bureau Pollution Control Department
Ministry of Natural Resources and Environment. (2015).

四、非法處置工業廢棄物為灰塵或其他污染物之處罰應依其他法律規定

如灰塵或其他污染物不屬於受控工廠的管轄則適用於泰國法案 1992《市府清潔秩序維護法》的管轄範圍。根據第 54 條的規定，任何違法處置或傾倒污染物、灰塵、廢水或任何其他物質於道路或水道的人都將受到法律制裁，並處以不超過兩千泰銖的罰金。

根據工業部對於污染物和廢棄材料的第 2005 公告以及 1992 號公告，其中明列特定的豁免情形。這些豁免包括但不限於以下情況：

- (一)、工廠場地內來自住宅辦公室和食堂的非危險性污染物或廢棄物質。
- (二)、受特定法律規管的非危險性污染物或廢棄資物質，例如受公共衛生法規管制的放射性廢棄物灰或灰塵。
- (三)、通過排水管道發送至工廠場地外進行處理的廢水。

此外，《市政清潔秩序維護法》(Act on the Maintenance of the Cleanliness and Orderliness of the Country 1992) 和《公共衛生法》(Act Public Health 1992) 將「污染物」定義為包括糞便、尿液和任何散發惡臭的其他物質。

然而，至於「市政固體廢棄物」的定義，根據《公共衛生法》(Act Public Health 1992) 的規定。根據《公共衛生法》(Act Public Health 1992)，它包括廢棄物，如紙屑、布料殘餘、食物殘渣、產品殘留物、塑膠袋、食物容器、灰燼、動物糞便、禽畜糞便，或從街道、市場、畜牧區域或其他區域收集的任何物品。此外，它還包括受污染固體廢棄物、危險固體廢棄物或對社區公共健康有害的廢棄物。

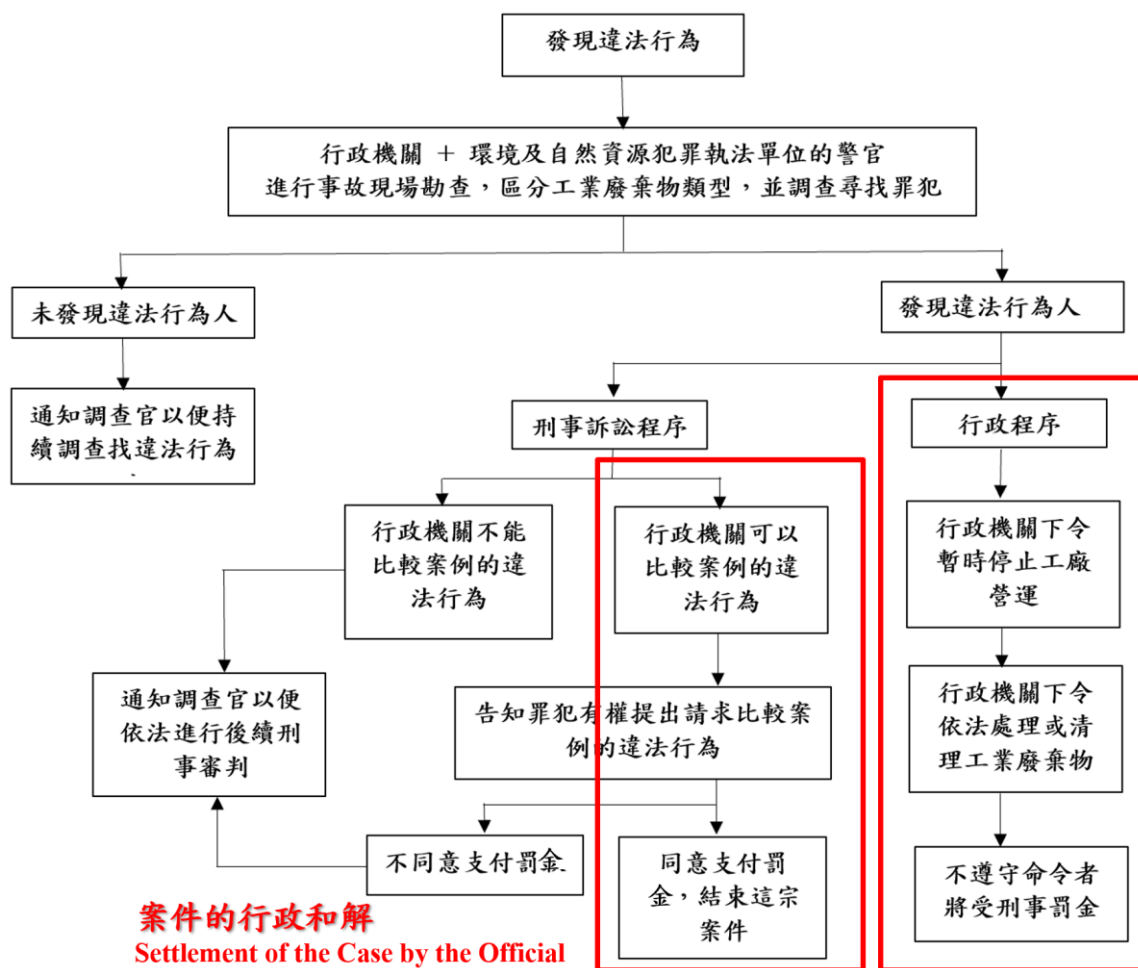


圖 七：泰國法律遵循程序的步驟圖

資料來源：作者自行整理。

第三節 小結

透過研究比較泰國和臺灣在非法棄置工業廢料的法律懲處措施後，發現兩國的法律懲罰措施差異：

當根據泰國法律考量時，可以看出泰國在執行刑事與治安措施時同時採用了法律與行政手段。儘管泰國法律中可能會規定金錢刑或監禁等刑罰，這些都屬於刑事處罰，但在某些情況下，對於偷偷棄置工業廢棄物等違法行為，如果違法者願意按照法律支付罰金，調解委員會有權裁定罰金數額，這是行政處罰的一種形式。這樣的做法進入了行政執法程式，這與法律明確區分刑事處罰與行政處罰的管道有所不同。

此外，明顯可以看出兩國法律之間的明顯差異，即對於偷偷棄置工業廢棄物等行為施加了嚴厲的刑事處罰，因為這可能對他人身體造成嚴重影響。然而，泰國的法律中並未針對此類情況製定刑罰相關規定。

另一個重要的泰國與法律規定的差異是對於法人責任的界定。將法人責任與個人責任區分對待，而泰國並未對法人責任做出特殊規定。以上是這兩國法律之間顯著差異的一些例子，泰國法律對於行政處罰的運用與法律之間的刑事與行政處罰的明確區分，以及在法人責任方面的處理管道有所不同。

第四章 泰國與臺灣法制比較

第一節 泰國和臺灣刑罰措施之比較

從根本上說，涉及環境的犯罪行為與一般其他犯罪行為相比，以刑罰對犯罪行為處罰的目的，存在根本上的差異。刑事法律的目的通常僅尋求對違法行為的處罰；而對於環境犯罪行為的處罰，還存在另一重要意圖，即保護環境。可以看出，這些法律的主要目的在保護環境，從而有效地管理環境問題。

在環境法律中，對環境犯罪行為的定義，主要是違反法律禁止規定，進而導致造成環境不安全的結果，或這些行為對公眾的生活造成危害或不良影響。因此，法律必須確定刑事責任，以迫使與破壞自然資源或造成污染相關的人遵守法律並遵循嚴格的法律規定。此外，法律還確定了一種違反法律措施或官方命令，以強制執行環境控制或防止污染的刑事責任。因此，環境相關的刑事責任具有特殊性質，例如環境犯罪的情況，相較於謀殺、傷害或搶劫等基本刑事犯罪行為，有所不同。

從濫棄工業廢物的案例來看，當行為人故意釋放或遺棄廢棄物或有害物質至環境中，即屬於直接對環境產生影響並導致污染的違法行為，進而造成人類、動物或植物的生命和健康受到威脅。在某些情況下，這可能對人類群體或大量環境產生長期影響，毒害的嚴重程度可能對健康產生多方面的危害，包括可能導致人們死亡或引發各種疾病，甚至因中毒而喪命。

因此，應對此類違法行為採取的法律措施必須具有刑事和行政兩方面的法律約束力。對於刑事和行政處罰的制定必須足夠有效，以使犯罪者感到威脅或不敢再次犯罪，符合懲罰的目的。然而，對於處罰的制定必須考慮到違法者的情況和性質，這可能是企業法人，從事工業生產的實體，或者是涉及違法行為的普通個人。

由於不同性質和地位的違法行為者之間存在差異，因此，必須根據每個違法行為者的情況和特點來確定處罰或刑罰，以實現減少違法行為的效果。如果是財務地位較好的人，罰金必須是足夠高的，以至於對其財務狀況產生影響，這樣一來，即使監禁刑罰對於阻止違法行為可能具有威懾作用，但這些人也會因為害怕監禁而不

敢再犯。然而，在某些情況下，監禁刑罰可能無法應用於非法擅自處置工業廢棄物的法人實體，因為法人實體無法被判處監禁刑罰。

基本上，泰國和臺灣的法律體系結構相似，都是採用類似的法律制度，即都擁有基於文字法的法律體系。然而，儘管兩國採用相同的法律體系，但根據社會背景和法律執行的適當性，兩國在環境法律執行方面仍存在差異。

從對泰國和臺灣在處理非法棄置工業廢物的法律措施的比較研究中，可以發現兩國都有相似的環境法律理念和原則，其中一個重要的共同原則是「污染者負責原則」，這一原則來自於基本的理念，即『每個人都有完全的權利生活在良好的環境中』。這一原則在多個國家，包括泰國和臺灣在內，都被用於管理與環境相關的行為，並規定對於對環境造成污染的行為，應由行為者承擔相應的責任，包括費用、稅負，以及賠償或補償等損害賠償責任。

此外，泰國和臺灣在處理非法棄置工業廢物的法律措施也符合嚴格責任原則，這一原則源於一個基本理念，即當某人的行為導致損害發生時，必須對損害進行補償，而不需要考慮行為者的意圖或過失。在損害發生時，必須進行損害賠償。

然而，根據研究發現，兩國在處罰措施方面存在相當程度的差異，包括在刑事法律和行政法律措施的處罰設定方面。此外，懲罰性條款的嚴重程度也存在差異。筆者將進一步提出以下關鍵差異，以突顯重要的不同之處。

壹、泰國與臺灣處罰的類型

從兩國法律所訂定的處罰來看，可以看出處罰類型分為三種：

- 第一：是對於未遵守法律規定而導致嚴重損害的刑罰設定。
- 第二：是對於未遵循法律所訂定的程序或方法的刑罰設定。
- 第三：是對於未遵循官方命令的刑罰設定。

表二：泰國與臺灣行政處罰和刑事處罰的類型表

	泰國	臺灣
刑事	第二，三的類型	第一類型
	*刑事罰金制定	
行政	第二，三的類型 *刑事罰金制定	第二，三的類型 *刑事罰款制定
	以行政命令類型處罰	

資料來源：作者自行整理。

泰國和臺灣在處理非法棄置工業廢棄物的刑罰設定形式上，主要體現在第二種和第三種形式，即未遵循法律所訂定的程序或方法以及未遵循官方命令的刑罰設定。然而，在第一種形式，即對於未遵守法律規定而導致嚴重損害的刑罰設定方面，兩國仍然存在顯著差異。這反映了兩國在法律理念和法律程序上所採取的不同方針，對於刑事法律的執行上存在明顯差異。

根據泰國工廠法和危險物質法所採取的主要刑罰措施，用於應對非法棄置工業廢物問題的情況，包括罰金和監禁刑罰，這些刑罰僅適用於根據第二種形式的刑罰設定，即未遵循法律所規定的程序或方法的刑罰設定，以及第三種形式，即未遵循官方命令的刑罰設定。如前所述，還有在行政處罰方面的措施，授予了官員在發現工業廢物非法棄置行為時暫時或永久停業的權力。這些措施主要用於制裁工廠違法行為，尤其是在發現工業廢物非法棄置行為時。

從上述有關泰國工廠法和危險物質法的法律規定來看，可以看出這兩部法律都是與程序相關的規章，涉及到建立工廠的標準和程序，以及監管工廠運作的規定。通過設定上述法律的規定，旨在使工廠的運作符合法律要求。因此，這部法律的內

容主要集中在政府官員對工廠運營的控制權力上。可以說，除了前述關於不遵守環境保護措施的刑事處罰之外，這部法律還包括對不遵守政府官員設定的條件或命令的刑事處罰。

從泰國和臺灣的法律立法中可以看出，第一類型的懲罰形式是針對未遵守法律規定而導致嚴重損害的情況進行懲罰。在泰國的工廠法和危險物質法中並沒有規定此類情況的刑罰，如同臺灣的廢棄物管理法規中有所規定。該法規定了針對這些情況的刑事處罰，最高刑罰為終身監禁，如果造成人員死亡，最高罰金不超過三千萬新台幣。因此，當他人的生命或身體受到損害時，根據泰國的刑法直接進行判刑，導致這些案件的審理與一般刑事案件並無差異。特別是在考慮到這些案件的特殊性質，即對公眾產生廣泛影響的環境案件，因此受害人地位的考量會比一般刑事案件更加複雜，需要依靠專業證人來證明損害，並且需要迅速採取補救措施來修復損害。而不明確地懲罰對於工業廢棄物偷排造成的損害，可能會導致違法行為者未能意識到其行為可能對他人的生命和身體造成的嚴重危害，進而導致泰國法律的執行不力，不符合懲罰的目的和法律的本意。

貳、刑法措施的差異

從根本上講，刑法與行政法的處罰制度在法律程序和刑罰審判方面存在明顯差異。刑事處罰是指違反刑事法律造成損害，通常是對公民的和平安寧或社會的共同利益構成衝擊。此外，刑事處罰會削弱公民的自由權利。因此，對刑法處罰的考慮必須進行詳細和全面的審查。

在行政制裁方面 (Sanctions administrative)，這是一種旨在懲罰違規行為或不遵守法定標準的制裁措施，類似於刑事處罰，但通常適用於未能按照法律規定行事，以符合公共利益的情況。此外，行政制裁還具有特殊性，即行政管理人員有權通過行政程序對違反法規或未遵守法定標準的人進行處罰，而無需將案件提交司法程序。這使得行政程序相對於刑事程序更加簡化，因此行政處罰可以更快速地進行。

根據泰國的法律，刑事處罰被視為對違法行為進行處罰的主要手段，尤其是在處理工廠非法傾倒工業廢料的案件時，泰國重視刑事處罰以便實現懲治違法行為的目的。然而，從泰國上述規定的處罰形式來看，這是一種在行政範疇內實施的行為，但卻被規定必須接受刑事處罰。換句話說，違反或未經國家機關許可而實施某些行為的行為是一種違法行為，因為它違反了國家機關發佈的行政命令。如果違反法律或違反了國家機關的上述命令，則違反法律規定的個人應被視為未履行或遺漏而未執行造福公眾的職責。因此，對此類違法行為進行刑事處罰，是為了方便國家機關履行職責。由於刑事處罰會引發恐懼，因此必須遵守國家機關的命令。從而，對此類違法行為進行刑事處罰，僅是加強行政措施的一種手段。此外，泰國的法律規定了對工業廢料非法傾倒的刑事處罰，這意味著將刑事審判程式應用於違反行政法律的行為，會使處罰程式變得複雜和混亂。

根據泰國法律，一旦發現工業廢料非法傾倒行為，無論是由官方檢查人員檢查發現，還是由受影響的公民提出投訴，一旦官方人員進入現場進行檢查，就必須立即對工廠的廢料進行檢查和扣押，並對廢料進行分類，確定是否為危險廢料，並安排適當的存儲場所。同時，必須配合對違法行為進行調查，找出違法者。審理過程將根據相關法律，如《工廠法》和《危險物質法》，依廢棄物不同，對違法行為進行分類。根據這兩項法律的規定，不同類型的工業廢料，依法律賦予不同程度的處罰，面對不同的法律措施和程序。此外，還必須考慮違法行為是否屬於法律賦予官員自行決定罰金金額的類型。法律賦予官員決定罰款金額的權力，使得在此類情況下進行的程式，成為另一種行政處罰措施的一部分。對於兩種法律都規定的其他違法行為，則將進入下一步的刑事司法程式。這將是在刑事處罰的框架下進行的。

從泰國法律程序來看，儘管已經規定了刑罰和刑事監禁作為刑事處罰的手段，但並不是所有情況都會使用刑事處罰，仍然需要根據實際情況逐案審議。例如，非法傾倒的工業廢料屬於哪種類型，以及是否在法律授予官員自由裁量權的範圍內。

臺灣的處罰措施雖然包括刑事處罰和行政處罰，但從研究中可以看出，其法律規定明確區分了刑事處罰和行政處罰。即使是行政罰款和刑事罰金，也有明確的分別，並且處罰的嚴厲程度不同。因此，法律的執行對於執法人員來說更加便利，減少了法律執行中的混亂。可以直接通過在法律中規定的程式和流程來實施，無需逐個案考慮何種違法行為應該通過刑事程式還是行政程式進行處罰。

與臺灣法律相比較，泰國有關非法丟棄工業廢料行為，相關的主要法律並沒有明確處罰的分類規定。此外，泰國的法律還在多個法律當中，分別規定了不同層次的責任，例如根據《工廠法》和《危險物品法》分別規定了責任，並在這兩項法律中規定了刑事處罰，並授權國家官員在行政領域行使權力。然而，這些法律還賦予了國家官員在對某些違法行為進行處罰時使用自由裁量權的權力。這使得執法人員必須依靠專業知識，並且更審慎正確地選擇法律措施。然而，法律執行的複雜性可能會導致執行人員的混淆。

參、刑罰規定的嚴重性差異

一、刑事處罰規定的差異

基本上，就秘密棄置工業廢料案而言，環境法的目的不僅在於對違規者進行懲處。環境刑罰還是一種法律執行工具，用以約束社會成員的行為，使其對違法行為感到畏懼，並抑制其不違反自然資源利用與處置的行為。因此，對於秘密丟棄工業廢料案件而言，刑事處罰應當符合預防犯罪的目的 (deterrence) 且必須符合預防原則 (Precautionary Principle: PP)，該原則是保護環境的基本原則之一，即作為一種措施來避免可能發生的危害並減少對環境造成的損害。

一般而言，任意棄置工業廢棄物的行為，具有故意違反與控制污染和環境有關的法律禁止的特點，導致對自然資源和公眾生命、健康的損害，因此可歸類為一種犯罪行為。基本上，在這種情況下，對於對該行為進行刑事處罰，不需要證明行為

者是否有意和應受懲罰的程度，如一般犯罪行為那樣。因為偷偷丟棄工業廢棄物是一種因法律規定而被禁止的行為 (*mala prohibita*)，因此它是一種無需意圖的違法行為。一旦某人的行為符合法律的規定，即使沒有故意，他們也必須按照法律接受處罰。然而，值得注意的是，現今我們卻發現了一些偷偷丟棄工業廢棄物的行為，主要考慮的是利益或利潤，而並未考慮到可能導致的損害。因此，可以認為行為者有惡意，導致行為本身就具有犯罪特徵 (*mala in se*)。

目前泰國在此類違法行為的刑事處罰方面，更著重於罰金，基本上在法律中將刑罰定為罰金的目的，應該偏向於高額罰金而不是監禁違法行為人，以使違法行為人感到畏懼，不敢再犯。因為在這種情況下，違法行為者不是出於犯罪的故意，而是為了避免正確處理工業廢棄物所帶來的成本負擔而進行了違法行為。因此，對於違法行為者不需要證明其故意或應受到的懲罰程度，就像一般犯罪行為那樣。雖然刑罰的目的是通過改造矯正違法行為者，使其改變行為並重新融入社會，但是根據將監禁作為刑罰的理念來看，這不符合對於工業廢棄物偷棄行為的刑罰目的。然而，對監禁的刑罰的規定，這是一種嚴厲的刑罰，會限制人類的自由權利，這可能會導致對違法行為的害怕，從而減少了進行違法行為的決心。

雖然泰國和臺灣的法律都對於工業廢棄物偷偷棄置的行為制定了刑罰，但兩國的刑罰政策仍有一定程度的差異。正如前文所述，根據臺灣的廢棄物管理法規，對於違法行為明確區分了刑事和行政處罰，並且明確規定了對於對人民的生命、身體和健康造成嚴重危害的行為應予以刑事處罰。而泰國根據工廠法和危險物品法，雖然也有刑事處罰的規定，但僅對於不遵守法律程序和不遵守政府官員命令的行為進行了刑事處罰，而對於對他人的生命、身體或健康造成嚴重危害，或對自然資源造成嚴重危害的行為，卻沒有明確的刑事處罰規定。

在臺灣，對於刑罰措施的制定是根據事件的嚴重性和可能導致的損害程度進行考慮的，並且根據對他人生命和身體造成的嚴重傷害程度來制定刑事處罰。對於對他人生命和身體造成嚴重傷害的行為，最高刑罰可達終身監禁或不超過三千萬新台幣

幣的罰金。這被認為是一種刑罰形式，而對於不遵守法律程序或不遵守官員命令的行為，根據臺灣的廢棄物管理法規，則將分為行政處罰措施，並將行政處罰措施定為對這些違法行為的處罰形式，這被認為是第二和第三類刑罰形式，正如在第四章第一節節中所述。

依法律規定，對他人生命和身體造成嚴重傷害的行為，以較高的刑罰率來制裁，從理論上講，這會在刑事處罰的目的方面起到震懾犯罪行為的作用。例如，當違反法律，未妥善處理且未按法律規定處置危險工業廢棄物，導致化學物質污染環境並且對他人的生命和身體造成嚴重危害時，這種刑事責任產生的原因是因為罪犯未能按照法律規定的方法處理和處理工業廢物。罪犯應對由此產生的危害對受害者的生命、身體和健康負責。除了違反法定程式的情況外，這種刑事責任還會對國家及民眾造成損害，因此受害民眾通常會選擇提起民事訴訟請求損害賠償。與此不同的是，泰國法律未將此類情況規定負刑事責任，因此當有生命和身體損害發生時，受害者或公眾，必須自行選擇提起民事訴訟要求損害賠償。

從上述說明可見，泰國的《工廠法》和《危險物品法》未明確規定針對他人生命和身體損害的刑事處罰，行為人由於缺乏對刑罰的恐懼感，無法有效控制參與工業廢物處理過程的人員的行為，也難以防止此類不法行為的發生。然而，在這種情況下使用嚴厲的刑事處罰，以應對對他人造成嚴重傷害的行為，較符合刑罰與犯罪行為所造成的嚴重損害之間的比例關係。也可以說是增加行為人從事此類違法行為的經濟成本。但如將其當作犯罪行為處以刑罰，也會引發以刑罰處罰太過嚴厲的擔憂，因為刑罰對自由權利的限制，有侵害人民基本權利的風險。

此外，從刑罰中獲得的利益的損失也反映出，儘管非法傾倒工業廢棄物可能會帶來巨大的利益，但一旦犯罪分子被捕並被起訴，他們不僅會失去非法活動帶來的利益，還會受到自由權利的限制。因此，行為人需要對犯罪行為的風險和收益進行全面的計算和權衡，以確定是否仍要從事該違法行為。如果刑罰能夠得到充分的適用，將更能有效遏制違法行為。

二、個人責任界定的差異

通過對泰國和臺灣法律中刑事責任規定的研究，發現在臺灣對於法人刑事責任，與普通個人的處罰有明確分別。臺灣對於法人未按法定程式或規定不履行職責的處罰，並且針對不遵守官員命令的情況，施加了行政處罰，這是在第四章第一節中所述的第二和第三種處罰形式。臺灣關於處罰形式的差異，與泰國法律的規定不同，泰國沒有單獨對法人單位的處罰規定，特別是在勞動法和危險物品法中，雖然根據泰國法律並沒有單獨規定法人單位的處罰，但在泰國法律的基本原則下，當法人單位進行了非法的工業廢物排放時，仍然應根據法律受到處罰，因為根據泰國法律的基本原則，沒有規定不需要對法人單位進行處罰。

未明確規定法人責任的缺點，導致泰國法律的適用，存在明顯的不確定性和限制。例如，根據泰國法律，監禁等刑事處罰無法適用於法人。因此，在實踐中，泰國只能對法人施以罰金。因此，如何對待法人單位的處罰，才能使其與違法行為相稱，並在預防違法行為方面發揮有效作用，成為一個須特別研究考慮的問題。

當考慮到泰國將刑事處罰作為對違法行為的主要處罰時，特別是對於偷偷丟棄工業廢料的行為，可以看出對於此類情況賦予刑事處罰規定應該是符合處罰及處罰所要達到的目的，即用於威懾和封鎖違法行為的發生。死刑、監禁或拘禁等刑罰措施，適用在生理和身體上真實存在的自然人，符合刑法適用對象的基本原則。死刑、監禁或拘禁對個人的生命、身體和自由權利產生影響，因此也被認為是嚴厲的刑罰。儘管罰金也會對違法行為者產生影響，但相比之下，它被認為影響較小，因為在仍然保持生命和自由權利的情況下，個人仍有機會重新獲得財產。因此，可以看出，處以死刑、監禁或拘禁等嚴厲刑罰，相對於罰金來說更有效性，因為它們更有可能引起對刑罰的恐懼和對違法行為的內在動力的抑制。

然而，在法人的情況下，情況與自然人有所不同。因為法人的身份僅是根據法律假設而存在，因此並沒有像自然人那樣的生命和實體身體，這導致無法將現有的刑罰適用於法人，因為刑罰受到法人身份的限制。

根據臺灣的廢物管理法規和違反廢棄物清理法罰鍰額度裁罰準則《附表二行為人違反本法義務規定之行爲涉及事業廢物者》，我們可以觀察到對於違反法律義務的行為人，針對不同類型的法人實體都規定了不同的違法責任，這些規定詳細而清晰。這種規定模式使得對於每一種類型的違法行為人，和違法行為的嚴重性能夠更為恰當地進行考量，符合犯罪行為的比例原則。

與臺灣的刑法規定相比，泰國對自然人和法人的刑罰劃分為相同的類型，這意味著對自然人和法人適用的刑罰是相同的。這些刑罰包括監禁和罰金。對於法人的罰金，有些法令中的罰金只有 200,000 泰銖。從泰國法律對法人的刑罰進行分析可以看出，目前的刑罰對法人行為來說還不夠嚴厲，因為這些刑罰的比例與對社會造成的損害相比仍然太低，並且無法有效阻止法人的違法行為。本文認為解決這個問題的方法，是通過明確且詳細地區分不同類型的法人刑罰。這將使對法人的刑罰更加清晰，並有助於解決無法對法人適用某些類型刑罰的問題，因為法人不能被監禁，而實際上監禁是一種比罰金更嚴厲的刑罰。因此，對法人適用的罰金應該與對自然人的罰金不同，因為大多數對社會造成嚴重危害，並對社會造成高度影響的犯罪，都是由法人實施的。

總結來說，對於泰國而言，刑罰對法人無效的問題是，適用於法人的刑罰仍然過於輕微，與適用於自然人的刑罰相同。適用於法人的刑罰，無法有效地抑制其違法行為。與此相反，臺灣的法律對不同類型的違法者設定了不同的刑罰，並且還有根據犯罪的嚴重程度而有所不同的行政罰款制度，這使得刑罰更加適當和比例恰當地反映了犯罪行為帶來的利益。這導致犯罪者必須在遵守法律或支付罰款之間進行權衡，這在審理案件時有助於有效地抑制違法行為。

三、罰金計算的差異

從研究泰國和臺灣的法律可以看出，泰國法律所規定的罰金與法律所規定的罰款存在差異。在泰國，罰金被視為刑事罰款，而臺灣則既有刑事罰金又有行政罰鍰(款)。儘管泰國的法律未明確區分刑事罰金和行政罰款，例如在《工廠法》和《危險物品法》中，但實際執行中對泰國罰金的程序有些特殊。在某些定義於泰國法律中的犯罪行為中，法律賦予執法人員自行決定罰金金額的權力，這導致所施行的罰金與刑事罰款有所不同，泰國稱之為「案件的行政和解」(Settlement of the Case by the Official)，這是一種從事刑事制裁的行政程序，由執法部門在法律授權的情況下自行確定裁量並收取罰金，以完成案件處理程序。可以說，這種程序屬於一種行政處理的方式。在泰國的法律中，法律賦予執法人員在刑法不對社會造成嚴重傷害的犯罪行為中，自行裁量比較罰金的權力。例如，僅與非危險工業廢棄物相關的犯罪行為。

如同前述，由於泰國和臺灣的罰款存在差異，因此兩國在計算罰金跟罰款的方式上也存在差異。泰國對於與非危險工業廢棄物無關的其他犯罪行為，泰國的罰金通常是真正的刑事罰金，通過刑事訴訟程序進行處罰。在這種程序中，執法人員是申訴程序的執行者，對於調查員提出的指控進行抗辯，並將案件移交給檢察官提起訴訟。法院在根據法律規定的罰金率計算罰金時擁有審查權。而在臺灣的廢棄物管理法規中，則採取了完整的行政程序。根據違反廢棄物清理法罰鍰額度裁罰準則《附表二 行為人違反本法義務規定之行為涉及事業廢棄物者》，制定了罰款計算的程序。

對於泰國而言，罰金被視為刑事制裁措施，依據泰國刑法規定，犯罪行為人必須支付法院判決書中規定的金額。然而，泰國在處理非危險工業廢棄物以外的其他犯罪行為時，通常適用真正的刑事罰金，並通過刑事訴訟程序執行。在此過程中，執法人員是訴訟程序的執行者，對調查人員提出的指控進行辯駁，並將案件轉交給檢察官提起訴訟。法院在根據法律規定的罰款率計算罰金時享有審查權。然而，對於泰國的非危險工業廢棄物的棄置行為，其罰金率則根據自 1992 年以來一直施行的

勞工法和危險物品法中的條款而訂定。由於這些法律條款長期以來一直有效，導致罰金金額未能與泰國當前的經濟和社會情況相符。例如，在處理與化學廢棄物無關的非危險工業廢棄物的情況下，根據泰國勞工法和危險物品法，可處以最高不超過 2 年的監禁或最高不超過 200,000 泰銖的罰金，或者同時施以監禁和罰金，這種罰金制度被認為是固定的罰金制度。從而可見，與犯罪行為所造成的高度利益相比，這些罰金率極為低廉。在此情況下，犯罪行為人有可能避免參與公正的司法程序，特別是當犯罪行為人有能力支付罰金而不影響其財務地位時。因此，考慮到所要支付的罰金金額與犯罪行為所獲得的利益之間的巨大差距，這是否能真正有效地遏制和預防犯罪行為值得質疑。此外，泰國目前的罰金制度無法填補同樣犯下相同罪行的人之間的平等化空缺。

從中可以看出，如果犯罪行為涉及棄置工業廢棄物，並處以 2 年監禁和 200,000 泰銖罰金的刑罰，而犯罪行為人可能因為在業務運營中節省成本而獲得的 5,000,000 泰銖收益，則對於這種犯罪行為的罰金可能會增加至 5,000,000 泰銖，即犯罪行為人從逃避法律規定的處理工業廢棄物義務中獲得更大的利益。

當將泰國與臺灣的工業廢棄物非法棄置罰款相比較時，臺灣的行政罰款是在廢棄物管理法規中設定了最低和最高罰款率，並且已經確定了一個計算罰款的方法，該方法在違反廢棄物清理法罰鍰額度裁罰準則附表二行為人違反本法義務規定之行為涉及工業廢棄物者中。其根據不同的犯罪基礎來計算罰款單位，污染程度代表 A，污染特性代表 B，危害程度代表 C，然後將這些單位根據所示危害程度在表格中顯示計算出最終的罰款。值得注意的是，每個犯罪基礎的罰款計算公式都不同。在某些犯罪基礎中，還將一般違規和嚴重違規分開。所謂的「一般違規」指的是除了「嚴重違規」以外的其他違規情況；而所謂的「嚴重違規」則指的是非法棄置一般或有害工業廢棄物。

罰款計算範例，例如根據違反廢棄物清理法罰鍰額度裁罰準則附表二行為人違反本法義務規定之行為涉及工業廢棄物者，對於未依據廢棄物管理法規第二十八條

第一項的規定清除或處理一般工業廢棄物的情況，其違反行為可能涉及到第五十二條所規定的罰款範圍，從新臺幣六千元至三百萬元。

對於這種罰款，有兩種計算方式，即：

(一)、一般違規：三百萬元 $\geq$ (A×B×C×六千元) $\geq$ 六千元

(二)、嚴重違規：三百萬元 $\geq$ (A×B×C×六萬元) $\geq$ 六千元

表三：行為人違反本法義務規定之行為涉及事業廢棄物者

附表二 行為人違反本法義務規定之行為涉及事業廢棄物者

項次	裁罰事實	違反條文	裁罰依據	裁罰範圍	污染程度(A)	污染特性(B)	危害程度(C)	應處罰鍰計算方式(新臺幣)
一	未依第二十八條第一項規定清除、處理一般事業廢棄物	第二十八條第一項	第五十二條	處新臺幣六千元以上三百萬元以下罰鍰	(一)未依規定清除，A=1 (二)未依規定處理，A=1 (三)未依規定清除及處理，A=2	(一)自本次違反本法之日(含)回溯前一年內，未曾違反相同條款規定者，B=1 (二)自本次違反本法之日(含)回溯前一年內，曾違反相同條款規定未經撤銷之裁罰累積次數，每增加1次，B每次增加1(累積違反1次，B=2；累積違反2次，B=3，依此類推。)	(一)非屬備註二所列之廢棄物，C=1 (二)屬備註二所列之廢棄物，C=2 (三)非法棄置非屬備註二所列之廢棄物，C=12 (四)非法棄置屬備註二所列之廢棄物，C=14	(一)一般違規：三百萬元 $\geq$ (A×B×C×六千元) $\geq$ 六千元 (二)嚴重違規：三百萬元 $\geq$ (A×B×C×六萬元) $\geq$ 六千元

資料來源：違反廢棄物清理法罰鍰額度裁罰準則附表二。

從上述所述，可以看出臺灣明確地規定了罰款計算方法，即使是相同的犯罪行為，所受到的處罰率也可能有所不同，這取決於污染物的程度、特性以及可能導致的危險程度，符合根據經濟分析法學原則確定的適當罰金 (optimal fine) 的指導思想。在對造成嚴重損害的犯罪行為中，罰金通常需要相應增加以反映損害的程度。通過根據犯罪行為帶來的收益來調整罰金，罰金可能增加到該犯罪行為的標準罰金的數倍。

此外，這種調整罰金的方法符合經濟分析法學的原則，即通過擴大標準罰金的數額來增加刑事處罰的程度。這導致犯罪者必須支付比他們從犯罪行為中獲得的利益更多的罰金，這意味著犯罪者預期的成本高於他們預期從犯罪行為中獲得的利益，這可能影響到他們是否選擇犯罪，從而促使他們遵守法律。可以看出，這種調整罰金的方法是根據犯罪行為的嚴重性增加罰金，因此與造成高額利益的犯罪行為相符合。

總括而言，根據對廢棄物管理法規中罰金制度的研究，本文認為對於罪行的罰金，應該考慮到犯罪者的經濟地位。對於普通犯罪行為的罰金，可能無法有效制止那些具有高額利益的犯罪行為。舉例來說，對於非法棄置廢棄物的罪行，因此，增加罰金以反映犯罪者從犯罪行為中獲得的利益，這樣的方式可以增加刑事處罰的嚴厲程度，從而抑制犯罪行為。因此，考慮到犯罪者從犯罪行為中獲得的利益來增加刑事處罰的嚴厲程度，可能是對於非法棄置廢棄物等犯罪行為的最合適的制定罰金的方式。

第二節 非法棄置工業廢棄物的法律規制

壹、應依行為及危害嚴重程度與目的異其適用

暗中棄置工業廢棄物是造成環境污染，進而影響自然資源的衰退，對人民的生命、身體和財產造成了廣泛損害的行為。這是由於經濟發展和工業化進程快速，同時又缺乏對環境影響的意識所導致。而此問題的嚴重程度正在加劇，因為一些人為了經濟或商業利益而忽視公共安全，往往忽略或未能按照法律要求處理工業廢棄物。

在泰國，違法棄置工業廢棄物的行為，違反了包括 1992 年《工廠法》和 1992 年《危險物質法》等多項相關法律法規。上述這些法規是與環境有關的法律法規，並已制定了刑事處罰措施，以防止不當棄置工業廢棄物可能對自然資源、環境和公眾健康造成的影響。這些處罰措施的目的，是對違法行為人實施嚴厲的懲罰，以創造

更加有效的法律執行環境。換句話說，這是一種利用法律手段來實現命令與控制的方式 (command and control)。然而，從目前工業廢棄物棄置情況來看，仍然存在著不當棄置行為，這顯示了目前的法律執行措施還不夠有效。因此，泰國應該重新審視目前的法律執行措施。

在研究非法棄置工業廢棄物的行為特徵時，我們發現這是由於工商企業為了降低成本、增加利潤而產生的需求。根據 Janista Phonpoonsawat 的研究，依法處置工業廢棄物的成本每噸在 700 至 10,000 泰銖之間，取決於廢棄物的類型、特性和內部組成¹¹⁴。平均成本約為每噸 2,500 泰銖¹¹⁵。我們將 PTT Public Company Limited 作為例子，該公司是泰國一家大型工業企業，用來進行比較和研究。在 2023 年，PTT Public Company Limited 每年處理危險工業廢棄物和非危險工業廢棄物高達 5,855.94 噸¹¹⁶。根據平均處理成本，PTT Public Company Limited 每年需要支付高達 14,639,850 泰銖的處理費用。這是一筆相當高的成本，與非法棄置工業廢棄物的方式相比，這種方式可以降低企業的經營成本。考慮到這種巨大的利益，企業更容易做出非法棄置工業廢棄物的決定。根據刑事處罰措施，非法棄置工業廢棄物的最高刑罰是最多兩年的監禁或最高 200,00 泰銖的罰金，或者同時處以監禁和罰金，沒有最低刑罰。此外，一些法律條文還開放了有關以行政手段解決爭議的可能性

¹¹⁴ Janista Phonpoonsawat. (2020). **Industrial Waste Management Factory Business Plan**. Independent Study, Master of Business Administration, Thammasat University. p. 70.

¹¹⁵ Ibid. p. 34.

¹¹⁶ PTT Group. (2024). **Economic Circularity and Waste Management Operations**. Retrieved May 20, 2022, from <https://www.pttplc.com/th/Sustainability/Environment/Waste.aspx>



圖八：危險廢棄物處置總量（噸）

資料來源：PTT Group. (2024).



圖九：非危險廢棄物處置總量（噸）

資料來源：PTT Group. (2024).

從上述的例子中可以看出，決定進行不法行為的決策，通常是經過計算預期收益（expected benefit）的過程。但是根據犯罪的經濟模型，這種決策並不僅僅考慮預期收益。除了預期收益外，還有兩個重要的變量影響著行為者進行不法行為的決定，即被抓獲的概率（probability of apprehension）和處罰的嚴重程度（magnitude of the punishment）。換句話說，這是行為者預期成本（expected cost）的一部分。舉例來說，如果一個人暗中將工業廢棄物丟棄在荒地上，他所獲得的巨大利益可能比他所預期

的成本要大。例如，當將罰金量與預期收益相比較時，罰金的量級較輕微。此外，在某些情況下，一旦官員通過罰金處罰程序，就無需再進行刑事司法程序。這將導致人們做出決定，同意支付相對較小的罰金，以換取對於帶來巨大利益的不法行為的機會。

基此，可以看出，目前在泰國對於非法棄置工業廢棄物這樣的犯罪行為的刑罰措施還不足以有效遏制這種行為的發生。因此，為了抑制這種不法行為的發生，必須增加行為者預期成本。這意味著增加刑罰的嚴重性和增加被抓獲的概率。筆者建議對於刑罰的嚴重性及程度進行更多的研究，特別是對罰金進行比較，因為在比較罰金、監禁和打擊犯罪的措施時，罰金在抑制犯罪行為方面是同樣有效的，但相對於國家必須支付的執行成本來說，罰金的成本較低。因此，筆者認為罰金是一種適當的選擇，用於抑制非法棄置工業廢棄物等犯罪行為，並建議進一步研究以找到制定適當刑罰的方法。

貳、刑事罰金與行政罰款應以達成行政目的為度

目前泰國對於非法棄置工業廢棄物的罰金最高達到 200,000 泰銖，這是一種固定率罰金制度(fixed rate fine)，即按固定金額訂定罰金金額，不與通貨膨脹率相關聯，並不隨國家經濟狀況的增長調整，導致罰金的實際價值與違法行為不成比例。從中可以看出，泰國法律所規定的罰金，遠低於犯罪者可能從非法棄置工業廢棄物中獲得的利益。也可能導致行為人同意支付罰金，僅僅是作為棄置工業廢棄物場所的「租金」而已。

此外，與臺灣的廢棄物管理法規相比，雖然兩國都實行固定率罰金制度 (fixed rate fine)，但臺灣的罰金率和罰則更為嚴格，根據違法行為造成的後果不同，設定不同的罰金率。如導致人員死亡，可能被判處無期徒刑或七年以上有期徒刑，並可能面臨高達新臺幣三千萬元的罰金。廢棄物管理相關法規中的違反廢棄物清理法罰鍰額度裁罰準則附表二，也訂定了行政罰款的計算方法。該方法根據污染程度、污染特性和危害程度確定每個違規基礎的刑罰單位數量，然後根據表格中顯示的嚴重程

度替換這些單位，以計算出最終的行政罰款數額。然而，就臺灣的罰款計算而言，儘管根據違法行為的嚴重程度進行了罰款的分級，但如果違法行為者具有良好的經濟地位，能夠支付罰款而不對其財務地位造成影響，則可能降低了對處罰的恐懼程度，對於遏制違法行為的有效性產生了不利影響。當然這也可能讓人有支付罰款能力不均等的問題。

以上分析清楚地表明，固定率罰金制度無法有效地施加法律約束，也不符合懲罰和防止犯罪的目的。因此，有必要研究規定適當的罰金 (optimal fine)，以實現有效地遏制犯罪的目標。根據法律經濟學的觀點，為了有效防止犯罪行為，制定罰金或刑罰的大小必須增加犯罪者預期成本。適當的罰金也應該等於實際損害的價值 (actual harm)，以使處罰與造成的損害相關聯。

以 Winprocess 工廠棄置工業廢棄物案件為例說明，2020 年，Winprocess 工廠曾被發現進行工業廢棄物的偷偷丟棄，包括化學品桶、石油渣堆。對此行為已採取刑事執行措施，並對其進行了工業廢棄物處理費用的估算，總金額超過 100 百萬泰銖。這一行為對公眾造成了 20,823,718 泰銖的損害，該損害數字來自泰國環境訴訟案件第 1/2564 號黑色案件的判決。

在行政措施方面，泰國工業部雖已下令要求 Winprocess 工廠進行正確處置這些工業廢棄物。然而，Winprocess 工廠仍然置之不理，並在受到監管處罰行政命令暫停業務之前自行終止了業務。直到 2024 年 4 月 22 日發生了一起火災事件，並且在 Winprocess 工廠附近發現了更多的化學品桶和工業廢棄物碎片¹¹⁷¹¹⁸。

¹¹⁷ Sathaporn Phongpipatwattana. (2024). Revealing the story behind the 「Win Process」 case. It's time to change the factory law. **ThaiPBS**. Retrieved May 20, 2022, from <https://www.thaipbs.or.th/news/content/339344>

¹¹⁸ Department of Industrial Works. (2024). **The Department of Industrial Works inspected the quality of the environment around the Win Process factory after the fire**. Retrieved May 20, 2022, from. <https://www.diw.go.th/webdiw/pr67-284/>

根據上述案例，該案的損失經估計為 20,823,718 泰銖。如果依照目前泰國法律所規定的罰金比例來看，最高罰金僅為 200,000 泰銖，遠遠低於實際損失。因此，按照泰國法律的罰金，對於這樣的違法行為來說是不夠適當的，罰金額度應該與實際損失相關聯，較為恰當。

在某些情況下，違法行為者有可能逃避刑事司法程序，例如上述案例中提到的情況，根據法律正確計算的工業廢棄物處理成本，將會是 100,000,000 泰銖。這筆錢對於違法行為者來說可能是一種成本的節省，進而促使他們進行非法行為。儘管對實際損害計算出罰金，但違法行為者預期獲得的好處可能遠遠超過罰金，這些罰金僅僅是他們非法行為的一小部分。此外，泰國的法律規定允許行政官員有權酌情決定罰金數額，而沒有最低罰金額或其他控制行政官員酌情決定的標準。如果違法行為者同意按行政官員的裁量支付罰金，刑事訴訟程序將因此終結(不受理或撤銷)。這將導致案件無法再回到公正程序中，可以認為是一種逃避刑事訴訟的方式。這種情況可能導致違法行為者同意支付罰金，作為非法行為的「租金」。因此，在考慮適當的罰金時，必須考慮到違法行為者逃避被司法追究的可能性。當逃避刑事訴訟的機會較高時，罰金可能需要加重。

一、單位制罰金 (penalty unit) 分析

在討論目前泰國對於工業廢棄物非法棄置案件的固定罰金制度時，我們注意到這種降低罰金金額的做法，可能是目前執行的罰金制度對抑制犯罪行為效果不彰的一個因素。然而，在與我之前在第二章第五節中研究的單位制罰金 (Penalty units) 進行比較分析時，可以看出單位制度的發展思路源於對通脹情況對經濟體系的實際影響的努力。單位制度的方法是根據每年經濟狀況變化的通脹率調整罰金、罰金金額的單位數量，以計算出實際應支付的罰金金額。然而，單位制罰金 (Penalty units) 可能存在一些缺陷。對於一些能夠輕易支付罰金且對於犯罪行為可以輕易規避的案件，例如前面提到的非法棄置工業廢棄物案件，即使根據實際經濟損失進行了罰金數量的相關調整，但這是否真的能夠有效地遏制犯罪行為呢？此外，這種罰金制度還無

法填補對於犯有相同罪行的人的處罰不平等問題，而是將罰金支付能力不同的人處以不同的罰金金額，這是一個至今未能解決的問題。

二、基於經濟狀況的懲罰 (Day-fine) 分析

從經濟狀況的角度對罰金進行分析，即以基於經濟狀況的懲罰 (day-fine) 或者每日罰金制方式，在本文第二章對罰金單位 (penalty units) 進行比較後，發現雖然這兩種方式在單位設定方面有類似之處，但是從經濟狀況的角度考量，基於經濟狀況的懲罰 (day-fine) 的方法是將被告的日收入數作為罰金的基準來計算罰金金額，對於造成嚴重損害的罪行，所使用的日收入數計算也會相對較多，而對於較輕微的罪行，使用的日收入數計算也會相對較少。這種罰金方式有助於解決執法上的不公平問題，因為它通過根據被告的收入來計算罰金金額，並根據每日淨收入來反映每日貨幣價值的變化，從而有助於解決根據經濟通脹率降低的罰金價值的問題。但是，即使是這種根據經濟狀況的罰金調整方法，仍然存在一個觀察結果，即對於那些從犯罪行為中獲得高額利益且被捕機會較低的情況，例如非法棄置工業廢料的情況，這是否真的能夠有效阻止犯罪行為的發生。

三、依獲得利益決定罰金額度分析

考慮到犯罪利益的調整，符合根據法律經濟學概念確定最佳罰金的指導方針，在造成巨大損害的罪行中，罰金必須根據損害而定。這種罰金是由於需要解決法院或政府機關腐敗的問題。根據行為人從犯罪中獲得的利益，罰金可以新增到犯罪正常率的罰金金額。這種調整符合法律經濟學的概念，即通過將罰金金額擴大到正常水準來新增處罰規模。因此，罪犯必須依其從犯罪中獲得的利益中支付更多罰金，亦即透過增加罪犯的預期成本，予以一定的懲罰。如處罰超過犯罪者預期從犯罪中獲得的利益，將影響其決定是否從事該犯罪行為，足使法律具有強制力與威嚇效果。換言之，應繳納多少罰金，得考慮從犯罪中獲得的利益多寡，亦即罰金與罪犯獲得的利益成正比例。此一方式適用於高獲益回報的犯罪，例如走私工業廢棄物。如果

罪犯犯有走私工業廢棄物的罪行，將被處以 2 年監禁和 20 萬泰銖罰金，此時罪犯可能選擇違法棄置或走私廢棄物，以降低經營成本的形式獲得利益，這是符合法律規定因此適法可以避免處理工業廢棄物的好處。因此，可考慮如果公司獲益有 5,000,000 泰銖，該罪行的罰金可增加至 5,000,000 泰銖。這種調整的概念已在許多泰國法律中使用，包括《國家環境質量促進和保護法》1992 年，但值得注意的是，在走私工業廢棄物的情況下，不使用此類罰金，這也是一種影響環境的罪行。

最終可以總結，經過對罰金懲處方針的研究，包括單位罰金（penalty unit）、基於經濟狀況的懲罰（day-fine）和考慮到犯罪所獲利益的罰金，筆者認為，在處理與非法傾倒工業廢棄物相關的違法行為時，僅僅選擇上述其中一種方法可能不足以產生效果。這類違法行為涉及高度獲利，因此，加重罰金懲處，使之與犯罪者從中獲益的程度成比例並考慮到其經濟地位，可能需要綜合運用這三種罰金計算方法。這意味著擴大懲罰力度，以遏制偷偷丟棄工業廢棄物的違法行為。

第五章 結論與建議

第一節 結論

當前棄置工業廢棄物情形，其中一個重要原因源於工廠企業主有企圖減少生產成本的動機。因此，那些缺乏對社會和環境責任感的企業主，便暗中將工業廢棄物非法丟棄在各地，而不遵循法定的適當處理和清理程序，這是對法律的規避，導致環境問題日益嚴重的一種危機。

1992 年《工廠法》和 1992 年《危險物質法》是泰國現在用來控制處理工業廢棄物的主要法律，其規定特定處罰措施，同時也具有強制力。根據對違反這兩項泰國處理非法廢棄工業廢棄物法律的研究，這些法律都規定了刑事處罰條款，包括未按照法律規定處置工業廢棄物和不遵守法官命令的情況，同時授予執法官員權力在必要時暫時或永久關閉企業的權力。

從以上說明可以看出，泰國對於非法棄置工業廢棄物的罰則非常重視。這是因為人們相信，只有依法執行，才能夠發揮有效的作用。當對違規行為進行嚴格懲罰時，違規者或犯罪分子才會對再次犯罪感到畏懼或猶豫不決。然而，事實上，非法棄置工業廢棄物是對環境的一種犯罪行為，針對此類環境犯罪的刑罰措施通常與一般犯罪的刑罰措施有所不同。泰國將刑事處罰作為對付非法棄置工業廢棄物的主要手段並不足夠，這就是為什麼泰國仍然面臨著持續存在的非法棄置工業廢棄物問題，並且檢測到違規行為的趨勢正在增加。顯而易見，泰國目前實施的法律措施尚不足以有效解決或消除這一問題。

在分析了現時對非法傾倒工業廢棄物問題的法律處罰執行與存在的問題後，本文認為其中一個重要原因是法定處罰與違法行為帶來的影響不成比例。尤其是在某些違法行為的情況下，泰國法律授予執法人員相當大的自由裁量權，使其能夠對處罰進行裁量或對案件以和解方式處理，而沒有其他法律或規章控制執法人員如何行使自由裁量權。這可能導致違法者願意按照法律規定的最高比例支付罰金(款)，以避

免面臨刑事訴訟。這樣的情況將導致按照泰國刑事訴訟法第 37 條的規定被終止，以及依照第 39 條的規定對刑事案件提出的起訴被中止。綜上，可以看出，如果依前述方式進行案件和解或繳納罰金，這些案件將無法進入刑事司法程序，這反映出現時的法律措施還不足以有效防止和解決這一問題。因此，應當重新審視現今實施的法律措施。

另外，本文從法律經濟學的角度分析隱匿丟棄工業廢料的犯罪行爲，發現犯罪決策主要透過衡量預期收益、被抓獲機率以及處罰金重程度等因素來計算預期成本。預期收益是指犯罪者預期從犯罪行爲中獲得的利益，而預期成本則是考量被抓獲的可能性以及處罰的嚴重程度等，作為犯罪決策的關鍵變數。當預期收益大於預期成本時，犯罪行爲往往會發生。因此，抑制犯罪行爲的選擇需要增加犯罪行爲的成本，以減少犯罪者預期獲得的利益。對於減少犯罪行爲的選擇，提高刑罰的嚴重程度，例如增加罰金或監禁，與其他打擊犯罪的措施相比，可能具有相同的效果。然而，罰金的成本對於政府來說可能更低。因此，筆者認為罰金是一種適合用於研究減少隱匿丟棄工業廢料犯罪的抑制手段，以期找到合適的犯罪抑制措施。

此外，從臺灣對於偷偷丟棄工業廢棄物的法規之的研究中可清楚看出，臺灣將刑罰明確區分為刑事罰金和行政罰款兩種。臺灣對於棄置工業廢棄物導致對公眾的生命、身體和健康造成嚴重危害的行爲，採取刑事罰金，這反映了刑事罰金的目的是為了懲罰行爲人對於對他人生命、身體和健康所造成的傷害負責。此外，行爲人對於不遵守法定程序所導致的損害也需對國家負責。

除了對於嚴重罪行處以刑事罰金等刑事罰外，臺灣在處理偷偷丟棄工業廢棄物的案件中，也採取了行政罰款的措施。這些罰金的最低和最高比率已在廢棄物管理法規中明確規定，並根據相應的標準進行計算。當行爲人違反法定義務中涉及事業廢棄物的情況時，根據污染程度、污染特性和危害程度，通過將各個單位的罰款代表數值替換到表格中顯示的嚴重程度，來計算最終的罰款額。從這種計算方式可以看出，即使是相同的違法行爲，所受到的罰款率也會因污染程度、污染特性和危害

程度而有所不同。這種方式與法經濟學原則相符，即對於造成重大損害的違法行為，罰金應該相對較高。

綜合比較泰國和臺灣在偷偷丟棄工業廢棄物案件上的法律，可以看出臺灣的法律制度在制定懲罰措施方面比泰國更為發達。臺灣的法律明確區分了行政罰款和刑事罰金，並根據違法行為的嚴重性採取不同的制裁方式。對於嚴重違法行為，臺灣實施刑事罰金；對於不遵守法律或政府指令的行為，則實施行政罰款。這種罰款制度是根據違法行為的性質、嚴重程度和行為人的身份而制定的，能夠有效地對違法行為進行懲罰。此外，雖然臺灣的法律也採用了類似泰國的固定罰金率的制度，但臺灣的罰款計算方式則是根據污染程度、污染特性和危害程度來確定罰款單位數量，這使得最終的罰款額能夠更準確地反映違法行為的嚴重性。因此，臺灣的懲罰措施能夠更加適切地對不同情況下的違法行為進行懲處。

因此，筆者認為泰國應該修訂法律以提高其執法效率與效力，其中一種方法是增加適當的罰則，以符合違法行為的嚴重性，尤其是對於導致廣泛損害的行為，例如偷偷丟棄工業廢棄物的情況。此外，還應檢討罰金計算方式，以確保對於每種違法行為都能夠適當地制定罰金。

第二節 建議

壹、增加罰金並明確規定罰金計算方法

為了確保在泰國對於偷偷丟棄工業廢棄物的違法行為施行法律制裁的有效性，以建立法律的嚴肅性，防止偷偷丟棄工業廢棄物行為的再次發生，筆者認為應該對該案件的罰金制度進行修訂。修訂應該基於對於違法行為帶來的預期利益進行考量，並根據該利益來計算罰金，同時考慮到違法行為的嚴重性、對自然資源和公眾健康造成的損害，以及違法行為者的經濟能力等因素，以確保罰金的公平性和合理性。

貳、對他人生命、身體和健康造成損害者，應有刑事制裁措施

因隨意棄置工業廢棄物而導致他人生命、健康和環境受損的案件，如欲進行刑事制裁時，應該採取適當且嚴厲的措施，以懲罰那些無良心地對他人造成嚴重危害的行為者。同時法規也應確保公眾，清楚了解不遵守法律的後果。特別是對於破壞環境或造成污染相關人士，應嚴格執行法律、嚴格懲罰，才能有效地解決環境問題。

參、綜合運用罰金策略以遏制非法傾倒工業廢棄物

經過對罰金懲處策略的深入研究，包括單位罰金（penalty unit）、基於經濟狀況的日罰金（day-fine）和考慮犯罪所得利益的罰金，筆者認為，僅僅依賴上述任一方法來處理非法傾倒工業廢棄物的違法行為，可能無法產生足夠的威懾效果。由於這類違法行為通常具有高度獲利性，因此，有必要綜合運用這三種罰金計算方法，加重罰金懲處力度，使之與犯罪所得相當，並考慮犯罪者的經濟狀況。這種綜合方法將有助於擴大懲罰力度，有效遏制非法傾倒工業廢棄物的行為。

肆、泰國法人刑事處罰制度的建議

泰國法律，監禁等刑事處罰無法適用於法人。在實踐中，泰國只能對法人施以罰金。因此，應特別制定對法人（法律上的組織或公司）的處罰條款，並根據其違法行為和從中獲得的利益設置適當的罰金，以有效防止違法行為。

伍、重複違法行為的處罰措施建議

根據對 Winprocess 工廠案例的研究發現，該工廠於 2020 年首次違法。儘管隨後行政官員已經下達了停止該工廠營運的行政命令，但仍發現該工廠的董事名單中有人以新工廠的名義繼續營運，並再次非法傾倒工業廢棄物。這種重複違法行為顯示，即使已經受到最高級別的行政處罰——停業處分，仍無法阻止其因獲得巨大利益而繼續違法。因此，對於重複違法的情況，應設定更嚴厲的處罰措施。

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附錄

泰國工廠法

FACTORY ACT B.E. 2535 (1992)¹¹⁹

BHUMIBOL ADULYADEJ, REX.

Given on the 2nd day of April, B.E. 2535 (A.D. 1992),

Being the 47th year of the Present Reign

His Majesty King Bhumibol Adulyadej has been graciously pleased to proclaim that:

Whereas it is expedient to revise the law on factory;

Be it, therefore, enacted by the King, by and with the advice and consent of the National Legislative Assembly acting as the Parliament, as follows:

Section 1. This Act shall be called the “Factory Act, B.E. 2535 (1992)”.

Section 2. This Act shall come into force as from the ninety days following the date of its publication in the Government Gazette.¹²⁰

Section 3. The following Acts shall be repealed.

¹¹⁹ Translated by www.ThaiLaws.com

¹²⁰ Published in the Government Gazette, Volume 109, Part 44, dated 9th of April, B.E. 2535

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- (1) The Factory Act, B.E. 2512
- (2) The Factory Act (No. 2), B.E. 2518
- (3) The Factory Act (No. 3), B.E. 2522

Section 4. The Act shall not apply to the Government factory run by the Government for the purpose of national security and safety provided that the engagement of such factory business shall be guided by the criteria and procedures relating to the engagement of a factory business under this Act.

Section 5. In this Act,

"Factory" means a building, place, or vehicle which uses a machine from five horsing powers or an equivalent thereof or more or which employs seven workers or more with or without any machine for manufacturing, producing, assembling, filling, repairing, maintaining, testing, improving, altering, transporting, keeping, or destroying anything in accordance with the type or kind of factory as provided for in a ministerial rule.

"Establishing a Factory" means a construction of the buildings for the installation of machines for engaging in a factory business or installation of the machines for engaging in a factory business in the buildings, places, or vehicles to be engaged in such business.

"Machine" means a component of several pieces for generating energy, changing or altering energy or transmitting energy by the force of water, steam, wind, gas, electricity, or any other energy or energies combined and also includes fly-wheel equipment, pulleys, belts, axles, gears, or other things which work reciprocally.

"Worker" means a person who works in a factory but excluding a person working in an administrative staff.

"Grantor" means the Permanent Secretary of the Ministry or a person appropriately assigned by the Permanent Secretary of the Ministry.

"Permit" means a permit for the engagement in a factory business.

"Authority" means a person appointed by the Minister for the execution of this Act.

"Permanent Secretary" means the Permanent Secretary of the Ministry of Industry.

"Engagement in a factory business" means manufacturing, producing, assembling, filling, repairing, maintaining, testing, modifying, altering, transporting, keeping or destroying anything in accordance with the nature of the business of the factory but excludes the operation test of the machines.

"Minister" means the Minister who takes charge of this Act.

Section 6. The Minister of Industry shall take charge of the execution of this Act and shall have the power to appoint the authorities and to prescribe the ministerial rules fixing the fees of not higher than the rates attached herewith, exempting the fees and adopting other requirements for the execution of this Act.

The ministerial rules and announcements of the Minister prescribed pursuant to this Act, upon publication in the Government Gazette, shall become enforceable.

Chapter 1

Engagement in a Factory Business

Section 7. The Minister shall have the power to prescribe the ministerial rules in fixing the factory of any type, kind or size to be the group 1 factory, group 2 factory, or group 3 factory as the case may be by taking into consideration the necessity for the control, prevention of nuisance, prevention of damage, and prevention of danger in accordance with the gravity of impact on the public or environment by classifying as follows:

(1) Group 1 factory is factory of the type, kind, and size as capable of engaging in a factory business immediately upon desire of a person engaging in a factory business.

(2) Group 2 factory is factory of the type, kind, and size as, when engaging in a factory business, must be notified in advance to the Grantor.

(3) Group 3 factory is factory of the type, kind, and size as to be granted a permit prior to the engagement.

Upon prescription of an announcement of the Minister pursuant to Section 32 (1), the factory designated in such announcement shall also be the group 3 factory.

Section 8. For the purpose of control of the engagement in a factory business, the Minister shall have the power to prescribe the ministerial rules with which any or all groups of factory under Section 7 must comply with respect to the following matters.

(1) To adopt the criteria relating to the location of factory, environment of the factory, nature of the buildings of factory, or interior nature of the factory.

(2) To adopt the nature, type, or kind of machines, equipment or such other things as to be used for the engagement in a factory business.

(3) To adopt the requirements of specialized workers according to the type, kind, or size of factory to perform any duty for such factory.

(4) To adopt the criteria to be followed, process of production and provision of other equipment or tools in order to prevent or stop or mitigate the dangers, injuries, or troubles that may cause to the persons or property in the factory or its vicinity.

(5) To adopt the standards and methods of controlling the discharge of wastes, pollutants or anything that affects the environment as a result of the engagement in a factory business.

(6) To adopt the provision of required documents for the factory, for the purpose of controlling and inspecting the compliance with the laws.

(7) To adopt the required information relating to the engagement in a factory business of which a person engaging in a factory business must inform from time to time or in a specified period.

(8) To adopt any other requirements for the protection of safety in the operations in order to prevent or stop or mitigate the dangers or injuries that may result from the engagement in a factory business.

The ministerial rules under paragraph one may exempt the factory of any type, kind, or size from performing any matter and such ministerial rules may require the matters of technical details or of rapid changes according to the social conditions to be in accordance with the criteria prescribed by the Minister upon publication in the Government Gazette.

Section 9. In case where it is required to inspect the factory or machines for the execution of this Act, an individual may be designated to carry out the inspection and make a report of the result of the inspection in lieu of the performance of the duties of authorities subject, however, to the regulations prescribed by the Minister upon publication in the Government Gazette.

Section 10. A person engaging in, a factory business of group 1 must comply with the criteria provided for in the ministerial rules prescribed pursuant to Section 8 and the announcements of the Minister prescribed pursuant to the said ministerial rules.

Section 11. A person engaging in a factory business of group 2 must comply with the criteria provided in the Ministerial rules prescribed pursuant to Section 8 and the announcements of the Minister prescribed pursuant to the said ministerial rules and upon commencing the engagement in a factory business shall notify the authority in advance.

The forms and particulars to be notified and the form of notification receipt shall be in accordance with those provided for in the ministerial rules.

Upon receipt of the notification under paragraph one, the authority shall issue a notification receipt to the applicant as a proof of such notification on the date of receipt of the notification and the applicant shall engage in a factory business as from the date of receipt of such notification receipt.

In case where the authority finds out later that the notification under paragraph one is incorrect or incomplete, the authority shall have the power to order the applicant to correct or complete within seven days as from the date of receipt of such order.

The dissolution of business, the transfer, lease, or hire-purchase of group 2 factory shall be notified in writing by the person engaging in a factory business to the authority within thirty days as from the date of such action.

Section 12. A person engaging in a factory business of group 3 must obtain a permit from the Grantor and must comply with the criteria provided for in the ministerial rules prescribed pursuant to Section 8, the announcement of the Minister prescribed pursuant to the said ministerial rules and the announcements of the Minister prescribed pursuant to Section 32.

No person shall be allowed to establish a factory before obtaining a permit.

The application for a permit and the procedures of consideration and duration of such consideration for the issuance of a permit shall be in accordance with those provided for in the ministerial rules.

In case where the applicant requests for a certificate before a permit is issued, if a preliminary consideration suffices the grant in principle, the Grantor shall issue a certificate upon reservation on the unfinished part according to the criteria prescribed by the Minister upon publication in the Government Gazette.

In issuing a permit, the person having the power to grant a permit shall consider in accordance with the criteria provided for in the ministerial rules prescribed pursuant to Section 8, the announcements of the Minister prescribed pursuant to the said ministerial rules and the announcements of the Minister prescribed pursuant to Section 32. Where no criteria are provided for, it shall be considered by taking into account the safety of the persons or property in the factory or its vicinity or if it must be complied with the announcements of the Minister prescribed pursuant to Section 32, conditions may be provided in a permit to be followed specially by the person engaging in a factory business.

Section 13. A recipient of a permit under Section 12, if wishing to commence the engagement in any part of the factory business, must notify the authority not less than fifteen days prior to the commencing date of engagement in the factory business.

If there shall be any operation test of the machines before commencement of the engagement in a factory business under paragraph one, the recipient of a permit must also notify the authority of the day, time, and duration of such operation test not less than fifteen days.

The criteria and duration that may be applied to such operation test shall be in accordance with those provided for in the ministerial rules.

Section 14. A permit shall be valid until the last day of the fifth calendar year as from the year of commencement of the engagement in the business except in the case of moving of the factory under Section 27 or of dissolution of the engagement in the factory business, such permit shall be deemed to expire on the date of issuance of a new permit or of dissolution of the factory business.

If it is to appropriate to cease the engagement in the business in a near future, the Grantor, upon approval of the Minister may issue a permit of a shorter period than that provided for in paragraph one. The permit issued in this case may not be renewed.

Section 15. In renewing a permit, a recipient of a permit shall file an application prior to the expiration of a permit. Upon such application, the applicant shall be deemed to be the recipient of a permit until a final order refusing a renewal of a permit is given.

If the result of inspection indicates that the factory and machines are in compliance with Section 8, the announcements of the Minister prescribed pursuant to the said ministerial rules and the announcements of the Minister prescribed pursuant to Section 32 and the conditions provided for in a permit, the Grantor shall renew the permit. In case of incorrectness, the authority shall order a correction within the specified period. Upon such correction, a renewal shall be granted.

Failure to make correction within the specified period, the order refusing such renewal of the permit shall be given.

The application for renewal of a permit and grant of such renewal shall be in accordance with the criteria and procedures provided for in the ministerial rules.

A person who fails to file an application for a renewal of the permit within the period under paragraph one, if wishing to continue the engagement in the factory business and having already filed the application for renewal of the permit within the period of sixty days as from the date of expiration of the permit, shall be deemed to file the application within the specified period and the engagement in the factory business during such period shall be deemed as that of the recipient of the permit. However, upon a grant of renewal of the permit, such person shall pay an additional fine of twenty percent of the renewal fee. Upon expiration of the sixty-day period, such person shall proceed as if it were a new application.

Section 16. The order refusing the issuance of a permit or the renewal thereof may be appealed by the applicant for such issuance or renewal to the Minister within thirty days as from the date of receipt of the order. The decision of the Minister shall be final.

Section 17. Any factory for which a person engaging in a business has been granted a permit, if it appears thereafter that such factory uses the machines of lower than five horse powers or employs less than seven workers, such factory shall be deemed to be the factory under this Act until notice of dissolution of the factory business is given or the permit expires.

Section 18. A recipient of a permit may not expand the factory unless permitted by the Grantor. Section 12, Section 13, and Section 16 shall apply mutatis mutandis to the application for expansion of the factory and the grant thereof including the appeal of the order refusing such expansion.

Expansions of the factory are:

(1) an increase of a number, change or alteration of the machines in order to increase their aggregate powers from fifty percent or more in case where the original machines have their aggregate powers of not more than one hundred horse powers or an equivalent thereof of not more than one hundred horse powers or to increase from fifty horse powers or more in case the original machines have their aggregate powers of more than one hundred horse powers or an equivalent thereof of more than one hundred horse powers.

(2) an increase or modification of any part of the factory buildings rendering any of their original foundations to carry more weight from five hundred kilograms or more.

A permit as to the expanded part shall be valid for the same period as that of the permit under Section 14.

Section 19. When the recipient of a permit increases a number, changes or alters the machines used for production, machines used for generating power or the energy of the machines to other forms but not amounting to the expansion of the factory or to the increase of the area of the factory building or to the new construction of the factory building for the direct benefits of the business of such factory rendering the area of the factory building to be increased from fifty percent or more in case where the area of the factory building does not exceed two hundred square meters or to be increased from one hundred square meters or more in case where the area of the factory exceeds two hundred square meters, the recipient of the permit shall notify in writing the authority within seven days as from the date of such increase, change or alteration of the machine or increase of the area of factory building or additional construction of the factory building as the case may be and must comply with the criteria and procedures relating to the increase of a number, change or alteration of the machines or increase of the area of the factory building or additional construction of the factory building as provided for in the ministerial rules.

Section 20. The conditions provided for in a permit under Section 12 paragraph five, if the Grantor deems it appropriate to cancel or change or add appropriate conditions to

be followed by the recipient of the permit in engaging in a factory business, the Grantor shall so give a written order.

Any recipient of a permit who wants to cancel or change the conditions to be followed in engaging in a factory business shall file an application and explain the reasons to the Grantor.

The Grantor shall consider forthwith and give a written order immediately.

If the recipient of the permit does not agree with the opinions of the Grantor, he/she shall appeal to the Minister within the period of thirty days as from the date of receipt of the written order. The decision of the Minister shall be final.

Section 21. In case where the recipients of a permit transfers the factory business, leases or effects a hire-purchase of the factory, or sells the factory, such person shall be deemed to cease the engagement in the factory business as from the date of transfer of the factory business, lease or hire-purchase of the factory or sale of the factory.

The transferee of the factory business, lessee or hire-purchaser of the factory or purchaser of such factory shall apply for a permit within seven days as from the date the engagement of the factory business is deemed to have ceased under paragraph one without paying the permit fee.

Upon submission of such application, the engagement in a factory business shall be continued pending the receipt of a permit as if such applicant were the recipient of the permit.

The criteria, procedures, conditions for the acceptance of the transfer and issuance of a permit shall be in accordance with those provided for in the ministerial rules.

Section 22. In case of death of the recipient of a permit, the heir(s) or administrator(s) shall file an application to the Grantor for the acceptance of the transfer of a permit within ninety days as from the date of death of the recipient of a permit or within a period as extended by the Grantor as he deems necessary. Failure to file an application within the

specified period, a permit shall be deemed to expire. If such person(s) wish to continue the engagement in a factory business, they shall undertake to reapply for a permit.

During the period under paragraph one, the heir(s) or administrator(s) engaging in a factory business shall be deemed as if they were the recipient(s) of a permit.

In case where the recipient of a permit is adjudged an incompetent person, the provisions of the two preceding paragraphs shall apply to the guardian *mutatis mutandis*.

The criteria, procedures, conditions for the acceptance of the transfer and issuance of a permit shall be in accordance with those provided for in the ministerial rules.

Section 23. The recipient of a permit must present the permit at the open and noticeable place in his/her factory.

Section 24. Upon changing of the name of the factory or of the name of the recipient of a permit, the recipient of a permit shall notify in writing the authority within fifteen days as from the date of such change.

Section 25. In case of loss or destruction of a permit, the recipient of the permit shall apply for a substitute to the authority within fifteen days as from the date of learning of the loss or destruction.

Section 26. The recipient of a permit wishing to move parts of the machines installed in the factory to another place for temporary engagement in a factory business shall file an application for permission to the Grantor together with the chart and other details articulating the reasons for consideration.

If the Grantor deems it appropriate, the Grantor shall grant the move of the machines to engage in a business as requested within the specified period but not later than one year as from the date of such order. In this respect, the conditions relating to the safety measures may be provided to be followed.

If the recipient of a permit needs to engage in such business beyond the period as permitted under paragraph two, an application for extension of such period shall be filed

with the Grantor prior to the expiration of such period. If the Grantor deems it appropriate, the Grantor shall grant the extension of the period for not more than one year.

Section 27. Any recipient of a permit wishing to move the factory to another place shall proceed as establishing a new factory.

Section 28. Any recipient of a permit ceasing the engagement in a factory business shall notify in writing the Grantor within fifteen days as from the date of cessation of the factory business.

If the recipient of a permit wishes to change a group 3 factory to a group 1 factory or group 2 factory as the case may be, the recipient shall notify of the cessation of the factory business under paragraph one and upon continuation of the engagement in the factory business, the recipient shall proceed as provided for in this Act for the engagement in the said groups of factory business.

Section 29. In case where there are the ministerial rules under Section 7 or announcements of the Minister under Section 32 (1) rendering a group 1 factory or group 2 factory to be a group 3 factory, if a person engaging in a factory business applies for a permit under Section 12 within the period of thirty days as from the date of coming into force of the ministerial rules, such person shall continue the engagement in the factory business as if he/she were the recipient of the permit and the Grantor shall immediately issue a permit.

Section 30. The Minister shall have the power, upon publication in the Government Gazette, to designate any area to be an industrial zone.

The engagement in a business of group 2 factory or group 3 factory within the industrial zone under paragraph one or the industrial estate established pursuant to the law on industrial estates shall be exempted from the notification to the authority under Section 11 or permission under Section 12 as the case may be but such engagement in a factory business shall follow the criteria provided for in the ministerial rules prescribed pursuant to Section 8, announcements of the Minister prescribed pursuant to the said

ministerial rules, announcements of the Minister prescribed pursuant to Section 32 (1) and other provisions relating to the control of engagement in a factory business under this Act provided that it shall be deemed as if he/she were the notifier or the recipient of the permit as the case may be.

Upon designation of any area as the industrial zone or establishment of the industrial estate under the law on industrial estates, the Minister may prescribe a ministerial rule designating a surrounding area of the industrial zone or estate within a specified limit to be an absolutely forbidden zone for factory business or allowing only the engagement in a business of certain type, kind or size of factory.

Section 31. For the purpose of effective public administration and of facilitation to the public, if any engagement in a factory business involves a matter which also requires a permission from the authority under other laws, the authority having the power to execute under this Act and the authority having the power to execute under such laws may adopt the procedures of undertaking for joint consideration.

The undertaking under paragraph one may be effected by joint application or by exemption of the required documents, the particulars or information to be presented, the place of which applications or documents must be submitted and steps of overlapping or similar considerations for permission or which is likely to create unnecessary obstacles for such joint consideration and if it is appropriate, the criteria or procedures will be adopted instead to be followed but such permission must be in accordance with the format provided for in the laws on such matters.

In a joint consideration, the authority having the power to inspect, having the power to consider any part of such permission or having the power to grant permission may delegate his/her power to other authorities involved in the consideration for permission to execute on his/her behalf as is appropriate.

The adoption and delegation under paragraph two, paragraph three, upon publication in the Government Gazette, shall become enforceable.

Chapter 2

Supervision of the Factory

Section 32

For the purposes of economy, conservation of environment, security, safety of the country or of the public, the Minister, upon approval of the Cabinet, shall have the power to adopt, upon publication in the Government Gazette, the following matters:

(1) To adopt a number and sizes of each type or kind of factory to be established or expanded or to refuse the establishment or expansion thereof in any area.

(2) To adopt the kinds, quality, ratio of the raw materials, sources of raw materials and/or factors or kinds of energy to be used or produced in the factory.

(3) To adopt the kinds or quality of the products produced in the factory to be established or expanded.

(4) To adopt the application of the produces of the factory to be established or expanded to certain types of industry or the exportation of all or part of tile produces.

Section 33. If the group 2 factory or group 3 factory cease their operations consecutively for more than one year, a person engaging in the business of group 2 factory or a recipient of a permit for the business of group 3 factory as the case may be must notify in writing the authority within seven days as from the day following the last date of one year.

If the said person under paragraph one wishing to continue the engagement in the factory business, such person shall notify in writing the authority prior to the commencement of the business and in case of group 3 factory, such person must first obtain a written permission from the authority before engaging in a factory business.

Section 15 paragraph two and Section 16 shall apply mutatis mutandis to the permission of continuation of the engagement in the business of group 3 factory.

Section 34. In case of accident in a factory caused by the factory or a machine thereof regardless of any group of factory, if such accident;

(1) causes death, illness or injury to the persons who after seventy-two hours cannot perform their original duties, the person engaging in a factory business shall notify in writing the authority within three days as from the date of death or expiration of seventy-two hours as the case may be;

(2) causes the operations of the factory to be stopped for more than seven days, the person engaging in the factory business shall notify in writing the authority within ten days as from the date of accident.

When the accident occurs under paragraph one, the authority shall inspect the factory and the machines and consider proceeding under Section 37 or Section 39 as the case may be.

Section 35. For the implementation this Act, the authority shall have the following powers.

(1) To enter a factory or building, place or vehicle, suspected to engage in a factory business, during the period from sunrise to sunset or during the working hours of the said place to inspect the condition of the factory, building, place or vehicle, the condition of the machines or any act that may violate the provisions of this Act.

(2) To take the specimens of products suspected of their quality in a reasonable quantity for inspection of their quality together with relevant documents.

(3) To inspect, search, detain, seize or attach the products, containers, book accounts, documents or any relevant articles in case where there is a reasonable ground to suspect that engagement in a business of the factory may cause harms to the persons or property in the factory or its vicinity or an offence under this Act has been committed.

(4) To summon in writing any person to testify or to submit any document or object for consideration.

Section 36. When it appears that any person has committed an offence under this Act or is suspected to have so committed, the authority appointed from the government officials not lower than level 4 of position classification shall have the power to arrest such person in order to hand over to an inquiry official for further legal action.

Section 37. In case where the authority finds out that any person engaging in a factory business violates or fails to comply with this Act or engages in a factory business in such a manner as to cause harms, injuries or troubles to the persons or property in the factory or its vicinity, the authority shall have the power to order such person to stop such violating act or to correct or improve or conform correctly or properly within the specified period.

If the authority deems it appropriate, upon approval of the Permanent Secretary or a person assigned by the Permanent Secretary, the authority shall have the power to bind and stamp on the machines to prevent them from operating during the compliance with the order of the authority under paragraph one.

Section 38. For the service of an order under this Act, the authority shall serve at the domicile or factory of the person specified in the order during the period from sunrise to sunset or during the working hours of such person(s) or may send by a registered reply mail.

In case where the order has been served by the authority but the person specified in the order refuses to receive such order, the authority shall ask an administrative official or police to accompany as a witness for the leaving of the order at such a place. If, however, the person specified in the order is not found at the domicile or a place of business of such person, a service may be made to any person of sui juris who is or works in such a place and if no person is found or if found but refuses to accept on behalf of the specified person, the order shall be posted at a noticeable place at such domicile or factory in the presence of an administrative official or police accompanying as a witness.

Upon execution by the authority under paragraph one or paragraph two, the person specified in the order shall be deemed to have received such order. If, however, the order

is sent by a registered reply mail or posted, such order shall be deemed to have been received upon the expiration of fifteen working days as from the date of sending by a postman or of posting such order as the case may be.

Section 39. In case where a person engaging in a factory business intentionally fails to comply with the order of the authority under Section 37 without reasonable ground or in case where it appears that the engagement in a business of any factory may cause serious harms, injuries or troubles to the persons or property in the factory or its vicinity, the Permanent Secretary or a person assigned by the Permanent Secretary shall have the power to order such person to stop temporarily engaging in all or part of the factory business and to modify such factory or to conform within the specified period.

If the person engaging in the factory business has modified the factory or conformed within the specified period, the Permanent Secretary or a person assigned by the Permanent Secretary shall order a continuation of the factory business.

If the person engaging in the factory business fails to modify the factory or to conform within the specified period, the Permanent Secretary or a person assigned by the Permanent Secretary shall have the power to order a closure of the factory and in case of group 3 factory, the order closing the factory shall also have the effect of revoking the permit.

Section 40. The order to stop engaging in the business or to close the factory shall be posted by the authority at three noticeable places at least at such factory provided that statements prohibiting the persons performing their duties in the factory, workers or every person involved to work in the factory for the continuation of the business after the order stopping the engagement in the business or closing the factory has been given shall be provided.

Section 41. The order of the authority under Section 37 or the order of the Permanent Secretary or a person assigned by the Permanent Secretary to stop the engagement in the factory business under Section 39 paragraph one or the order to close

the factory under Section 39 paragraph three shall be appealed to the Minister within thirty days as from the date of receipt of the order. The decision of the Minister shall be final.

The appeal under paragraph one shall not ease the compliance with the order of the authority or the order to stop engaging in the factory business or the order to close the factory unless otherwise ordered by the Minister.

Section 42. In case where the person engaging in the factory business fails to comply with the order of the authority under Section 37, if there is a ground for the Government to take over the operations, the Permanent Secretary or a person assigned by the Permanent Secretary shall have the power to order the authority or to assign any person to rectify for the implementation of such order. In this respect, the person engaging in the factory business must bear the expenses for such takeover for the amount actually paid together with the penalty at the rate of thirty percent per annum of the said amount.

If the Government has undertaken to solve the pollution problem or the impact on the environment caused by the factory, it shall request a subsidy from the Environment Fund under the law on the Enhancement and Conservation of National Environmental Quality Act to pay for its operations and upon receipt of the money under paragraph one from the person engaging in the factory business, the government shall reimburse for the subsidy obtained to the Environment Fund accordingly.

Section 43. The persons engaging in a business of group 2 factory and group 3 factory must pay the annual fees in accordance with the criteria, procedures, and rates as provided for in the ministerial rules throughout the period of engagement in the business. Failure to pay the fees within the specified period shall result in the payment of additional money at five percent per month and if they still refuses to pay the fees without reasonable ground, the authority shall have the power to order such person to stop the engagement in the

business until the fees and additional money have been paid in full and Section 39, Section 40 and Section 41 shall apply mutatis mutandis.

Section 44. In performing the duties, the authority must present the identity card upon request of the persons involved.

The identity card of the authority shall be in accordance with the form specified by the Minister upon publication in the Government Gazette.

Chapter 3

Penalties

Section 45. Any person violating or failing to comply with the ministerial rules prescribed pursuant to Section 8 (1) (2) (3) (4) (5) or (8) or announcements of the Minister prescribed pursuant to the said ministerial rules shall be subject to a fine not exceeding two hundred thousand Baht.

Section 46. Any person violating or failing to comply with the ministerial rules prescribed pursuant to Section 8 (6) or (7) or announcements of the Minister prescribed pursuant to the said ministerial rules shall be subject to a fine not exceeding twenty thousand Baht.

Section 47. Any person producing a false result of the inspection under Section 9 shall be subject to an imprisonment not exceeding two years or a fine not exceeding two hundred thousand Baht or both.

Section 48. Any person engaging in a business of group 2 factory without notifying the authority under Section 11 paragraph one shall be subject to an imprisonment not exceeding six months or a fine not exceeding fifty thousand Baht or both.

Section 49. Any person engaging in a business of group 2 factory notifying of the engagement in the business incorrectly or incompletely as provided for in the ministerial rules under Section 11 paragraph two or failing to comply with Section 11 paragraph five or Section 33 shall be Subject to a fine not exceeding twenty thousand Baht.

Section 50. Any person engaging in a business of group 3 factory without a permit under Section 12 paragraph one or establishing a factory without a permit under Section 12 paragraph two shall be subject to an imprisonment not exceeding two years or a fine not exceeding two hundred thousand Baht or both.

In case where the factory under paragraph one is that of the type or kind of which a number or sizes are specified in order to grant or deny an establishment in any area in accordance with the announcements prescribed pursuant to Section 32 (1), such offender shall be subject to an imprisonment not exceeding four years or a fine not exceeding four hundred thousand Baht or both.

Section 51. Any recipient of a permit failing to comply with Section 13 paragraph one or paragraph two, Section 19, Section 28 or Section 33 shall be subject to a fine not exceeding twenty thousand Baht.

Section 52. Any recipient of a permit expanding the factory without a permit for factory expansion under Section 18 shall be subject to an imprisonment not exceeding two years or a fine not exceeding two hundred thousand Baht or both.

In case where the factory under paragraph one is that of the type or kind of which a number or sizes are specified in order to grant or deny an expansion in any area in accordance with the announcements prescribed pursuant to Section 32(1), such offender shall be subject to an imprisonment not exceeding four years or a fine not exceeding four hundred thousand Baht or both.

Section 53. Any recipient of a permit failing to comply with Section 23, Section 24 or Section 25 shall be subject to a fine not exceeding five thousand Baht.

Section 54. Any person engaging in a factory business failing to comply with Section 34 paragraph one shall be subject to a fine not exceeding twenty thousand Baht.

Section 55. Any person engaging in a factory business during the order to stop engaging in a factory business or after the order to close the factory shall be subject to an

imprisonment not exceeding two years or a fine not exceeding two hundred thousand Baht or both and an additional fine of five thousand Baht daily until the cessation of the engagement in the business.

Any architect or engineer still working in the factory only in the part against which the order to stop engaging in the business has been given or still working in the factory against which the order to close has been given in order to continue the engagement in the business of the factory shall be subject to the same penalties as those for the person engaging in a factory business under paragraph one.

Any person working in a factory or any worker still working in the factory only in the part against which to order to stop engaging in the business has been given or still working in the factory against which the order to close has been given shall be presumed to be the accomplice or supporter of the offence under paragraph one as the case may be but the court may inflict the penalty to the least extent possible by taking into account the status, responsibility for the family, intention to violate the law and the substantial participation in the act.

Section 56. Any person obstructing or failing to facilitate the authority who performs the duties under Section 35 shall be subject to an imprisonment not exceeding one month or a fine not exceeding twenty thousand Baht or both.

Section 57. Any person failing to comply with the order of the authority given under Section 37 paragraph one shall be subject to an imprisonment not exceeding one year or a fine not exceeding one hundred thousand Baht or both and an additional fine not exceeding five thousand Baht throughout the period of violation or noncompliance.

Section 58. Any person doing any act to reactivate the machine(s) bound and stamped by the authority under Section 37 paragraph two shall be subject to an imprisonment not exceeding one year or a fine not exceeding one hundred thousand Baht or both.

Section 59. Any person obstructing or failing to facilitate a person assigned by the Permanent Secretary or by a person assigned by the Permanent Secretary undertaking the execution

of the order under Section 42 shall be subject to an imprisonment not exceeding one year or a fine not exceeding one hundred thousand Baht or both.

Section 60. Any person doing any act causing defect or damage to the order to stop engagement in the factory business or to close the factory shall be subject to an imprisonment not exceeding six months or a fine not exceeding fifty thousand Baht or both.

Section 61. In case where a person engaging in a factory business committing an offence under this Act, the architect or engineer working in the factory and responsible for the part of work in which such offence has been committed shall be deemed to take part in or know of the commission with the person engaging in the factory business and shall be subject to the same penalties as those for the person engaging in the factory business unless it is proved that such person does not know of or consent to the commission of such offence.

Apart from the penalties under paragraph one, the Permanent Secretary shall notify the Board on the Control of Architectural Profession or the Board on the Control of Engineering Profession of the name and commission of such person in order to proceed under the laws on architectural profession or on engineering profession accordingly.

Section 62. Any person once punished for the commission of the offence under this Act, if again committed the same offence for which he/she has been punished, the court shall consider increasing the punishment for such persons at least one-third of the imprisonment penalty or increasing the punishment for another one-half of the fine penalty for such offence.

Section 63. In case where a partnership, company or other juristic persons commit an offence under this Act, the directors, managers or any person responsible for such

commission shall also be subject to the penalties provided for such offence unless it is proved that such offence has been committed without their knowledge or consent.

Section 64. In case where an offence is committed under this Act, a person residing near or adjacent to the factory in which the offence is committed or a person whose living is affected as a result of commission of the offence shall be deemed to be the injured person under the Criminal Procedure Code.

Section 65. There shall be the committees for effecting the cases in Bangkok and provincial areas as is appropriate.

Each committee for effecting the cases shall be appointed by the Minister from three legal scholars whose term of office shall be two years but upon retiring from office may be re-appointed.

The vacancy from office before the term, meetings and procedures of the committees for effecting the cases shall be in accordance with the regulations prescribed by the Minister upon publication in the Government Gazette.

All offences under this Act except those under Section 50 paragraph two or Section 52 paragraph two may be effected by a fine by the committees for effecting the cases, if it is regarded that the accused should not be prosecuted or inflicted with an imprisonment penalty and upon paying a fine by the accused as effected within thirty days as from the date of such effect, the case shall be deemed to be settled under the Criminal Procedure Code.

In case where the inquiry official finds out that any person committing the offence under paragraph four and such person agrees to be effected by a fine, the inquiry official shall submit the file to the committee for effecting the cases within seven days as from the date of consent of such person to be effected by a fine.

Transitory Provisions

Section 66. Any application filed and any permission granted and pending the consideration of the Grantor or performance of the applicant as granted as the case may be shall be deemed as the application or permission under this Act mutatis mutandis. In case where such application or permission is different from the application or permission under this Act, the Grantor shall have the power to order an amendment as is necessary for the implementation of this Act.

Section 67. A permit for engineering in a factory business issued to any person pursuant to the law on factory prior to the coming into force of this Act shall remain valid until expiration of its specified period.

A permit for establishing a factory under the law on factory prior to the coming into force of this Act shall be deemed as the permit for engaging in a factory business under this Act and the recipient of such permit shall have the duty to proceed under this Act.

Section 68. All ministerial rules and announcements prescribed pursuant to the law on factory shall remain in force insofar as they do not conflict or contradict with the provisions of this Act.

Countersigned by

Anand Panyarachun

Prime Minister

Rate of Fees

- | | |
|---|--------------|
| (1) Application | 100 Baht |
| (2) Permit or permit for expanding a factory | 100,000 Baht |
| (3) Substitute for a permit | 1,000 Baht |
| (4) Renewal of permit shall be in accordance with the rate in (2) | |

(5) Fee for engaging in a factory business 30,000 Baht annually In prescribing a ministerial rule fixing the fees, different rates of the fees may be adopted by taking into account the size and business the factory involved.

泰國危害物質法

HAZARDOUS SUBSTANCE ACT

B.E. 2535 (1992)¹²¹

BHUMIBOL ADULYADEJ, REX.

Given on the 29th Day of March, B.E. 2535 (A.D. 1992),

Being the 47th Year of the Present Reign

His Majesty King Bhumibol Adulyadej is graciously pleased to proclaim that:

Whereas it is expedient to revise the law on toxic substance;

Be it, therefore, enacted by the King, by and with the advice and consent of the National Legislative Council acting as the Parliament, as follows:

Section 1. This Act is called the “Hazardous Substance Act, B.E. 2535 (A.D.1992).”

Section 2. This Act shall come into force as from the day following the date of its publication in the Government Gazette.¹²²

Section 3. The following shall be repealed:

(1) Toxic Substance Act, B.E. 2510 (1967).

¹²¹ Translated by Center for Translation and Language Services, Research Institute for Languages and Cultures of Asia, Mahidol University under contract for the Office of the Council of State of Thailand's Law for ASEAN project.- Initial version- pending review and approval.

¹²² Published in the Government Gazette, Vol. 109, Part 39, dated 6th April, B.E. 2535 (1992)

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(2) Toxic Substance Act (No. 2), B.E. 2516 (1973).

Section 4. In this Act,

“Hazardous substance” means the following substances:

- (1) Explosives;
- (2) Inflammable substances;
- (3) Oxidizing agents and peroxide substances;
- (4) Toxic substances;
- (5) Disease causing substances;
- (6) Radioactive substances;
- (7) Mutagenic substances;
- (8) Corrosive substances;
- (9) Irritative substances;
- (10) Other substances, whether chemicals or otherwise, which may be harmful to people, animals, plants, property or environment;

“Produce” means make, cultivate, prepare, mix, transform, modify, repack separately or pack in mass;

“Import” means bring or order to bring into, or transit through, the Kingdom; “Export” means send or cause to send out of the Kingdom;

“Sell” means dispose of, distribute, or dispense for trade purposes, and shall include having in possession for sale;

“Having in possession” means having in possession for the possessor himself or herself or for other persons whether such possession is for sale, transportation, use or for other purposes, including being left or appearing within the area under possession;

“Label” means picture, artificial mark or any statement displayed on hazardous substance or its container or package, or inserted in or keep collectively with hazardous substance or its container or package, including instruction of use or user’s manual of hazardous substance;

“Convention on the Prohibition of Chemical Weapons”¹²³ means the Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on their Destruction having been opened for signature since 13th January, B.E. 2536 (1993);

“Committee” means the Hazardous Substance Committee;

“Competent official” means a person appointed by the Responsible Minister for the execution of this Act;

“Responsible Minister” means the portfolio Minister of the agency entrusted to be responsible for the control of hazardous substance under Section 19.

Section 5. The Minister of Defence, the Minister of Agriculture and Cooperatives, the Minister of Transport, the Minister of National Resources and Environment, the Minister of Energy, the Minister of Interior, the Minister of Science and Technology, the Minister of Public Health and the Minister of Industry shall control, promote and supervise the secretary and the assistant secretaries of the Hazardous Substance Committee in the execution of this Act.¹²⁴

The Minister of Industry shall have the power to issue Ministerial Regulations prescribing fees not exceeding the rate of fees annexed hereto, granting exemption from payment of fees, prescribing other acts, issuing Notifications for the execution of this Act.

The Responsible Minister shall have the power to appoint competent officials and issue Notifications for the execution of this Act.

Such Ministerial Regulations or Notifications shall come into force upon their publication in the Government Gazette.

¹²³ Section 4, the definition of “Convention on the Prohibition of Chemical Weapons” as added by the Hazardous Substance Act (No. 2), B.E. 2544 (2001)

¹²⁴ Section 5 paragraph one as amended by the Hazardous Substance Act (No. 3), B.E.2551 (2008)

Chapter 1

Hazardous Substance Committee

Section 6.¹²⁵ There shall be established a Hazardous Substance Committee consisting of the Permanent Secretary of the Ministry of Industry as Chairperson, the Commissioner General of the Royal Thai Police, the Director-General of the Department of Land Transport, the Director-General of the Department of Internal Trade, the Director-General of the Department of Medical Services, the Director-General of Pollution Control Department, the Director-General of the Department of Energy Business, the Director-General of the Department of Fisheries, the Director-General of the Department of Livestock Development, the Director-General of the Department of Agriculture, the Director-General of the Department of Medical Sciences, the Director-General of the Department of Agricultural Extension, the Secretary-General of the Food and Drug Administration, the Secretary-General of the Office of Atomic Energy for Peace, the Secretary-General of the Thai Industrial Standards Institute, a representative of the Ministry of Defense, a representative of the Ministry of Transport, a representative of the National Bureau of Agricultural and Food Standards and not more than ten qualified persons appointed by the Council of Ministers, as members. The Director-General of the Department of Industrial Works shall be member and secretary, and a representative of the Department of Energy Business, a representative of the Department of Industrial Works, a representative of the Department of Agriculture, a representative of the Food and Drug Administration, and a representative of the Office of Atomic Energy for Peace shall be assistant secretaries.

The qualified members as appointed by the Council of Ministers shall be the persons having knowledge, expertise, contributions and experience in the related fields of chemistry, science, engineering, agriculture or law, and at least five of them shall

¹²⁵ Section 6 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

be appointed from the qualified persons who are representatives of public benefit organizations

with experience in providing protection to health and hygiene, consumers, sustainable agriculture, hazardous substance management in the locality, or environment.

Section 7. The Committee shall have the powers and duties as follows:

(1)¹²⁶ To formulate policies, prescribe measures and prepare plans on hazardous substance control to be complied with by all agencies concerned upon approval of the Council of Ministers;

(1/1)¹²⁷ To give recommendations to the Minister of Industry in relation to the issuance of the Notifications under Sections 18 paragraph two and 36 paragraph one;

(2)¹²⁸ To give recommendations to the Responsible Minister in relation to the issuance of Notifications under Sections 20, 20/1, 36 paragraph three, 37 paragraph two, 43, 44, and 47 (5);

(3) To give advice to the competent official on the registration or the deregistration of hazardous substance;

(4) To give recommendation or advice to the Responsible Minister, the Minister of Industry, the responsible agencies and the competent official on any matter in relation to hazardous substance;

(5) To consider complaint of a person affected by or injured from hazardous substance;

(6) To notify or disseminate information relating to hazardous substance to the public, doing so with or without the name of the hazardous substance or the name of entrepreneur concerned;

¹²⁶ Section 7 (1) as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹²⁷ Section 7 (1/1) as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹²⁸ Section 7 (2) as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

(7) To supervise, monitor, give advice and expedite the competent official or government agencies having powers and duties in relation to any hazardous substances for the performance of their powers and duties as provided by laws;

(8) To propose recommendations to the Minister of Industry in order to submit to the Council of Ministers concerning hazardous substance control and prevention and remedies for damage caused by hazardous substance as practical guidelines for the operation of various government agencies.

(9) To perform any other acts provided by law as the powers and duties of the Committee.

Section 8.¹²⁹ A qualified member shall hold office for a term of three years. A qualified member who vacates office may be reappointed, but not more than two consecutive terms.

Section 9. In addition to vacating office at the end of the term under Section 8, a qualified member vacates office upon:

- (1) Death;
- (2) Resignation;
- (3) Being dismissed by the Council of Ministers due to deficiency, dishonesty in the discharge of duty, disgraceful behavior or incapability;
- (4) Being a bankrupt;
- (5) Being an incompetent or quasi-incompetent; or
- (6) Having been sentenced by a final judgement to a term of imprisonment, except for an offence committed through negligence or a petty offence.

Section 10. If there is an appointment of a qualified member while the appointed qualified members remain in office, irrespective of whether it being an appointment for

¹²⁹ Section 8 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

additional member or for filling the vacancy, the appointee shall hold office for the remaining term of office of the existing appointed qualified members.

Section 11. At the expiration of the term of office, if the newly qualified members have not been appointed, the qualified members who vacate office shall remain in office to perform their duties until the newly qualified members have been appointed.

Section 12. At a meeting of the Committee, the presence of not less than one-half of the total number of the members shall constitute a quorum. If the Chairperson is not present at the meeting, the members shall select one among themselves to preside over at the meeting.

A decision shall be made by a majority of votes. In casting votes, each member shall have one vote. In case of an equality of votes, the person who presides over the meeting shall cast an additional vote as a casting vote. A member having personal interest in any matter shall have no right to vote on such matter.

Section 13. The Committee may appoint a sub-committee for consideration or implementation of any matter as may be entrusted by the Committee.

The Committee may prescribe the quorum and operation procedure of the sub-committee as deemed appropriate.

Section 14. In the performance of duties, the Committee or the sub- committee entrusted by the Committee shall have the power to issue a letter summoning any person to give statement or to submit any document or object for its consideration as it deems necessary.

Chapter 2 Hazardous Substance Control

Section 15. In a case where any matter on hazardous substance control has been specifically provided by any law, the provisions of that law shall prevail. However, if there is a reasonable cause, the Committee, with approval of the Minister having charge and control of the execution of that law, may resolve that the provisions of this Act shall be

additionally applied thereto, or in lieu thereof, in this regard, a time period or any conditions may be prescribed in such resolution.

The resolution under paragraph one shall come into force upon its publication in the Government Gazette by the Minister having charge and control of the execution of that law.

Section 15/1.¹³⁰ In the passing of resolutions or giving recommendations of the Committee, or in the giving of approval of the Minister having charge and control of the execution of other laws, and in the issuing of Notifications of the Minister of Industry or the Responsible Minister for the execution of this Act, the Convention on the Prohibition of Chemical Weapons and other international conventions and obligations shall be regarded.

Section 16. If it is necessary to prevent harm from happening to people, animals, plants, property or environment, a Royal Decree prescribing localities where possession, distribution or use of any hazardous substance is prohibited may be promulgated.

Section 17. There shall be established the Hazardous Substance Information Centre under the Ministry of Industry to act as an hazardous substance information coordinating centre among various government agencies and private sector to collect and provide all information services on hazardous substance from its existence in foreign country, the importation or domestic production, transportation, use, destruction, and other affairs related thereto.

Section 18. For the purpose of control, hazardous substances shall be classified into categories as follows:

(1) Category 1 Hazardous Substance: The production, importation, exportation or possession of which shall be in accordance with the prescribed criteria and procedure;

¹³⁰ Section 15/1 as added by the Hazardous Substance Act (No. 2), B.E. 2544 (2001)

(2) Category 2 Hazardous Substance: the production, importation, exportation or possession of which requires an advance notification to be made to the competent official, and shall be in accordance with prescribed criteria and procedure;

(3) Category 3 Hazardous Substance: the production, importation or exportation or possession of which requires licensing;

(4) Category 4 Hazardous Substance: the production, importation or exportation or possession of which is prohibited.

For the purpose of prevention and extinguishing of any harm which may happen to people, animals, plants, property or environment, the Minister of Industry, with the recommendation of the Committee, shall have the power to publish in the Government Gazette the name, or properties and category of hazardous substance, enforcement period and responsible agency for the control of such hazardous substance.

Section 19. In a case where any agency of a Ministry or sub-Ministry requests to be a responsible agency for the control of any hazardous substance under this Act, the Committee shall submit its recommendation to the Minister of Industry for the issuance of a Notification under Section 18 paragraph two, prescribing that agency with authority to be responsible, wholly or partly, for any execution in relation to such hazardous substance with due regard to specific expertise, number of personnel, relationship between principal missions and workload responsibility of that agency.

In a case where the Committee has a recommendation otherwise, the Minister who supervises the requesting agency shall affirm that request to the Committee within thirty days. Such being the case, the matter shall be presented to the Minister of Industry in order for it to be submitted to the Council of Ministers for decision.

Section 20. The Responsible Minister, with the recommendation of the Committee, shall have the power to publish the following in the Government Gazette:

(1)¹³¹ Prescription of quantity, composition, properties and adulterants, container, examining and testing method for container, label, production, import, export, sale, transportation, storage, disposal and destruction of hazardous substance, treatment of hazardous substance container, fact reporting, specimen delivery, or any other matters in relation to hazardous substance in order to control, prevent, alleviate or extinguish any danger which may happen to people, animals, plants, property or environment with due regard to international conventions and obligations;

(1/1)¹³² Requirements for technology transfer in relation to hazardous substance and to put down guarantee for damage which may be inflicted on environment, life, or property caused by business operation;

(2)¹³³ Requirements for experts or specialists specifically responsible for any undertaking under (1) and (1/1);

(3) Prescription of variation criteria of stipulated quantity of the essential elements of hazardous substance;

(4) Prescription of hazardous substance registration procedure;

(5) Specifying names or properties of hazardous substance and cases being exempted under Section 36.

Section 20/1.¹³⁴ The expert or specialist specifically responsible for any undertaking in relation to hazardous substance shall perform in compliance with the criteria, procedure and conditions as prescribed by the Responsible Minister with the recommendation of the Committee as published in the Government Gazette.

¹³¹ Section 20 (1) as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹³² Section 20 (1/1) as added by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹³³ Section 20 (2) as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹³⁴ Section 20/1 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

Section 21.¹³⁵ A producer, importer or exporter of, or any person having in possession of Category 1 hazardous substance, shall comply with the Notifications of the Responsible Minister issued under Section 20 (1), (1/1), (2) and (3).

Section 22.¹³⁶ Subject to the provisions of Section 36, no person shall produce, import, export, or have in possession of Category 2 hazardous substance, except that the competent official has been notified in advance of his or her intent to do so.

Whenever any hazardous substance is specified as Category 2 hazardous substance, a producer, importer, exporter, or a person having in possession of that hazardous substance shall notify the competent official of his or her operation in relation to that hazardous substance within the period as specified in that notification.

Upon receiving the notification under paragraphs one or two, the competent official shall issue a receipt as evidence to the person who makes such notification. The receipt shall be valid through the period as specified therein, but not more than three years as from the date of its issuance.

The notification, the issuance of a receipt, the application for renewal of a receipt, and the renewal of a receipt, shall be in accordance with the criteria and procedure as prescribed by the responsible agency by publication in the Government Gazette.

A producer, importer, exporter, or a person having in possession of Category 2 hazardous substance shall comply with the Notification of the Responsible Minister issued under Section 20 (1), (1/1), (2) and (3).

Section 23. Subject to the provisions of Section 36, no person shall produce, import, export, or have in possession of Category 3 hazardous substance except with license granted by the competent official.

¹³⁵ Section 21 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹³⁶ Section 22 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

The application for and the granting of license shall be in accordance with the criteria and procedure as prescribed in the Ministerial Regulations. The Ministerial Regulations shall specify as clearly as possible the circumstances under which licenses are granted or not granted unless it is necessarily unforeseeable and the period of time required for consideration shall also be clearly specified.

A producer, importer, exporter, or a person having in possession of Category 3 hazardous substance shall also comply with the Notification of the Responsible Minister issued under Section 20 (1), (1/1), (2) and (3)¹³⁷

Section 24. Whenever any hazardous substance is specified as Category 3 hazardous substance, a producer, importer, exporter, or a person having in possession of that hazardous substance shall apply for license under Section 23 within the period as specified in that Notification, and that person may, in the meantime, carry on his or her business operation temporarily until the competent official has denied the application for the license.

Section 25. In a case where a license has been granted, if it appears thereafter that the law or the circumstances have changed or there is an important event requiring safety protection, the competent official with license granting power shall have the power to amend or append the license granting conditions as appropriate.

Section 26. A license granted under this Act shall be valid through the period specified therein but not more than three years as from the date of its issuance.

Section 27. A licensee desirous to renew his or her license shall submit an application for renewal before the license expires. Upon such submission, that person is deemed to be a licensee and may, in the meantime, continue his or her business operation temporarily until the competent official has denied the renewal of the license.

¹³⁷ Section 23 paragraph three as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

The application for the renewal of a license and the renewal thereof shall be in accordance with the criteria and procedure as prescribed in the Ministerial Regulations.

Section 28. In the case where the competent official refuses to grant or renew a license, the license applicant or the license renewal applicant has the right to appeal to the Responsible Minister within thirty days as from the date of receiving of the letter of the competent official notifying the refusal of license granting or license renewal. The decision of the Responsible Minister shall be final.

Section 29. If the competent official refuses to renew a license or the Responsible Minister dismisses an appeal for renewal of license, the license renewal applicant may sell the hazardous substance in his or her possession within three months as from the date the order refusing license renewal or the order of the Responsible Minister dismissing the appeal, as the case may be, is known to him or her. After the expiration of the aforesaid period, Section 52 paragraphs two, three and four, shall apply mutatis mutandis.

Section 30. If a license or a certificate of registration of the hazardous substance is lost, defaced or substantially damaged, the licensee shall apply for a substitute thereof with the competent official within fifteen days from the date such loss, defacement or damage is known to him or her.

Section 31. A licensee whose license has a validity period longer than three months shall display the license or a substitute thereof at the open and conspicuous place at the business establishment specified therein.

Section 32. If it appears to the competent official that any licensee violates or fails to comply with this Act, the competent official shall have the power to suspend the license for a period he or she deems fit but not more than one year. In a case of significance, the competent official may revoke the license.

Section 33. The person whose license has been suspended or revoked under Section 32 has the right to appeal to the Responsible Minister within thirty days from the date the order is known to him or her. The decision of the Responsible Minister shall be final.

The appeal under paragraph one shall not stay the execution of the license suspension or revocation order.

Section 34. The person whose license has been revoked under Section 32 may sell hazardous substance in his or her possession within three months as from the date the revocation order or the dismissal order of the Responsible Minister, as the case may be, is known to him or her. At the expiration of the aforesaid period, Section 52 paragraphs two, three and four shall apply mutatis mutandis.

Section 35. The person whose license has been revoked shall not be eligible to apply for a new license until the expiration of five years as from the date of revocation.

Section 36. The Minister of Industry, with the recommendation of the Committee, shall publish in the Government Gazette the name list of hazardous substances which are generally and clearly known that their production and nature may cause harm.

The production or import of any Category 2 or 3 of hazardous substances other than those specified in the list referred to in paragraph one shall be registered with the competent official prior to production or import. Upon receiving certificate of registration, it may be produced or imported under Section 22 or the production or import license thereof may be granted under Section 23, except in a case where there is a Notification of the Responsible Minister exempting the registration on the ground that that hazardous substance has been registered by another person or on any other reasonable grounds. The certificate of registration of hazardous substance shall be valid for not more than six years as from the date of issuance of the certificate of registration.¹³⁸

The application for the registration of hazardous substance, the issuance of the certificate of registration of hazardous substance and the renewal of the certificate of registration of hazardous substance shall be in accordance with the criteria and procedure

¹³⁸ Section 36 paragraph two as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

as prescribed by the Responsible Minister with the recommendation of the Committee by publication in the Government Gazette.¹³⁹

Section 37. In a case where the registration requires the production or importation of a specimen of a hazardous substance to be registered, or it requires the importation of other hazardous substance to produce a hazardous substance to be registered, and to produce or import such hazardous substance prior permission or registration is required by a law, the applicant may request permission for the production or importation of that hazardous substance under this Act, for which the applicant shall be exempted from complying with the procedures as prescribed by such law.

The production or importation under paragraph one shall be in accordance with the criteria and procedure as prescribed by the Responsible Minister, with the recommendation of the Committee, as published in the Government Gazette.

Section 38. No competent official shall accept the registration of hazardous substance if the Committee is of the opinion that:

(1) The hazardous substance seeking registration is not reliably beneficial as applied for registration, or its usage may be harmful to people, animals, plants, property or environment without ordinarily reasonable prevention,

(2) The hazardous substance seeking registration is named in boastful, impolite, or misleading manner, or

(3) The hazardous substance seeking registration is a forged hazardous substance or a hazardous substance the registration of which has been revoked.

The registration refusal order by the competent official shall be final.

Section 39. For the purpose of providing protection to people, animals, plants, property, or environment, the competent official, with the recommendation of the

¹³⁹ Section 36 paragraph three as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

Committee, shall have the power to order the rectification of the hazardous substance registration particulars as necessary.

Section 40. If it appears later on that a registered hazardous substance is not as useful as described in the register or its usage may be harmful to people, animals, plants, property or environment without ordinary reasonable prevention, the competent official, with the recommendation of the Committee, shall have the power to revoke the registration of such hazardous substance.

The registration revocation order of the competent official shall be final. When a hazardous substance registration is revoked, the rights to produce,

import, export or have in possession of such hazardous substance shall be extinguished.

Section 41. The owner of the hazardous substance the registration of which has been revoked shall destroy or manage one's own hazardous substance in accordance with the order of the competent official within the period of time specified by the competent official, where Section 52 paragraphs two, three, and four shall apply mutatis mutandis.

Section 42.¹⁴⁰ Repealed

Section 43.¹⁴¹ No person shall produce, import or have in possession of Category 4 hazardous substance, except with written permission from the responsible agency for use as standard analytical substance in laboratory. The application for and the granting of permission shall be in accordance with the criteria, procedure and conditions as prescribed by the Responsible Minister, with recommendation of the Committee, as published in the Government Gazette.

When the Minister of Industry has issued a notification specifying any substance to be Category 4 hazardous substance, the producer, importer or the person having in possession

¹⁴⁰ Section 42 as repealed by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹⁴¹ Section 43 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

of that hazardous substance shall comply with the order of the competent official. Such being the case, Section 41 shall apply *mutatis mutandis*.

Section 44. The Responsible Minister, with the recommendation of the Committee, shall have the power to issue a notification exempting the following hazardous substances from complying with this Act, wholly or partly, as deemed fit:

The hazardous substance which by its nature or quantity may cause modest harm or the enforcement of various measures under this Act may cause undue burden;

The hazardous substance of any Ministry, sub-ministry, Department, local administration, State enterprise, State organisation, Thai Red Cross Society or other agencies as deemed expedient.

Section 45. No person shall produce, import, export, or have in possession of Category 1, Category 2, or Category 3, hazardous substances as follows:

- (1) Forged hazardous substance;
- (2) Hazardous substance with its properties not meeting standard specifications;
- (3) Deteriorated hazardous substance;
- (4) Hazardous substance required to be registered but not registered.
- (5) Registration of hazardous substance has been revoked.

Having in possession of hazardous substance under paragraph one shall exclude having in possession for destruction or for delivery to the competent official or for other purposes according to the duty as prescribed by law.

Section 46. A person who knows that the hazardous substance in his or her possession is the hazardous substance under Section 45 shall destroy the same, notify the competent official or deliver it to the competent official in accordance with the criteria and procedure as prescribed in the Notification issued under Section 20 (1).

Section 47. The following hazardous substances or objects shall be deemed to be forged hazardous substances:

- (1) An imitation, wholly or partly, of genuine hazardous substance;
- (2) Hazardous substance that is represented under the name of another hazardous substance or indicating an exaggerating expiry date;
- (3) Hazardous substance that is represented by false statement for name or trademark of its producer or place of production;
- (4) Hazardous substance that is falsely represented as registered hazardous substance;
- (5) Hazardous substance produced with less or more essential element than variation criteria under Section 20 (3) at the level prescribed by the Responsible Minister, with the recommendation of the Committee, as published in the Government Gazette.

Section 48. The following hazardous substances shall be deemed to be hazardous substances with their properties not meeting standard specifications:

- (1) Hazardous substance produced with less or more essential element than variation criteria under Section 20 (3), but lower than the prescribed level under Section 47 (5);
- (2) Hazardous substance of which the purity, adulterants or any other essential characteristic being varied from prescribed requirements or from the registration.

Section 49. The following hazardous substances shall be deemed to be deteriorated hazardous substances:

- (1) Hazardous substance the use of which is expired as shown on its label;
- (2) Hazardous substance which has been transformed to having the same characteristics as forged hazardous substance under Section 47 (5) or with properties not meeting standard specifications;

Section 50. In a case where the Committee is of the opinion that any label fails to comply with Section 20 (1), the Committee shall have the power to order the producer or importer to stop using it or correctly make revision to such label.

Section 51. Control of hazardous substance advertisement shall be in accordance with the law on consumer protection. For the purpose of advertisement control, the hazardous substance with prescription of label under Section 20 (1) shall be deemed to be label-controlled goods by the Label Control Committee under such law, *mutatis mutandis*.

Section 52. When it appears to the competent official that any producer, importer, exporter or person having in possession of hazardous substance violates or fails to comply with this Act, the competent official shall have the power to order such person to stop, rectify, or improve such act of violation, or comply. If there is a reasonable ground, the competent official may order that person to return such hazardous substance, by exporting, to the producer or the person sending it, or do otherwise as appropriate in accordance with the criteria, procedure and conditions as prescribed by the competent official.¹⁴²

In a case under paragraph one, if the producer, importer, exporter or person having in possession of hazardous substance is unable to act correctly whether on account of incapability or otherwise, the competent official, with due regard to harm that such hazardous substance may cause, shall have the power to order that person to submit such hazardous substance to the competent official at the specified place for the purpose of destruction or any appropriate treatment.

In a case where such hazardous substance is saleable, the competent official shall sell it by auction or sell it to a government agency within three months as from the date of acceptance of delivery. After deduction of expenses incurred from storage, sale, and relevant overheads, the sale proceeds shall be kept for it to be returned to the owner. After the lapse of three months, if it is unable to sell such hazardous substance and the competent official is of opinion that further delay may be harmful or may cause undue

¹⁴² Section 52 paragraph one as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

burden, the competent official shall have the power to order the hazardous substance destroyed or treated in any manner appropriate.

The owner of hazardous substance shall pay or reimburse all expenses arising from the destruction or appropriate treatment of hazardous substance to the authority.

Section 52/1.¹⁴³ If it appears that any producer, importer, exporter or person having in possession of hazardous substance carries out a business operation which could cause harm, damage, or nuisance to people or property in the business establishment or its vicinity, the competent official shall have the power to order such person to rectify such activity by complying with the criteria, procedure, and conditions prescribed by the competent official.

Section 53.¹⁴⁴ Repealed

Section 54. In the performance of duties, the competent official shall have the power as follows:

To enter into a business establishment in connection with hazardous substance, the place of production or storage of hazardous substance or any other place suspected to be used as such place between sunrise to sunset or during working hours of that place, or to enter into a vehicle carrying or suspected of carrying hazardous substance in order to inspect hazardous substance, containers of hazardous substance, book(s) of account, documents or other objects concerning hazardous substance;

To take hazardous substance or substance suspected to be hazardous substance in a reasonable amount as specimen for inspection;

To search, detain, seize or attach hazardous substance, containers of hazardous substance, book(s) of account, documents or objects of relevance, in the event there is a reasonable ground to suspect that an offence against this Act has been committed;

¹⁴³ Section 52/1 as added by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹⁴⁴ Section 53 as repealed by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

To summon, in writing, any person to give statement or submit any documents or objects for consideration.

Section 55. If the hazardous substance, its container, book(s) of account, documents and objects seized or attached under Section 54 (3) are perishable or the storage of which may risk damage or harm therefrom or the expenses may be in excess of their value, the competent official shall have the power to destroy or treat it in any manner appropriate with due regard to harm which may arise from that hazardous substance. Such being the case, Section 52 paragraphs three and four shall apply *mutatis mutandis*.

If the competent official is of the opinion that the seized or attached object is not confiscable under Section 88 or the Public Prosecutor has given a final and conclusive non-prosecution order, the competent official shall cancel the attachment or return that hazardous substance, its containers, book(s) of account, documents and objects to the person who should have the items returned to without delay.

In making the return of the items seized or attached, or the sale proceeds, a notice shall be sent by registered mail with receipt acknowledgment to the person who should have the items returned to at his or her domicile. In a case where such person is not known or is known but his or her domicile is not known, if the notice has been published in a newspaper widely circulated in the locality wherein the seizure or attachment was made, or if the value of the items to be returned is not worth the cost of publication in the newspaper and the returning notice has been posted at the Amphoe Administration Office of that locality for not less than fifteen days, it shall be deemed that the notification has been made after the lapse of seven days as from the date the notice has been published in the newspaper or after the lapse of the time period required after the date the notice was posted at the Amphoe Administration Office, as the case may be.

The person seeking the return of the items shall be charged with all costs incurred to the State for the newspaper publication together with a surcharge at the rate of twenty percent of the said amount.

If it is unable to return the items because the person who should have the items returned to cannot be found, the attached objects or the money to be returned shall be held for safekeeping, as the case may be. If within one year after the notice was made

to the person who should have the items returned to, no such person comes to collect the same, the items shall become property of the State.

Section 56. In the performance of duties, the competent official shall present his or her identification card to people concerned.

The identification card of the competent official shall be in the form as prescribed by the Responsible Minister.

Chapter 3

Duties and Civil Liabilities

Section 57. The provisions in this Chapter shall not prejudice to or limit the duties and civil liabilities of a person provided under the provisions of other chapters or other laws.

Section 58. For the purpose of prescribing the duties and liabilities under this Chapter, the Minister of Industry shall have the power to publish in the Government Gazette any substance deemed to be hazardous substance under the provisions of this chapter.

Section 59. The producer of hazardous substance shall have the duty of care in procuring substance to be used as production material, laying down trustworthy production method and procedure, providing safe, strong, and secure container for use, moving and transportation, providing labels that clearly and sufficiently display the harmful nature of such substance, providing storage propriety and examining the propriety of the recipient or

the person who could be expected to be the recipient of such hazardous substance from him or her.

Section 60. The importer of hazardous substance shall have the duty of care in selecting a producer, examining the quality of hazardous substance, examining the accuracy of container and label, selecting mode of transportation and carrier, storage propriety and examining the propriety of the recipient or the person who could be expected to be the recipient of such hazardous substance from him or her.

Section 61. The carrier shall have the duty of care in examining the propriety of things used in transportation, or vehicle and accessories, containers and labels and the appropriateness of transportation mode, the accuracy of loading and placing on the vehicle and the reliability of the employees or the person working for him or her.

Section 62. A person having in possession of hazardous substance shall have the duty of care in examining the reliability of his or her producer, importer or supplier, the exactness or accuracy of containers and labels, the appropriateness of storage and the reliability of the recipient or the person who could be expected to be the recipient of such hazardous substance.

Section 63. The producer, importer, carrier or person having in possession of hazardous substance shall be liable for all damage arising from hazardous substance in his or her possession, except where he or she can prove that such damage was caused by force majeure or by the fault of the injured person.

Section 64. The seller or the person who delivers hazardous substance to any person shall be responsible for all damage incurred to such person caused by such hazardous substance, except where it can be proven that such damage has been caused by force majeure or by the fault of the injured person.

Section 65. The employer, principal, hirer or owner of the business operation shall be jointly liable with the person under Sections 63 or 64 for the consequences of the wrongful act committed by such person in the course of his or her business, but he or she

shall be entitled to be compensated by such person, except that he or she has a part in the fault in giving instruction, selection of personnel, supervision, or other matters having direct influence in causing the wrongful act to happen.

Section 66. The producer, importer, wholesaler, retailer, middleman and the person who takes part in any stage of distribution from the producer to the person who is liable at the moment the wrongful act under Sections 63 or 64 is taking place, shall also be jointly liable for the consequences of the wrongful act.

Section 67. The right to claim for compensation for damage caused by hazardous substance under this Act shall be barred by time prescription after the lapse of a three year period as from the date the injured person has knowledge of the damage, the state of being hazardous substance, and the person who is liable to pay compensation.

If there is a negotiation in respect of the compensation between the person who is understood to be liable for the compensation and the person entitled thereto, the prescription shall be interrupted until it appears that such negotiation has failed.

Section 68. The person liable under Sections 63, 64, 65 or 66, who has paid compensation to the injured person, shall have the right of recourse against the person who delivered that hazardous substance to him or her or to the person working for him, and against all those who participated at all stages, one person or more, all the way to the producer, in the delivery of hazardous substance. The right of recourse shall be exercised within three years as from the date of payment of compensation. In a case where the person exercising the right of recourse being the person who commits the wrongful act willfully or negligently, he or she shall have the right of recourse only for the part of the damage that is over and above his or her responsibility.

Section 69. In a case where the hazardous substance causes damage to people, animals, plants or environment, if the State suffers damage on account of expenses paid in order to assist, move, give treatment or alleviation or provide removal of damage and restore it to original or near original condition, or if it causes damage to res nullius, natural resources or public domain, upon receiving a request from a responsible agency of such

hazardous substance, the Public Prosecutor shall have the power to take an action claiming compensation for the State.

Chapter 4 Penalties

Section 70. Any person who fails to give statement or submit any document or thing required by the order of the Committee or sub-committee under Section 14 or the written order of the competent official under Section 54 (4) shall be punished by imprisonment for a term of not exceeding one month or a fine of not exceeding ten thousand baht or both.

Section 70/1.¹⁴⁵ Any person who fails to comply with Section 20/1 shall be punished by imprisonment for a term of not exceeding six months or a fine of not exceeding fifty thousand baht or both.

Section 71.¹⁴⁶ Any person who fails to comply with Sections 21, 22 paragraph five, 41 or 43 paragraph two, shall be punished by imprisonment for a term of not exceeding six months or a fine of not exceeding fifty thousand baht or both.

Section 72. Any person who violates Section 22 paragraph one or fails to comply with Section 22 paragraph two or Section 23 paragraph three, shall be punished by imprisonment for a term of not exceeding one year or a fine of not exceeding one hundred thousand baht or both.

Section 73. Any person who violates Section 23 paragraph one shall be punished by imprisonment for a term of not exceeding two years or a fine of not exceeding two hundred thousand baht or both.

¹⁴⁵ Section 70/1 as added by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹⁴⁶ Section 71 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

Section 74. Any person who violates Section 43 paragraph one shall be punished by imprisonment for a term of not exceeding ten years or a fine of not exceeding one million baht or both.

If the offence under paragraph one is committed through negligence of the importer, exporter or person having in possession of the hazardous substance, such person shall be punished by a fine of not exceeding eight hundred thousand baht.

Section 74/1.¹⁴⁷ A person who employs or abets the commission of an offence punishable under Sections 73 or 74 in relation to Category 3 or Category 4 of hazardous substance which is toxic chemical or substance used for the production of toxic chemical listed in the Convention on the Prohibition of Chemical Weapons as published by the Minister of Industry under Section 18, shall be punished by the penalty imposed on the principal of such offence.

Section 74/2.¹⁴⁸ In a case where the commission of an offence under Sections 73 or 74 in connection with the Category 3 or Category 4 of hazardous substances which is toxic chemical or substance used for the production of toxic chemical listed in the Convention on the Prohibition of Chemical Weapons and published by the Minister of Industry under Section 18, if the offender is of Thai nationality, even if the offence has been committed outside the Kingdom, the offender shall be punished within the Kingdom.

Such person shall not be punished in the Kingdom on account of such offence again, if

(1) There is a final judgment of a court in foreign country acquitting such person, or

(2) There is a judgment of a court in foreign country sentencing such person to a punishment and he or she had fully served the punishment.

If the convict has served part of the punishment for such commission by a judgment of a court in foreign country and has yet to serve the punishment in full, the Court may,

¹⁴⁷ Section 74/1 as added by the Hazardous Substance Act (No. 2), B.E. 2544 (2001)

¹⁴⁸ Section 74/2 as added by the Hazardous Substance Act (No. 2), B.E. 2544 (2001)

taking into account the punishment already served, impose whatever less punishment than is provided by law or no punishment at all.

Section 75. Any person who violates Section 45 (1) or Section 45 (5) where the registration has been revoked on the ground that harm could occur as there is no ordinarily reasonable prevention, if such violation relates to Category 3 hazardous substance, the violator shall be punished by imprisonment for a term of not exceeding seven years or a fine of not exceeding seven hundred thousand baht or both.

If the violation under paragraph one is committed through negligence of the importer, exporter or person having in possession of such hazardous substance, the violator shall be punished by a fine of not exceeding five hundred thousand baht.

Section 76. Any person who violates Section 45 (2) or Section 45 (5) where the registration has been revoked on the ground that the registered hazardous substance is not as beneficial as applied for registration, if such violation relates to Category 3 of hazardous substance, the violator shall be punished by imprisonment for a term of not exceeding five years or a fine of not exceeding five hundred thousand baht or both.

If the violation under paragraph one is committed through negligence of the importer, exporter or person having in possession of such hazardous substance, the violator shall be punished by a fine of not exceeding four hundred thousand baht.

Section 77. Any person who violates Section 45 (3) and if the violation relates to Category 3 of hazardous substance, the violator shall be punished by imprisonment for a term of not exceeding one year or a fine of not exceeding one hundred thousand baht or both.

If the violation under paragraph one is committed through negligence, the violator shall be punished by a fine of not exceeding eighty thousand baht.

Section 78. Any person who violates Section 45 (4) and if the violation relates to Category 3 of hazardous substance, the violator shall be punished by imprisonment for a term of not exceeding three years or a fine of not exceeding three hundred thousand baht or both.

Section 79. If the violation under Sections 75, 76, 77 or 78 relates to Category 2 of hazardous substance, the violator shall be punished by two-thirds of the penalty prescribed in those Sections.

Section 80. If the violation under Sections 75, 76, 77 or 78 relates to Category 1 of hazardous substance, the violator shall be punished by one-half of the penalty prescribed in those Sections.

Section 81. Any licensee who fails to comply with Sections 30 or 31 shall be punished by a fine of not exceeding ten thousand baht.

Section 82. Any person who intentionally misleads others regarding the origin, nature, quality, quantity or other essential elements of hazardous substance whether of one's own or of others, makes or uses label containing false statements or statements which he or she knows or ought to know that it could be misleading, shall be punished by imprisonment for a term of not exceeding one year or a fine of not exceeding one hundred thousand baht or both.

If the offender under paragraph one repeats such offence within six months as from the date of the previous commission, he or she shall be punished by imprisonment for a term of not exceeding two years or a fine of not exceeding two hundred thousand baht or both.

Section 83. Any person who sells hazardous substance without label or with label but such label or its display is incorrect, or who sells hazardous substance with label the use of which has been ordered terminated or corrected by the Committee under Section 50, shall be punished by imprisonment for a term of not exceeding six months or a fine of not exceeding fifty thousand baht or both.

If the violation under paragraph one is committed through negligence, the violator shall be punished by a fine of not exceeding forty thousand baht.

If the violation under paragraph one is committed by the producer or importer, the violator shall be punished by imprisonment for a term of not exceeding one year or a fine of not exceeding one hundred thousand baht or both.

Section 84. Any person who intentionally or negligently agrees to be hired to make or affix unlawful label or to destroy an essential part of lawful label of any of the hazardous substances under Chapter 2, shall be punished by imprisonment for a term of not exceeding six months or a fine of not exceeding fifty thousand baht or both.

Section 85. Any person who fails to comply with Section 52 paragraph one shall be punished by imprisonment for a term of not exceeding three months or a fine of not exceeding thirty thousand baht or both.

Section 85/1.¹⁴⁹ Any person who fails to comply with the order of the competent official under Section 52/1 shall be punished by imprisonment for a term of not exceeding three months or a fine of not exceeding thirty thousand baht or both.

Section 86. Any person who fails to provide reasonable facilitation to the competent official in the performance of duty under Section 54, shall be punished by imprisonment for a term of not exceeding one month or a fine of not exceeding ten thousand baht.

Section 87. In a case where a Court has punished a person by a judgement on account of an offence under Sections 71 or 72 and in which case the license is exempted, if under the circumstances, it appears that such person may repeat such offence, the Court may, by stating in its judgement, prohibit such person from engaging in any business operation in connection with hazardous substance for a period of not exceeding five years as from the date the punishment is fully served.

Section 87/1.¹⁵⁰ In a case where a person who has once been punished on account of the offence under this Act repeats the same offence, the Court may impose additional punishment on such person for another one-half time of the punishment as prescribed for that offence.

¹⁴⁹ Section 85/1 as added by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹⁵⁰ Section 87/1 as added by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

Section 87/2.¹⁵¹ In a case where a juristic person has committed an offence under this Act, its directors, managers or experts, specialists, or any persons responsible for the commission of such offence shall also be liable to punishment as provided for such offence except where it can be proven that such offence was committed without their knowledge or consent.

Section 88. Any hazardous substance produced, imported, exported or possessed in violation of this Act, its container, relevant tools and accessories or any property confiscated by judgement of a Court shall be delivered to the government agency responsible for the control of such hazardous substance for destruction or treatment in any way it deems fit.

In case of destruction, the Court shall include in its judgement ordering the owner thereof to pay all expenses incurred to the authority.

Section 89.¹⁵² All of the offences under this Act punishable by imprisonment for a term of not exceeding one year or only by a fine, the Committee shall have the power to compound the matter and if the offender pays the fine for settlement within thirty days as from the date the offender has been informed, the case shall be deemed settled in accordance with the Criminal Procedure Code.

If the Committee thinks fit, it may entrust the power to settle the case to the sub-committee or the competent official. In this regard, the settlement shall be in accordance with the criteria and procedure as prescribed by the Committee.

In a case where evidentiary property in connection with the commission of an offence under this Act has been seized or attached, the person having the power to settle the case under paragraph one or paragraph two shall settle the case in accordance with the following conditions:

¹⁵¹ Section 87/2 as added by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

¹⁵² Section 89 as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (2008)

If rectification is possible, when the offender has given his or her consent and has rectified the seized or attached property.

If rectification is not possible, when the offender has given his or her consent to pass on the ownership of the evidentiary property to the government agency responsible for the control of that hazardous substance.

In the case where the person agreeing to settle the case has rectified the evidentiary property, the competent official shall withdraw the attachment of such evidentiary property.

All of the properties the ownership of which has been passed on to the government agency responsible for the control of such hazardous substance shall be managed in accordance with the regulation as prescribed by the Responsible Minister.

Transitory Provisions

Section 90. Any application for license submitted in accordance with the law on toxic substance and being under consideration shall be deemed to be the application for license under this Act *mutatis mutandis*. If the contents of such application are different from the application under this Act, the person with license issuing power shall have the power to give instruction to effect necessary revision or amendment so as to keep the matter in compliance with this Act.

Section 91. Licenses and certificates of registration granted and issued to any persons under the law on toxic substance prior to the date this Act comes into force shall still be valid until the expiration of the period specified therein.

Section 92. Within six months as from the date this Act comes into force, all substances or any other objects designated by Notifications as ordinary toxic substances and seriously toxic substances under the law on toxic substance shall be completely

reviewed and designated by Notifications as Category 1, Category 2, Category 3 or Category 4 hazardous substances under this Act.

Pending the completion of the implementation of the operation in paragraph one, the provisions of the law on toxic substance shall remain in force; except that the provisions relating to the Toxic Substance Committee shall be replaced by the provisions relating to the Hazardous Substance Committee under this Act, and the provisions of this Act shall immediately come into force insofar as they are not contrary to or inconsistent with the law on toxic substance.

Section 93. All Ministerial Regulations and Notifications issued under the law on toxic substance shall remain in force insofar as they are not contrary to or inconsistent with the provisions of this Act.

Rate of Fees¹⁵³

(1) Certificate of Registration for Hazardous Substance, each	15,000	baht
(2) Hazardous Substance Production License, each	20,000	baht
(3) Hazardous Substance Import License, each	20,000	baht
(4) Hazardous Substance Export License, each	20,000	baht
(5) License to Possess Hazardous Substance, each	20,000	baht
(6) Hazardous Substance Specimen Production License, each	2,000	baht
(7) Hazardous Substance Specimen Import License, each	2,000	baht
(8) Substitute for Certificate of Registration for Hazardous Substance, each	1,000	baht
(9) Substitute for License, each	1,000	baht
(10) The Fee for each Renewal of Certificate of Registration for Hazardous Substance is the same as that for the Certificate of Registration for Hazardous Substance		
(11) The Fee for each Renewal of License is the same as that for each type of License		

¹⁵³ Rate of Fees as amended by the Hazardous Substance Act (No. 3), B.E. 2551 (A.D. 2008)